Rizzetta & Company

Bobcat Trail
Community Development District

Board of Supervisors' Meeting
August 6, 2024

District Office:
9530 Marketplace Road, Suite 206
Fort Myers, Florida 33912
(239) 936-0913

www.bobcatcdd.com

Professionals in Community Management

BOBCAT TRAIL
COMMUNITY DEVELOPMENT DISTRICT

Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288

www.bobcatcdd.com

Board of Supervisors	Jeffrey Brall	Chairperson
	Richard Burke	Vice Chairman
	Steven Ball	Assistant Secretary
	Michael SanAntonio	Assistant Secretary
	Paul Fisher	Assistant Secretary
District Manager	Belinda Blandon	Rizzetta & Company, Inc.
District Counsel	David Jackson	Persson, Cohen, Mooney, Fernandez & Jackson, P.A.
District Engineer	Robert Dvorak	BDI Engineers

All cellular phones must be placed on mute while in the meeting room.

The Audience Comment portion of the agenda is where individuals may make comments on matters that concern the District. Individuals are limited to a total of three (3) minutes to make comments during this time.

Pursuant to provisions of the Americans with Disabilities Act, any person requiring special accommodations to participate in this meeting/hearing/workshop is asked to advise the District Office at least forty-eight (48) hours before the meeting/hearing/workshop by contacting the District Manager at (239) 936-0913. If you are hearing or speech impaired, please contact the Florida Relay Service by dialing 7-1-1, or 1-800-955-8771 (TTY) 1-800-955-8770 (Voice), who can aid you in contacting the District Office.

A person who decides to appeal any decision made at the meeting/hearing/workshop with respect to any matter considered at the meeting/hearing/workshop is advised that person will need a record of the proceedings and that accordingly, the person may need to ensure that a verbatim record of the proceedings is made including the testimony and evidence upon which the appeal is to be based.

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT

District Office · Ft. Myers, Florida · (239) 936-0913
Mailing Address · 3434 Colwell Avenue, Suite 200, Tampa, Florida 33614

www.bobcatcdd.com

August 2, 2024

Board of Supervisors
Bobcat Trail Community
Development District

REVISED AGENDA

Dear Board Members:

The regular meeting of the Board of Supervisors of Bobcat Trail Community Development District will be held on **Tuesday, August 6, 2024 at 3:00 p.m.**, at the Bobcat Trail Community Center located at 1352 Bobcat Trail Blvd., North Port, FL 34288. The following is the revised agenda for this meeting:

1. CALL TO ORDER/ROLL CALL
2. PLEDGE OF ALLEGIANCE
3. APPROVAL OF AGENDA
4. PUBLIC COMMENTS
5. BUSINESS ADMINISTRATION
- A. Consideration of the Minutes of the Board of Supervisors' Meeting held on July 2, 2024..... Tab 1

6. OLD BUSINESS
- A. Ratification of FY 2022-2023 Financial Audit..... Tab 2
- B. Discussion of HB 7013 – District Goals and Objectives ..... Tab 3
- C. Consideration of Contract for Professional Technology Services (Email Services)..... Tab 4

7. NEW BUSINESS
- A. Resident Concerns
- B. Discussion and Consideration of Proposals for Reserve Study..... Tab 5
  1. Custom Reserves, LLC
  2. Florida Reserve Study and Appraisal
  3. Reserve Advisors, LLC
- C. Discussion and Consideration of Landscape Maintenance Proposals ..... Tab 6
  1. Artistree
  2. LMP
- D. Discussion and Consideration of Proposal from City Wide Facility Solutions for Community Center Janitorial Services ..... Tab 7
- E. Discussion and Consideration of Proposal from Envera Systems for Barrier Arms (updated proposal received)..... Tab 8
- F. Consideration of Resolution 2024-08, Adopting a Meeting Schedule for Fiscal Year 2024/2025..... Tab 9

8. STAFF REPORTS
- A. Field Manager Report
  - Aquatics and Landscape Inspection Reports ..... Tab 10
- B. District Engineer Report
- C. District Counsel Report
- D. District Manager Report

9. OTHER REPORTS
- A. Infrastructure/Asset Management Committee (Board Workshop)
- B. Landscape Committee
- C. Newsletter Supervisor
- D. Finance Supervisor
- E. Lakes and Roads Supervisor
  - i. Solitude Waterway Inspection Report
  - ii. Solitude Monitoring Reports
  - iii. Seal Coating Roads RFQ Discussion
- F. Maintenance Supervisor
- G. Facilities Supervisor
- H. HOA Updates
- I. Commercial Properties
- J. Community Emergency Response Team (CERT)

10. PUBLIC COMMENTS
11. SUPERVISOR REQUESTS
12. ADJOURNMENT

We look forward to seeing you at the meeting. In the meantime, if you have any questions, please do not hesitate to call us at (239) 936-0913.

Very truly yours,

Belinda Blandon

Belinda Blandon
District Manager

cc: David Jackson: Persson, Cohen, Mooney, Fernandez & Jackson, P.A.

Tab 1

MINUTES OF MEETING

Each person who decides to appeal any decision made by the Board with respect to any matter considered at the meeting is advised that the person may need to ensure that a verbatim record of the proceedings is made, including the testimony and evidence upon which such appeal is to be based.

BOBCAT TRAIL
COMMUNITY DEVELOPMENT DISTRICT

The regular meeting of the Board of Supervisors of the Bobcat Trail Community Development District was held on **Tuesday, July 2, 2024, at 3:00 p.m.** at the Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288.

Present and constituting a quorum:

Jeffrey Brall	**Board Supervisor, Chair**
Richard Burke	**Board Supervisor, Vice Chair**
Steven Ball	**Board Supervisor, Assistant Secretary**
Michael SanAntonio	**Board Supervisor, Assistant Secretary**
Paul Fisher	**Board Supervisor, Assistant Secretary**

Also present were:

Scott Brizendine	**District Manager, Rizzetta & Company, Inc.**
David Jackson	**District Counsel, Persson, Cohen, Mooney, Fernandez & Jackson, P.A.**
Sergio Rojas	**LMP**
Chris Berry	**LMP**

FIRST ORDER OF BUSINESS **Call to Order/Roll Call**

Mr. Brizendine called the meeting to order and read roll call.

SECOND ORDER OF BUSINESS **Pledge of Allegiance**

The Board, Staff and Audience recited the Pledge of Allegiance.

THIRD ORDER OF BUSINESS **Approval Of Agenda**

Mr. Brall added the FEMA update to the Agenda under Old Business.

> On a Motion by Mr. Burke, seconded by Mr. San Antonio, with all in favor, the Board added old business of the FEMA update to the Agenda, for the Bobcat Trail Community Development District.

FOURTH ORDER OF BUSINESS **Public Comments**

Mr. Brizendine advised that he would now open the floor for public comments. No audience members made public comments.

DRAFT

FIFTH ORDER OF BUSINESS **Consideration of the Minutes of the Board of Supervisors' Meeting held on June 20, 2024**

Mr. Brizendine advised that Inframark did not provide the minutes for the June 20, 2024 meeting. He stated that these would be tabled until the next meeting.

SIXTH ORDER OF BUSINESS **Consideration of Contract for Professional Technology Services**

Mr. Brizendine provided an overview of the contract for Professional Technology Services. The Board would like to review their current agreement with Complete IT and compare that with Rizzetta's agreement for hosting email accounts. The Board tabled action on this portion of the agreement until the August meeting. The Board approved the portion of the agreement for the website management.

On a Motion by Mr. Brall, seconded by Mr. Ball, with all in favor, the Board approved the website hosting with Rizzetta, for the Bobcat Trail Community Development District.

SEVENTH ORDER OF BUSINESS **FEMA Update**

Mr. Brall led the discussion. He informed the Board that he has been talking to the FEMA attorney. He advised that, in his opinion, the Supreme Court ruling on Chevron becomes favorable for this District. He stated an Addendum is being added for the appeal, and that the attorney feels confident. The state will then make a recommendation to FEMA. Mr. Brall advised that Congressman Greg Stuby has said he can assist if needed with any government agencies.

EIGHTH ORDER OF BUSINESS **Discussion of HB 7013 – District Goals and Objectives**

Mr. Brizendine and Mr. Jackson reviewed the new requirements with the Board. Mr. Brizendine explained that the memo contains potential goals for the Board's consideration. The Board decided to place this item on the agenda for their next workshop to discuss and bring back for consideration at the August meeting.

NINTH ORDER OF BUSINESS **Ratification of FY 2022-2023 Financial Audit**

Mr. Brizendine informed the Board that the FY 2022-2023 Financial Audit was not complete. He stated that he reached out to Grau for a status update. According to Grau, the draft was submitted to Inframark on Friday, and Inframark cleared the open items list. Grau updated the report on July 2, and will be issuing an updated draft on July 2.

DRAFT

TENTH ORDER OF BUSINESS **District Manager's Report**

Mr. Brizendine asked for guidance from the Board on the existing bank accounts for the District. The Board approved changing the signers on the existing accounts instead of closing them.

On a Motion by Mr. Brall, seconded by Mr. Richard Burke, with all in favor, the Board approved changing the signers on the existing bank accounts, for the Bobcat Trail Community Development District.

The Board stated they currently have credit cards with Inframark's name on them. Rizzetta will need to contact Valley Bank regarding new cards being issued. Mr. Brizendine spoke to the Board regarding the Invoice approval process. The Board reviewed their current process with Mr. Brizendine. Mr. Brizendine discussed an option of providing the Board with access to Rizzetta's accounting software for review and approval of invoices.

The Board asked Management to request an insurance proposal for FY 2025 from Egis Insurance as a second quote.

Mr. Brizendine requested an update on the special assessment for the golf course. The Board provided an update on the golf course assessment.

Mr. Brizendine advised the Board to consider a reserve study. The Board asked Management to obtain proposals for a reserve study.

ELEVENTH ORDER OF BUSINESS **District Counsel's Report**

Mr. Jackson advised that he has been working on the agreement with the Villas. He advised that he would provide it when completed. Mr. Ball advised of the foreclosure notice of the golf course which had the wrong survey on it. He wanted to know if this could be corrected. Mr. Jackson stated he could reach out to the attorney handling the foreclosure to make them aware of the mistake. The Board was fine with doing that.

TWELFTH ORDER OF BUSINESS **Other Reports**

A. Infrastructure/Asset Management Committee (Board Workshop)
Mr. Brall advised that the next meeting is July 18 and if the Board has anything to add, please send it to him.

B. Landscape Committee
Mr. Brall advised that the RFP is out for bid and waiting for vendors to put in their submittals. He advised the submittals are due July 15. He stated the Committee meets after to review and make recommendation to the Board at the August 6 meeting. Mr. Brizendine advised they may need to provide an addendum change for the review and meeting date on the RFP instructions.

DRAFT

C. Newsletter Supervisor
Mr. Fisher advised there was no update for the newsletter.

D. Finance Supervisor
Mr. Fisher advised there was no update for finance.

E. Lakes and Roads Supervisor
i. Solitude Waterway Inspection Report:
Mr. Ball provided the following updates: he advised that Solitude has been treating the lakes due to algae growth. He stated the lakes project for Lakes A1 and A2 are being worked on. He advised that the District Engineer will review the project next week to confirm if it is on schedule. He advised that three different residents had concerns with the ponds behind their homes and the vendors and engineer will review the ponds to determine if there is an issue.

ii. Solitude Monitoring Reports

iii. Seal Coating Roads RFQ Discussion:
Mr. Ball stated that he would work with Ms. Blandon when she returns on the RFP for the road work. He stated that he would research what would be best for the roads.

F. Maintenance Supervisor
Mr. Burke provided the following updates: he advised of new LED lights that were installed at the entrance of the District. He stated the receptacle at the back gate was replaced. He stated the new GFI and also front gate exit GFI have been replaced. He advised that three streetlights were not working, and maintenance replaced the breaker. The District needs an electrician to fix it as the replaced breaker did not fix the streetlights. The pool umbrellas are being left open which is causing damage. The monuments are being painted. Finally, Mr. Burke advised of the 4th of July party which is free to the community 4 to 7 p.m.

G. Facilities Supervisor
Mr. SanAntonio provided the following updates: he stated the annual fire inspection was performed on June 24, with no issues. He reminded the Board that next year is the five-year inspection. The Gatehouse needs an air conditioning repair, and they are going to move forward with that. He stated that a couple of signs have been added telling guest drivers to stay to the right. He asked Envera to update their quote for magnetic gate arms.

H. HOA Updates
Mr. SanAntonio provided the following updates: he informed the Board and Audience that the meeting of the Bobcat Trail HOA Master Association is canceled for the month of July. The Fairway Commons meeting is in September. Lastly, Mr. Burke informed the Board of the sewer line cleaning by the City between July and September.

I. Commercial Properties
There were no updates for commercial properties.

DRAFT

J. Community Emergency Response Team (CERT)
Next Tuesday will be a meeting regarding Hurricane preparedness.

THIRTEENTH ORDER OF BUSINESS Public Comments

A resident would like to know who owns the lake in the Villas. He advised that he spoke to the Property Appraiser's office; they have a copy of a quitclaim deed from eight years ago. However, there was a document that was recorded a few days before the quitclaim deed which caused confusion. Mr. Jackson stated that this is being cleared up.

Mr. Burke advised that with the impending change of the golf course ownership , the District needs to resolve the boundaries, so it is clear where those boundaries are located. He would like to know if there is a correct map. Mr. Jackson responded that there is a 2017 corrected survey that is accurate. He can bring a proposal and the Board was receptive.

A resident is concerned with the budget. He stated the golf course assessment should not be used and is concerned the golf course assessment is being used to balance the budget.

FOURTEENTH ORDER OF BUSINESS Supervisor Requests

Mr. Brizendine asked if there were any Supervisor requests or comments. There were no Supervisor requests or comments.

FIFTEENTH ORDER OF BUSINESS Adjournment

Mr. Brizendine stated that there was no further business to come before the Board and asked for a motion to adjourn.

On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor the Board adjourned the meeting at 4:08 p.m., for the Bobcat Trail Community Development District.

_____ _____

Secretary/Assistant Secretary Chairman/Vice Chairman

DRAFT

Tab 2

BOBCAT TRAIL
COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA
FINANCIAL REPORT
FOR THE FISCAL YEAR ENDED
SEPTEMBER 30, 2023

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA

TABLE OF CONTENTS

	Page
INDEPENDENT AUDITOR'S REPORT	1-2
MANAGEMENT'S DISCUSSION AND ANALYSIS	3-6
BASIC FINANCIAL STATEMENTS	
Government-Wide Financial Statements:	
Statement of Net Position	7
Statement of Activities	8
Fund Financial Statements:	
Balance Sheet – Governmental Funds	9
Reconciliation of the Balance Sheet – Governmental Funds to the Statement of Net Position	10
Statement of Revenues, Expenditures and Changes in Fund Balances – Governmental Funds	11
Reconciliation of the Statement of Revenues, Expenditures and Changes in Fund Balances of Governmental Funds to the Statement of Activities	12
Notes to Financial Statements	13-20
REQUIRED SUPPLEMENTARY INFORMATION	
Schedule of Revenues, Expenditures and Changes in Fund Balance – Budget and Actual – General Fund	21
Notes to Required Supplementary Information	22
OTHER INFORMATION	
Data Elements required by FL Statute 218.39 (3) (c)	23
INDEPENDENT AUDITOR'S REPORT ON INTERNAL CONTROL OVER FINANCIAL REPORTING AND ON COMPLIANCE AND OTHER MATTERS BASED ON AN AUDIT OF FINANCIAL STATEMENTS PERFORMED IN ACCORDANCE WITH *GOVERNMENT AUDITING STANDARDS*	24-25
INDEPENDENT AUDITOR'S REPORT ON COMPLIANCE WITH THE REQUIREMENTS OF SECTION 218.415, FLORIDA STATUTES, REQUIRED BY RULE 10.556(10) OF THE AUDITOR GENERAL OF THE STATE OF FLORIDA	26
MANAGEMENT LETTER PURSUANT TO THE RULES OF THE AUDITOR GENERAL OF THE STATE OF FLORIDA	27-28

Grau & Associates
CERTIFIED PUBLIC ACCOUNTANTS

951 Yamato Road ▪ Suite 280
Boca Raton, Florida 33431
(561) 994-9299 ▪ (800) 299-4728
Fax (561) 994-5823
www.graucpa.com

INDEPENDENT AUDITOR'S REPORT

To the Board of Supervisors
Bobcat Trail Community Development District
City of North Port, Florida

Report on the Audit of the Financial Statements

Opinions

We have audited the accompanying financial statements of the governmental activities and each major fund of Bobcat Trail Community Development District, City of North Port, Florida ("District") as of and for the fiscal year ended September 30, 2023, and the related notes to the financial statements, which collectively comprise the District's basic financial statements as listed in the table of contents.

In our opinion, the financial statements referred to above present fairly, in all material respects, the respective financial position of the governmental activities and each major fund of the District as of September 30, 2023, and the respective changes in financial position thereof for the fiscal year then ended in accordance with accounting principles generally accepted in the United States of America.

Basis for Opinions

We conducted our audit in accordance with auditing standards generally accepted in the United States of America (GAAS) and the standards applicable to financial audits contained in *Government Auditing Standards*, issued by the Comptroller General of the United States. Our responsibilities under those standards are further described in the Auditor's Responsibilities for the Audit of the Financial Statements section of our report. We are required to be independent of the District and to meet our other ethical responsibilities, in accordance with the relevant ethical requirements relating to our audit. We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our audit opinions.

Responsibilities of Management for the Financial Statements

The District's management is responsible for the preparation and fair presentation of the financial statements in accordance with accounting principles generally accepted in the United States of America; and for the design, implementation, and maintenance of internal control relevant to the preparation and fair presentation of financial statements that are free from material misstatement, whether due to fraud or error.

In preparing the financial statements, management is required to evaluate whether there are conditions or events, considered in the aggregate, that raise substantial doubt about the District's ability to continue as a going concern for twelve months beyond the financial statement date, including any currently known information that may raise substantial doubt shortly thereafter.

Auditor's Responsibilities for the Audit of the Financial Statements

Our objectives are to obtain reasonable assurance about whether the financial statements as a whole are free from material misstatement, whether due to fraud or error, and to issue an auditor's report that includes our opinions. Reasonable assurance is a high level of assurance but is not absolute assurance and therefore is not a guarantee that an audit conducted in accordance with GAAS will always detect a material misstatement when it exists. The risk of not detecting a material misstatement resulting from fraud is higher than for one resulting from error, as fraud may involve collusion, forgery, intentional omissions, misrepresentations, or the override of internal control. Misstatements are considered material if there is a substantial likelihood that, individually or in the aggregate, they would influence the judgment made by a reasonable user based on the financial statements.

In performing an audit in accordance with GAAS, we:

- Exercise professional judgment and maintain professional skepticism throughout the audit.
- Identify and assess the risks of material misstatement of the financial statements, whether due to fraud or error, and design and perform audit procedures responsive to those risks. Such procedures include examining, on a test basis, evidence regarding the amounts and disclosures in the financial statements.
- Obtain an understanding of internal control relevant to the audit in order to design audit procedures that are appropriate in the circumstances, but not for the purpose of expressing an opinion on the effectiveness of the District's internal control. Accordingly, no such opinion is expressed.
- Evaluate the appropriateness of accounting policies used and the reasonableness of significant accounting estimates made by management, as well as evaluate the overall presentation of the financial statements.
- Conclude whether, in our judgment, there are conditions or events, considered in the aggregate, that raise substantial doubt about the District's ability to continue as a going concern for a reasonable period of time.

We are required to communicate with those charged with governance regarding, among other matters, the planned scope and timing of the audit, significant audit findings, and certain internal control–related matters that we identified during the audit.

Required Supplementary Information

Accounting principles generally accepted in the United States of America require that the management's discussion and analysis and budgetary comparison information be presented to supplement the basic financial statements. Such information is the responsibility of management and, although not a part of the basic financial statements, is required by the Governmental Accounting Standards Board, who considers it to be an essential part of financial reporting for placing the basic financial statements in an appropriate operational, economic, or historical context. We have applied certain limited procedures to the required supplementary information in accordance with auditing standards generally accepted in the United States of America, which consisted of inquiries of management about the methods of preparing the information and comparing the information for consistency with management's responses to our inquiries, the basic financial statements, and other knowledge we obtained during our audit of the basic financial statements. We do not express an opinion or provide any assurance on the information because the limited procedures do not provide us with sufficient evidence to express an opinion or provide any assurance.

Other Information Included in the Financial Report

Management is responsible for the other information included in the financial report. The other information comprises the information for compliance with FL Statute 218.39 (3) (c) but does not include the financial statements and our auditor's report thereon. Our opinions on the financial statements do not cover the other information, and we do not express an opinion or any form of assurance thereon. In connection with our audit of the financial statements, our responsibility is to read the other information and consider whether a material inconsistency exists between the other information and the financial statements, or the other information otherwise appears to be materially misstated. If, based on the work performed, we conclude that an uncorrected material misstatement of the other information exists, we are required to describe it in our report.

Other Reporting Required by *Government Auditing Standards*

In accordance with *Government Auditing Standards*, we have also issued our report dated July 15, 2024, on our consideration of the District's internal control over financial reporting and on our tests of its compliance with certain provisions of laws, regulations, contracts, grant agreements and other matters. The purpose of that report is solely to describe the scope of our testing of internal control over financial reporting and compliance and the results of that testing, and not to provide an opinion on the effectiveness of the District's internal control over financial reporting or on compliance. That report is an integral part of an audit performed in accordance with *Government Auditing Standards* in considering the District's internal control over financial reporting and compliance.

July 15, 2024

MANAGEMENT'S DISCUSSION AND ANALYSIS

Our discussion and analysis of Bobcat Trail Community Development District, City of North Port, Florida ("District") provides a narrative overview of the District's financial activities for the fiscal year ended September 30, 2023. Please read it in conjunction with the District's Independent Auditor's Report, basic financial statements, accompanying notes and supplementary information to the basic financial statements.

FINANCIAL HIGHLIGHTS

- The assets of the District exceeded its liabilities at the close of the most recent fiscal year resulting in a net position balance of $4,394,473.

- The change in the District's total net position in comparison with the prior fiscal year was $148,905, an increase. The key components of the District's net position and change in net position are reflected in the table in the government-wide financial analysis section.

- At September 30, 2023, the District's governmental funds reported combined ending fund balances of $1,036,412, a decrease of ($6,638) in comparison with the prior fiscal year. The total fund balance is restricted for debt service, assigned to reserves and subsequent year's expenditures, and the remainder is unassigned deficit fund balance in the general fund.

OVERVIEW OF FINANCIAL STATEMENTS

This discussion and analysis is intended to serve as the introduction to the District's basic financial statements. The District's basic financial statements are comprised of three components: 1) government-wide financial statements, 2) fund financial statements, and 3) notes to the financial statements. This report also contains other supplementary information in addition to the basic financial statements themselves.

1) Government-Wide Financial Statements

The government-wide financial statements are designed to provide readers with a broad overview of the District's finances, in a manner similar to a private-sector business.

The statement of net position presents information on all the District's assets, deferred outflows of resources, liabilities, and deferred inflows of resources with the residual amount being reported as net position. Over time, increases or decreases in net position may serve as a useful indicator of whether the financial position of the District is improving or deteriorating.

The statement of activities presents information showing how the government's net position changed during the most recent fiscal year. All changes in net position are reported as soon as the underlying event giving rise to the change occurs, regardless of the timing of related cash flows. Thus, revenues and expenses are reported in this statement for some items that will only result in cash flows in future fiscal periods.

The government-wide financial statements include all governmental activities that are principally supported by special assessments. The District does not have any business-type activities. The governmental activities of the District include the general government (management), maintenance and recreation functions.

2) Fund Financial Statements

A fund is a grouping of related accounts that is used to maintain control over resources that have been segregated for specific activities or objectives. The District, like other state and local governments, uses fund accounting to ensure and demonstrate compliance with finance-related legal requirements. The District has one fund category: governmental funds.

OVERVIEW OF FINANCIAL STATEMENTS (Continued)

3) Governmental Funds

Governmental funds are used to account for essentially the same functions reported as governmental activities in the government-wide financial statements. However, unlike the government-wide financial statements, governmental fund financial statements focus on near-term inflows and outflow of spendable resources, as well as on balances of spendable resources available at the end of the fiscal year. Such information may be useful in evaluating a District's near-term financing requirements.

Because the focus of governmental funds is narrower than that of the government-wide financial statements, it is useful to compare the information presented for governmental funds with similar information presented for governmental activities in the government-wide financial statements. By doing so, readers may better understand the long-term impact of the District's near-term financing decisions. Both the governmental fund balance sheet and the governmental fund statement of revenues, expenditures, and changes in fund balances provide a reconciliation to facilitate this comparison between governmental funds and governmental activities.

The District maintains two governmental funds for external reporting. Information is presented separately in the governmental fund balance sheet and the governmental fund statement of revenues, expenditures, and changes in fund balances for the general fund and debt service fund, all of which are considered major funds.

The District adopts an annual appropriated budget for its general fund. A budgetary comparison schedule has been provided for the general fund to demonstrate compliance with the budget.

Notes to the Financial Statements

The notes provide additional information that is essential to a full understanding of the data provided in the government-wide and fund financial statements.

GOVERNMENT-WIDE FINANCIAL ANALYSIS

As noted earlier, net position may serve over time as a useful indicator of an entity's financial position. In the case of the District, assets exceeded liabilities at the close of the most recent fiscal year.

Key components of the District's net position are reflected in the following table:

NET POSITION
SEPTEMBER 30,

	2023	2022
Current and other assets	$ 1,145,187	$ 1,080,541
Capital assets, net of depreciation	4,485,913	4,621,193
Total assets	5,631,100	5,701,734
Current liabilities	25,576	54,115
Long-term liabilities	1,211,051	1,402,051
Total liabilities	1,236,627	1,456,166
Net position		
Net investment in capital assets	3,274,862	3,219,142
Restricted	70,374	63,895
Unrestricted	1,049,237	962,531
Total net position	$ 4,394,473	$ 4,245,568

The District's net position reflects its investment in capital assets (e.g. land, land improvements, and infrastructure); less any related debt used to acquire those assets that is still outstanding. These assets are used to provide services to residents; consequently, these assets are not available for future spending. Although the District's investment in capital assets is reported net of related debt, it should be noted that the resources needed to repay this debt must be provided from other sources, since the capital assets themselves cannot be used to liquidate these liabilities.

GOVERNMENT-WIDE FINANCIAL ANALYSIS (Continued)

The restricted portion of the District's net position represents resources that are subject to external restrictions on how they may be used. The remaining balance of unrestricted net position may be used to meet the District's other obligations.

The District's net position increased during the most recent fiscal year. The majority of the increase represents the extent to which ongoing program revenues exceeded the cost of operations and depreciation expense.

Key elements of the change in net position are reflected in the following table:

CHANGES IN NET POSITION
FOR THE FISCAL YEAR ENDED SEPTEMBER 30,

	2023	2022
Revenues:		
Program revenues	$ 1,095,606	$ 1,086,907
General revenues	275,496	(47,336)
Total revenues	1,371,102	1,039,571
Expenses:		
General government	179,595	142,505
Physical environment	808,195	882,435
Culture and recreation	196,800	176,316
Interest	37,607	43,002
Total expenses	1,222,197	1,244,258
Change in net position	148,905	(204,687)
Net position - beginning	4,245,568	4,450,255
Net position - ending	$ 4,394,473	$ 4,245,568

As noted above and in the statement of activities, the cost of all governmental activities during the fiscal year ended September 30, 2023 was $1,222,197. The costs of the District's activities were primarily funded by program revenues. Program revenues, comprised primarily of assessments, increased slightly from the prior fiscal year. The remainder of the current fiscal year revenue includes interest income and miscellaneous revenues. In total, expenses decreased from the prior fiscal year, the majority of the decrease is the result of a decrease in maintenance and repairs.

GENERAL BUDGETING HIGHLIGHTS

An operating budget was adopted and maintained by the governing board for the District pursuant to the requirements of Florida Statutes. The budget is adopted using the same basis of accounting that is used in preparation of the fund financial statements. The legal level of budgetary control, the level at which expenditures may not exceed budget, is in the aggregate. Any budget amendments that increase the aggregate budgeted appropriations must be approved by the Board of Supervisors. The general fund budget for the fiscal year ended September 30, 2023, was amended to increase appropriations and use of fund balance by $377,099.

CAPITAL ASSETS AND DEBT ADMINISTRATION

Capital Assets

At September 30, 2023, the District had $8,620,661 invested in capital assets for its governmental activities. In the government-wide financial statements depreciation of $4,134,748 has been taken, which resulted in a net book value of $4,485,913. More detailed information about the District's capital assets is presented in the notes of the financial statements.

Capital Debt

At September 30, 2023, the District had $1,204,000 Bonds outstanding for its governmental activities. In addition, at September 30, 2023, the District owed $7,051 on a Note Payable. More detailed information about the District's capital debt is presented in the notes of the financial statements.

ECONOMIC FACTORS AND NEXT YEAR'S BUDGETS AND OTHER EVENTS

For the subsequent fiscal year, the District anticipates that the cost of general operations will remain fairly constant. In connection with the District's future infrastructure maintenance and replacement plan, the District Board has included in the budget an estimate of those anticipated future costs and has assigned a portion of current available resources for that purpose. Finance Committee suggestions are reviewed and approved by the Board.

CONTACTING THE DISTRICT'S FINANCIAL MANAGEMENT

This financial report is designed to provide our citizens, land owners, customers, investors and creditors with a general overview of the District's finances and to demonstrate the District's accountability for the financial resources it manages and the stewardship of the facilities it maintains. If you have questions about this report or need additional financial information, contact the Bobcat Trail Community Development District's Finance Department at 3434 Colwell Avenue, Suite 200, Tampa, Florida 33614.

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA
STATEMENT OF NET POSITION
SEPTEMBER 30, 2023

	Governmental Activities
ASSETS	
Cash	$ 949,800
Accounts receivable	104,550
Prepaids and deposits	6,115
Restricted assets:	
Investments	84,722
Capital assets:	
Nondepreciable	2,927,291
Depreciable, net	1,558,622
Total assets	5,631,100
LIABILITIES	
Accounts payable and accrued expenses	11,228
Accrued interest payable	14,348
Non-current liabilities:	
Due within one year	188,000
Due in more than one year	1,023,051
Total liabilities	1,236,627
NET POSITION	
Net investment in capital assets	3,274,862
Restricted for debt service	70,374
Unrestricted	1,049,237
Total net position	$ 4,394,473

See notes to the financial statements

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA
STATEMENT OF ACTIVITIES
FOR THE FISCAL YEAR ENDED SEPTEMBER 30, 2023

Functions/Programs	Expenses	Program Revenues: Charges for Services	Net (Expense) Revenue and Changes in Net Position: Governmental Activities
Primary government:			
Governmental activities:			
General government	$ 179,595	$ 129,923	$ (49,672)
Physical environment	808,195	584,663	(223,532)
Culture and recreation	196,800	142,368	(54,432)
Interest on long-term debt	37,607	238,652	201,045
Total governmental activities	1,222,197	1,095,606	(126,591)
General revenues:			
Unrestricted investment earnings			38,855
Miscellaneous			236,641
Total general revenues			275,496
Change in net position			148,905
Net position - beginning			4,245,568
Net position - ending			$ 4,394,473

See notes to the financial statements

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA
BALANCE SHEET
GOVERNMENTAL FUNDS
SEPTEMBER 30, 2023

	Major Funds		Total
	General	Debt Service	Governmental Funds
ASSETS			
Cash	$ 949,800	$ -	$ 949,800
Investments	-	84,722	84,722
Accounts receivable	104,550	-	104,550
Prepaid items and deposits	6,115	-	6,115
Total assets	$ 1,060,465	$ 84,722	$ 1,145,187
LIABILITIES, DEFERRED INFLOWS OF RESOURCES, AND FUND BALANCES			
Liabilities:			
Accounts payable and accrued expenses	$ 11,228	$ -	$ 11,228
Total liabilities	11,228	-	11,228
Deferred inflows of resources:			
Unavailable revenue	97,547	-	97,547
Total deferred inflows of resources	97,547	-	97,547
Fund balances:			
Nonspendable for prepaid items and deposits	6,115	-	6,115
Restricted for:			
Debt service	-	84,722	84,722
Assigned for:			
Operating reserves	60,000	-	60,000
Activity center reserves	56,720	-	56,720
CAM/Fence construction reserves	10,000	-	10,000
Gate reserves	22,000	-	22,000
Gatehouse/equipment reserves	10,000	-	10,000
Lake reserves	200,000	-	200,000
Landscape reserves	43,000	-	43,000
Pool reserves	25,000	-	25,000
Roadways reserve	554,548	-	554,548
Security features reserves	15,000	-	15,000
Vehicle reserves	13,407	-	13,407
Subsequent year's expenditures	8,000	-	8,000
Unassigned	(72,100)	-	(72,100)
Total fund balances	951,690	84,722	1,036,412
Total liabilities, deferred inflows of resources, and fund balances	$ 1,060,465	$ 84,722	$ 1,145,187

See notes to the financial statements

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA
RECONCILIATION OF THE BALANCE SHEET - GOVERNMENTAL FUNDS
TO THE STATEMENT OF NET POSITION
SEPTEMBER 30, 2023

Fund balance - governmental funds		$ 1,036,412
Amounts reported for governmental activities in the statement of net position are different because:		
Capital assets used in governmental activities are not financial resources and, therefore, are not reported as assets in the governmental funds. The statement of net position includes those capital assets, net of any accumulated depreciation, in the net position of the government as a whole.		
Cost of capital assets	8,620,661	
Accumulated depreciation	(4,134,748)	4,485,913
Assets recorded in the governmental fund financial statements that are not available to pay for current-period expenditures are unavailable revenue in the governmental funds.		97,547
Liabilities not due and payable from current available resources are not reported as liabilities in the governmental fund statements. All liabilities, both current and long-term, are reported in the government-wide financial statements.		
Accrued interest payable	(14,348)	
Note payable	(7,051)	
Bonds payable	(1,204,000)	(1,225,399)
Net position of governmental activities		$ 4,394,473

See notes to the financial statements

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA
STATEMENT OF REVENUES, EXPENDITURES,
AND CHANGES IN FUND BALANCES
GOVERNMENTAL FUNDS
FOR THE FISCAL YEAR ENDED SEPTEMBER 30, 2023

	Major Funds		Total
	General	Debt Service	Governmental Funds
REVENUES			
Assessments	$ 856,954	$ 237,833	$ 1,094,787
Interest	38,855	819	39,674
Other revenue	139,094	-	139,094
Total revenues	1,034,903	238,652	1,273,555
EXPENDITURES			
Current:			
General government	176,029	3,566	179,595
Physical environment	695,740	-	695,740
Culture and recreation	173,975	-	173,975
Debt service:			
Principal	-	191,000	191,000
Interest	-	39,883	39,883
Total expenditures	1,045,744	234,449	1,280,193
Excess (deficiency) of revenues over (under) expenditures	(10,841)	4,203	(6,638)
Fund balances - beginning	962,531	80,519	1,043,050
Fund balances - ending	$ 951,690	$ 84,722	$ 1,036,412

See notes to the financial statements

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA
RECONCILIATION OF THE STATEMENT OF REVENUES, EXPENDITURES AND CHANGES IN FUND BALANCES OF GOVERNMENTAL FUNDS TO THE STATEMENT OF ACTIVITIES
FOR THE FISCAL YEAR ENDED SEPTEMBER 30, 2023

Net change in fund balances - total governmental funds	$	(6,638)
Amounts reported for governmental activities in the statement of activities are different because:		
Revenues in the statement of activities that do not provide current financial resources are not reported as revenues in the governmental fund financial statements.		97,547
Depreciation of capital assets is not recognized in the governmental fund financial statements, but is reported as an expense in the statement of activities.		(135,280)
Repayment of long-term liabilities are reported as expenditures in the governmental fund financial statements, but such repayments reduce liabilities in the statement of net position and are eliminated in the statement of activities.		191,000
The change in accrued interest on long-term liabilities between the current and prior fiscal years is recorded in the statement of activities, but not in the governmental fund financial statements.		2,276
Change in net position of governmental activities	$	148,905

See notes to the financial statements

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA
NOTES TO FINANCIAL STATEMENTS

NOTE 1 – NATURE OF ORGANIZATION AND REPORTING ENTITY

Bobcat Trail Community Development District ("District") was created on April 28, 1997 by Ordinance 97-9 of the City of North Port, Florida, pursuant to the Uniform Community Development District Act of 1980, otherwise known as Chapter 190, Florida Statutes. The Act provides among other things, the power to manage basic services for community development, power to borrow money and issue bonds, and to levy and assess non-ad valorem assessments for the financing and delivery of capital infrastructure.

The District was established for the purposes of financing and managing the acquisition, construction, maintenance and operation of a portion of the infrastructure necessary for community development within the District.

The District is governed by the Board of Supervisors ("Board"), which is composed of five members. The Supervisors are elected by the owners of the property within the District. The Board of Supervisors of the District exercise all powers granted to the District pursuant to Chapter 190, Florida Statutes.

The Board has the responsibility for:
1. Assessing and levying assessments.
2. Approving budgets.
3. Exercising control over facilities and properties.
4. Controlling the use of funds generated by the District.
5. Approving the hiring and firing of key personnel.
6. Financing improvements.

The financial statements were prepared in accordance with Governmental Accounting Standards Board ("GASB") Statements. Under the provisions of those standards, the financial reporting entity consists of the primary government, organizations for which the District is considered to be financially accountable and other organizations for which the nature and significance of their relationship with the District are such that, if excluded, the financial statements of the District would be considered incomplete or misleading. There are no entities considered to be component units of the District; therefore, the financial statements include only the operations of the District.

NOTE 2 – SUMMARY OF SIGNIFICANT ACCOUNTING POLICIES

Government-Wide and Fund Financial Statements
The basic financial statements include both government-wide and fund financial statements.

The government-wide financial statements (i.e., the statement of net position and the statement of activities) report information on all of the non-fiduciary activities of the primary government. For the most part, the effect of interfund activity has been removed from these statements.

The statement of activities demonstrates the degree to which the direct expenses of a given function or segment is offset by program revenues. *Direct expenses* are those that are clearly identifiable with a specific function or segment. *Program revenues* include 1) charges to customers who purchase, use, or directly benefit from goods, services, or privileges provided by a given function or segment; operating-type special assessments for maintenance and debt service are treated as charges for services and 2) grants and contributions that are restricted to meeting the operational or capital requirements of a particular function or segment. Other items not included among program revenues are reported instead as *general revenues*.

NOTE 2 – SUMMARY OF SIGNIFICANT ACCOUNTING POLICIES (Continued)

Measurement Focus, Basis of Accounting and Financial Statement Presentation

The government-wide financial statements are reported using the *economic resources measurement* focus and the *accrual basis of accounting*. Revenues are recorded when earned and expenses are recorded when a liability is incurred, regardless of the timing of related cash flows. Assessments are recognized as revenues in the year for which they are levied. Grants and similar items are to be recognized as revenue as soon as all eligibility requirements imposed by the provider have been met.

Governmental fund financial statements are reported using the *current financial resources measurement focus* and the *modified accrual basis of accounting*. Revenues are recognized as soon as they are both measurable and available. Revenues are considered to be *available* when they are collectible within the current period or soon enough thereafter to pay liabilities of the current period. For this purpose, the government considers revenues to be available if they are collected within 60 days of the end of the current fiscal period. Expenditures are recorded when a liability is incurred, as under accrual accounting. However, debt service expenditures are recorded only when payment is due.

Assessments

Assessments are non-ad valorem assessments on benefited lands within the District. Assessments are levied to pay for the operations and maintenance of the District. For debt service, certain amounts are collected at lot closings as advance payments and are used to prepay a portion of the Bonds outstanding. Otherwise, assessments are collected annually to provide funds for the debt service on the portion of the Bonds which are not paid with prepaid assessments. The fiscal year for which annual assessments are levied begins on October 1 with discounts available for payments through February 28 and become delinquent on April 1. The District's annual assessments for operations and debt service are billed and collected by the County Tax Assessor/Collector. The amounts remitted to the District are net of applicable discounts or fees and include interest on monies held from the day of collection to the day of distribution.

Assessments and interest associated with the current fiscal period are considered to be susceptible to accrual and so have been recognized as revenues of the current fiscal period. The portion of assessments receivable due within the current fiscal period is considered to be susceptible to accrual as revenue of the current period.

The District reports the following major governmental funds:

General Fund

The general fund is the general operating fund of the District. It is used to account for all financial resources except those required to be accounted for in another fund.

Debt Service Fund

The debt service fund is used to account for the accumulation of resources for the annual payment of principal and interest on long-term debt.

As a general rule, the effect of interfund activity has been eliminated from the government-wide financial statements.

When both restricted and unrestricted resources are available for use, it is the government's policy to use restricted resources first for qualifying expenditures, then unrestricted resources as they are needed.

Restricted Assets

These assets represent cash and investments set aside pursuant to Bond covenants or other contractual restrictions.

Deposits and Investments

The District's cash and cash equivalents are considered to be cash on hand and demand deposits (interest and non-interest bearing).

NOTE 2 – SUMMARY OF SIGNIFICANT ACCOUNTING POLICIES (Continued)

Assets, Liabilities and Net Position or Equity

Deposits and Investments (Continued)
The District has elected to proceed under the Alternative Investment Guidelines as set forth in Section 218.415 (17) Florida Statutes. The District may invest any surplus public funds in the following:

a) The Local Government Surplus Trust Funds, or any intergovernmental investment pool authorized pursuant to the Florida Interlocal Cooperation Act;
b) Securities and Exchange Commission registered money market funds with the highest credit quality rating from a nationally recognized rating agency;
c) Interest bearing time deposits or savings accounts in qualified public depositories;
d) Direct obligations of the U.S. Treasury.

Securities listed in paragraph c and d shall be invested to provide sufficient liquidity to pay obligations as they come due. In addition, surplus funds may be deposited into certificates of deposit which are insured.

The District records all interest revenue related to investment activities in the respective funds. Investments are measured at amortized cost or reported at fair value as required by generally accepted accounting principles.

Inventories and Prepaid Items
Inventories of governmental funds are recorded as expenditures when consumed rather than when purchased.

Certain payments to vendors reflect costs applicable to future accounting periods and are recorded as prepaid items in both government-wide and fund financial statements.

Capital Assets
Capital assets which include property, plant and equipment, and infrastructure assets (e.g., roads, sidewalks and similar items) are reported in the government activities columns in the government-wide financial statements. Capital assets are defined by the government as assets with an initial, individual cost of more than $5,000 (amount not rounded) and an estimated useful life in excess of two years. Such assets are recorded at historical cost or estimated historical cost if purchased or constructed. Donated capital assets are recorded at acquisition value at the date of donation.

The costs of normal maintenance and repairs that do not add to the value of the asset or materially extend assets lives are not capitalized. Major outlays for capital assets and improvements are capitalized as projects are constructed.

Property, plant and equipment of the District are depreciated using the straight-line method over the following estimated useful lives:

Assets	Years
Improvement other than buildings	5 – 15
Infrastructure	11 – 30
Equipment	5 – 10
Activity center	50

In the governmental fund financial statements, amounts incurred for the acquisition of capital assets are reported as fund expenditures. Depreciation expense is not reported in the governmental fund financial statements.

Unearned Revenue
Governmental funds report unearned revenue in connection with resources that have been received, but not yet earned.

NOTE 2 – SUMMARY OF SIGNIFICANT ACCOUNTING POLICIES (Continued)

Assets, Liabilities and Net Position or Equity (Continued)

Long-Term Obligations
In the government-wide financial statements long-term debt and other long-term obligations are reported as liabilities in the statement of net position. Bond premiums and discounts are deferred and amortized ratably over the life of the Bonds. Bonds payable are reported net of applicable premiums or discounts. Bond issuance costs are expensed when incurred.

In the fund financial statements, governmental fund types recognize premiums and discounts, as well as issuance costs, during the current period. The face amount of debt issued is reported as other financing sources. Premiums received on debt issuances are reported as other financing sources while discounts on debt issuances are reported as other financing uses. Issuance costs, whether or not withheld from the actual debt proceeds received, are reported as debt service expenditures.

Deferred Outflows/Inflows of Resources
In addition to assets, the statement of financial position will sometimes report a separate section for deferred outflows of resources. This separate financial statement element, deferred outflows of resources, represents a consumption of net position that applies to a future period(s) and so will not be recognized as an outflow of resources (expense/expenditure) until then.

In addition to liabilities, the statement of financial position will sometimes report a separate section for deferred inflows of resources. This separate financial statement element, deferred inflows of resources, represents an acquisition of net position that applies to a future period(s) and so will not be recognized as an inflow of resources (revenue) until that time.

Fund Equity/Net Position
In the fund financial statements, governmental funds report non spendable and restricted fund balance for amounts that are not available for appropriation or are legally restricted by outside parties for use for a specific purpose. Assignments of fund balance represent tentative management plans that are subject to change.

The District can establish limitations on the use of fund balance as follows:

Committed fund balance – Amounts that can be used only for the specific purposes determined by a formal action (resolution) of the Board of Supervisors. Commitments may be changed or lifted only by the Board of Supervisors taking the same formal action (resolution) that imposed the constraint originally. Resources accumulated pursuant to stabilization arrangements sometimes are reported in this category.

Assigned fund balance – Includes spendable fund balance amounts established by the Board of Supervisors that are intended to be used for specific purposes that are neither considered restricted nor committed. The Board may also assign fund balance as it does when appropriating fund balance to cover differences in estimated revenue and appropriations in the subsequent year's appropriated budget. Assignments are generally temporary and normally the same formal action need not be taken to remove the assignment.

The District first uses committed fund balance, followed by assigned fund balance and then unassigned fund balance when expenditures are incurred for purposes for which amounts in any of the unrestricted fund balance classifications could be used.

Net position is the difference between assets and deferred outflows of resources less liabilities and deferred inflows of resources. Net position in the government-wide financial statements are categorized as net investment in capital assets, restricted or unrestricted. Net investment in capital assets represents net position related to infrastructure and property, plant and equipment. Restricted net position represents the assets restricted by the District's Bond covenants or other contractual restrictions. Unrestricted net position consists of the net position not meeting the definition of either of the other two components.

NOTE 2 - SUMMARY OF SIGNIFICANT ACCOUNTING POLICIES (Continued)

Other Disclosures

Use of Estimates
The preparation of financial statements in conformity with generally accepted accounting principles requires management to make estimates and assumptions that affect the reported amounts of assets and liabilities, and disclosure of contingent assets and liabilities at the date of the financial statements, and the reported amounts of revenues and expenditures during the reporting period. Actual results could differ from those estimates.

NOTE 3 – BUDGETARY INFORMATION

The District is required to establish a budgetary system and an approved Annual Budget. Annual Budgets are adopted on a basis consistent with generally accepted accounting principles for the general fund. All annual appropriations lapse at fiscal year-end.

The District follows these procedures in establishing the budgetary data reflected in the financial statements.

a) Each year the District Manager submits to the District Board a proposed operating budget for the fiscal year commencing the following October 1.
b) Public hearings are conducted to obtain public comments.
c) Prior to October 1, the budget is legally adopted by the District Board.
d) All budget changes must be approved by the District Board.
e) The budgets are adopted on a basis consistent with generally accepted accounting principles.
f) Unused appropriation for annually budgeted funds lapse at the end of the year.

NOTE 4 – DEPOSITS AND INVESTMENTS

Deposits
The District's cash balances were entirely covered by federal depository insurance or by a collateral pool pledged to the State Treasurer. Florida Statutes Chapter 280, "Florida Security for Public Deposits Act", requires all qualified depositories to deposit with the Treasurer or another banking institution eligible collateral equal to various percentages of the average daily balance for each month of all public deposits in excess of any applicable deposit insurance held. The percentage of eligible collateral (generally, U.S. Governmental and agency securities, state or local government debt, or corporate bonds) to public deposits is dependent upon the depository's financial history and its compliance with Chapter 280. In the event of a failure of a qualified public depository, the remaining public depositories would be responsible for covering any resulting losses.

Investments
The District's investments were held as follows at September 30, 2023:

	Amortized Cost	Credit Risk	Maturities
U.S. Bank Money Market	$ 84,722	N/A	Not available
Total Investments	$ 84,722		

The commercial paper investment is held by the trustee but not in the District's name.

Credit risk – For investments, credit risk is generally the risk that an issuer of an investment will not fulfill its obligation to the holder of the investment. This is measured by the assignment of a rating by a nationally recognized statistical rating organization. Investment ratings by investment type are included in the preceding summary of investments.

Concentration risk – The District places no limit on the amount the District may invest in any one issuer.

Interest rate risk – The District does not have a formal policy that limits investment maturities as a means of managing exposure to fair value losses arising from increasing interest rates.

NOTE 4 – DEPOSITS AND INVESTMENTS (Continued)

Investments (Continued)
However, the Bond Indenture limits the type of investments held using unspent proceeds.

Fair Value Measurement – When applicable, the District measures and records its investments using fair value measurement guidelines established in accordance with GASB Statements. The framework for measuring fair value provides a fair value hierarchy that prioritizes the inputs to valuation techniques.

These guidelines recognize a three-tiered fair value hierarchy, in order of highest priority, as follows:

- *Level 1:* Investments whose values are based on unadjusted quoted prices for identical investments in active markets that the District has the ability to access;
- *Level 2:* Investments whose inputs - other than quoted market prices - are observable either directly or indirectly; and,
- *Level 3:* Investments whose inputs are unobservable.

The fair value measurement level within the fair value hierarchy is based on the lowest level of any input that is significant to the entire fair value measurement. Valuation techniques used should maximize the use of observable inputs and minimize the use of unobservable inputs.

Money market investments that have a maturity at the time of purchase of one year or less and are held by governments other than external investment pools should be measured at amortized cost. Accordingly, the District's investments have been reported at amortized cost above.

NOTE 5 – CAPITAL ASSETS

Capital asset activity for the fiscal year ended September 30, 2023 was as follows:

	Beginning Balance	Additions	Reductions	Ending Balance
Governmental activities				
Capital assets, not being depreciated				
Land and land improvements	$ 2,927,291	$ -	$ -	$ 2,927,291
Total capital assets, not being depreciated	2,927,291	-	-	2,927,291
Capital assets, being depreciated				
Improvement other than buildings	1,378,990	-	-	1,378,990
Infrastructure	3,120,529	-	-	3,120,529
Equipment	52,620	-	-	52,620
Activity center	1,141,231	-	-	1,141,231
Total capital assets, being depreciated	5,693,370	-	-	5,693,370
Less accumulated depreciation for:				
Improvement other than buildings	1,361,765	4,566	-	1,366,331
Infrastructure	2,336,685	103,906	-	2,440,591
Equipment	27,121	3,983	-	31,104
Activity center	273,897	22,825	-	296,722
Total accumulated depreciation	3,999,468	135,280	-	4,134,748
Total capital assets, being depreciated, net	1,693,902	(135,280)	-	1,558,622
Governmental activities capital assets	$ 4,621,193	$ (135,280)	$ -	$ 4,485,913

Depreciation expense was charged to function/programs as follows:

Physical Environment	$ 112,455
Culture and Recreation	22,825
Total	$ 135,280

NOTE 6 – LONG-TERM LIABILITIES

Series 2017

In September 2017, the District issued $2,273,000 of Capital Improvement Revenue Refunding Note, Series 2017 due May 1, 2029, with a fixed interest rate of 2.86%. The Note was issued to refund the outstanding Capital Improvements Revenue Refunding Bonds, Series 2005 and pay certain costs associated with the issuance of the Note. Interest is to be paid semiannually on each May 1 and November 1, commencing November 1, 2017. Principal on the Note is to be paid serially commencing May 1, 2018 through May 1, 2029.

The Series 2017 Note is subject to redemption at the option of the District prior to maturity. The Series 2017 Note is subject to extraordinary mandatory redemption prior to maturity in the manner determined by the Bond Registrar if certain events occurred as outlined in the Bond Indenture.

The Note established a debt service reserve requirement as well as other restrictions and requirements relating principally to the use of proceeds to pay for the infrastructure improvements and the procedures to be followed by the District on assessments to property owners. The District agrees to levy special assessments in annual amounts adequate to provide payment of debt service and to meet the reserve requirements. The District was in compliance with the requirements at September 30, 2023.

Note Payable

During the fiscal year ended September 30, 2009, the District signed a $148,000 noninterest bearing note payable to the Developer to pay the balance owed on land acquired from the Developer. In accordance with the note agreement, the note will be paid down as excess Series 1999A reserve funds becomes available. In a prior fiscal year $15,016 was paid on the note. This amount was paid from the remaining balance in the reserve fund. The Series 1999A Bonds were paid off during a prior year, as such there are no additional funds available to pay the remaining balance on the Note ($7,051). The District has not determined how or if the balance will be paid.

Long-term Debt Activity

Changes in long-term liability activity for the fiscal year ended September 30, 2023 were as follows:

	Beginning Balance	Additions	Reductions	Ending Balance	Due Within One Year
Governmental activities					
Bonds payable:					
Series 2017	$ 1,395,000	$ -	$ 191,000	$ 1,204,000	$ 188,000
Note payable	7,051	-	-	7,051	-
Total	$ 1,402,051	$ -	$ 191,000	$ 1,211,051	$ 188,000

At September 30, 2023, the scheduled debt service requirements on the long-term debt were as follows:

Year ending September 30:	Governmental Activities		
	Principal	Interest	Total
2024	$ 188,000	$ 34,434	$ 222,434
2025	193,000	29,058	222,058
2026	193,000	23,538	216,538
2027	209,000	18,018	227,018
2028	206,000	12,040	218,040
2029	215,000	6,150	221,150
Total	$ 1,204,000	$ 123,238	$ 1,327,238

NOTE 7 – MANAGEMENT COMPANY

The District has contracted with a management company to perform management advisory services, which include financial and accounting services. Certain employees of the management company also serve as officers of the District. Under the agreement, the District compensates the management company for management, accounting, and other administrative costs.

NOTE 8 – RISK MANAGEMENT

The District is exposed to various risks of loss related to torts; theft of, damage to, and destruction of assets; errors and omissions; and natural disasters. The District has obtained commercial insurance from independent third parties to mitigate the costs of these risks; coverage may not extend to all situations. There were no settled claims during the past three years.

NOTE 9 – LITIGATION

During the prior fiscal year, the District and Fairway Commons Homeowners Association, Inc ("parties") filed a joint lawsuit against Cloud Ten! Marketing Group, LLC ("Cloud Ten"). In August 2021, Cloud Ten abandoned its operation of the Golf Course and failed to properly operate and maintain the Well Equipment and the Conveyance System which draws and distributes water for the irrigation of the parties' various properties. As a result, the District and Fairway Commons Homeowners Association, Inc were no longer receiving an adequate supply of water to meet their irrigation needs, and instead were receiving only sporadic and inconsistent supplies of water for that purpose. The Court granted a temporary injunction order and the District had to obtain a surety injunction bond of $25,000. This allowed the District and the HOA to access the well and irrigation facilities to provide irrigation water to both entities. As of the date, the temporary injunction is still in place and litigation is still pending.

During the current fiscal year, the District has incurred a total of $97,547 in maintenance costs for the well equipment and conveyance system. The District is seeking reimbursement for these expenses from Cloud Ten and has recorded a receivable of $97,547 as of September 30, 2023, which is classified as unavailable as of September 30, 2023.

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA
SCHEDULE OF REVENUES, EXPENDITURES AND CHANGES IN FUND BALANCE - BUDGET AND ACTUAL – GENERAL FUND
FOR THE FISCAL YEAR ENDED SEPTEMBER 30, 2023

	Budgeted Amounts		Actual	Variance with Final Budget - Positive
	Original	Final	Amounts	(Negative)
REVENUES				
Assessments	$ 844,699	$ 844,699	$ 856,954	$ 12,255
Interest	4,217	4,217	38,855	34,638
Other revenue	4,900	4,900	139,094	134,194
Total revenues	853,816	853,816	1,034,903	181,087
EXPENDITURES				
Current:				
General government	160,418	184,218	176,029	8,189
Physical environment	454,202	853,502	695,740	157,762
Culture and recreation	255,503	209,502	173,975	35,527
Total expenditures	870,123	1,247,222	1,045,744	201,478
Excess (deficiency) of revenues over (under) expenditures	(16,307)	(393,406)	(10,841)	382,565
OTHER FINANCING SOURCES				
Use of fund balance	16,307	393,406	-	(393,406)
Total Other financing sources	16,307	393,406	-	(393,406)
Net change in fund balances	$ -	$ -	(10,841)	$ (10,841)
Fund balance - beginning			962,531	
Fund balance - ending			$ 951,690	

See notes to required supplementary information

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA
NOTES TO REQUIRED SUPPLEMENTARY INFORMATION

The District is required to establish a budgetary system and an approved Annual Budget for the general fund. The District's budgeting process is based on estimates of cash receipts and cash expenditures which are approved by the Board. The budget approximates a basis consistent with accounting principles generally accepted in the United States of America (generally accepted accounting principles).

The legal level of budgetary control, the level at which expenditures may not exceed budget, is in the aggregate. Any budget amendments that increase the aggregate budgeted appropriations must be approved by the Board of Supervisors. The general fund budget for the fiscal year ended September 30, 2023, was amended to increase appropriations and use of fund balance by $377,099.

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
CITY OF NORTH PORT, FLORIDA
OTHER INFORMATION – DATA ELEMENTS
REQUIRED BY FL STATUTE 218.39(3)(C)
FOR THE FISCAL YEAR ENDED SEPTEMBER 30, 2023
UNAUDITED

Element	Comments
Number of District employees compensated in the last pay period of the District's fiscal year being reported.	6
Number of independent contractors compensated to whom nonemployee compensation was paid in the last month of the District's fiscal year being reported.	9
Employee compensation	$18,400
Independent contractor compensation	$173,975
Construction projects to begin on or after October 1; (>$65K)	Not applicable
Budget variance report	See the Schedule of Revenues, Expenditures and Changes in Fund Balance - Budget and Actual - General Fund
Ad Valorem taxes;	Not applicable
Non ad valorem special assessments;	
Special assessment rate	Operations and maintenance - see below Debt service - see below
Special assessments collected	$1,094,787
Outstanding Bonds:	see Note 6 for details

Product	Operations & Maintenance FY 2023	Debt Service FY 2023
Villas	$1,381.62	$363.03
SF	$1,381.62	$457.77
SF 2	$1,381.62	$169.43
Golf/Commercial	$13,816.21	$11,700.78
Commercial	$110,331.62	$0.00
1 - 5	$3,040.03	$0.00
6	$13,254.51	$0.00
7	$22,778.90	$0.00
7.1	$3,040.03	$0.00
8	$14,622.52	$0.00
9	$3,040.03	$0.00
10	$3,131.18	$0.00
11	$25,201.86	$0.00
12	$3,313.61	$0.00
13 - 14	$3,374.40	$0.00
14	$3,374.40	$0.00

Grau & Associates
CERTIFIED PUBLIC ACCOUNTANTS

951 Yamato Road ▪ Suite 280
Boca Raton, Florida 33431
(561) 994-9299 ▪ (800) 299-4728
Fax (561) 994-5823
www.graucpa.com

INDEPENDENT AUDITOR'S REPORT ON INTERNAL CONTROL OVER FINANCIAL REPORTING AND ON COMPLIANCE AND OTHER MATTERS BASED ON AN AUDIT OF FINANCIAL STATEMENTS PERFORMED IN ACCORDANCE WITH *GOVERNMENT AUDITING STANDARDS*

To the Board of Supervisors
Bobcat Trail Community Development District
City of North Port, Florida

We have audited, in accordance with the auditing standards generally accepted in the United States of America and the standards applicable to financial audits contained in *Government Auditing Standards* issued by the Comptroller General of the United States, the financial statements of the governmental activities and each major fund of Bobcat Trail Community Development District, City of North Port, Florida ("District") as of and for the fiscal year ended September 30, 2023, and the related notes to the financial statements, which collectively comprise the District's basic financial statements, and have issued our opinion thereon dated July 15, 2024.

Report on Internal Control Over Financial Reporting

In planning and performing our audit of the financial statements, we considered the District's internal control over financial reporting (internal control) to determine the audit procedures that are appropriate in the circumstances for the purpose of expressing our opinions on the financial statements, but not for the purpose of expressing an opinion on the effectiveness of the District's internal control. Accordingly, we do not express an opinion on the effectiveness of the District's internal control.

A *deficiency in internal control* exists when the design or operation of a control does not allow management or employees, in the normal course of performing their assigned functions, to prevent, or detect and correct misstatements on a timely basis. A *material weakness* is a deficiency, or a combination of deficiencies, in internal control, such that there is a reasonable possibility that a material misstatement of the entity's financial statements will not be prevented, or detected and corrected on a timely basis. A *significant deficiency* is a deficiency, or a combination of deficiencies, in internal control that is less severe than a material weakness, yet important enough to merit attention by those charged with governance.

Our consideration of internal control was for the limited purpose described in the first paragraph of this section and was not designed to identify all deficiencies in internal control that might be material weaknesses or, significant deficiencies. Given these limitations, during our audit we did not identify any deficiencies in internal control that we consider to be material weaknesses. However, material weaknesses and significant deficiencies may exist that were not identified.

Report on Compliance and Other Matters

As part of obtaining reasonable assurance about whether the District's financial statements are free from material misstatement, we performed tests of its compliance with certain provisions of laws, regulations, contracts, and agreements, noncompliance with which could have a direct and material effect on the determination of financial statement amounts. However, providing an opinion on compliance with those provisions was not an objective of our audit, and accordingly, we do not express such an opinion. The results of our tests disclosed no instances of noncompliance or other matters that are required to be reported under *Government Auditing Standards*.

Purpose of this Report

The purpose of this report is solely to describe the scope of our testing of internal control and compliance and the results of that testing, and not to provide an opinion on the effectiveness of the entity's internal control or on compliance. This report is an integral part of an audit performed in accordance with *Government Auditing Standards* in considering the entity's internal control and compliance. Accordingly, this communication is not suitable for any other purpose.

July 15, 2024

Grau & Associates
CERTIFIED PUBLIC ACCOUNTANTS

951 Yamato Road ▪ Suite 280
Boca Raton, Florida 33431
(561) 994-9299 ▪ (800) 299-4728
Fax (561) 994-5823
www.graucpa.com

INDEPENDENT AUDITOR'S REPORT ON COMPLIANCE WITH THE REQUIREMENTS OF SECTION 218.415, FLORIDA STATUTES, REQUIRED BY RULE 10.556(10) OF THE AUDITOR GENERAL OF THE STATE OF FLORIDA

To the Board of Supervisors
Bobcat Trail Community Development District
City of North Port, Florida

We have examined Bobcat Trail Community Development District, City of North Port, Florida's ("District") compliance with the requirements of Section 218.415, Florida Statutes, in accordance with Rule 10.556(10) of the Auditor General of the State of Florida during the fiscal year ended September 30, 2023. Management is responsible for the District's compliance with those requirements. Our responsibility is to express an opinion on the District's compliance based on our examination.

Our examination was conducted in accordance with attestation standards established by the American Institute of Certified Public Accountants. Those standards require that we plan and perform the examination to obtain reasonable assurance about whether the District complied, in all material respects, with the specified requirements referenced in Section 218.415, Florida Statutes. An examination involves performing procedures to obtain evidence about whether the District complied with the specified requirements. The nature, timing, and extent of the procedures selected depend on our judgment, including an assessment of the risks of material noncompliance, whether due to fraud or error. We believe that the evidence we obtained is sufficient and appropriate to provide a reasonable basis for our opinion. Our examination does not provide a legal determination on the District's compliance with specified requirements.

We are required to be independent and to meet our other ethical responsibilities in accordance with relevant ethical requirements relating to the examination engagement.

In our opinion, the District complied, in all material respects, with the aforementioned requirements for the fiscal year ended September 30, 2023.

This report is intended solely for the information and use of the Legislative Auditing Committee, members of the Florida Senate and the Florida House of Representatives, the Florida Auditor General, management, and the Board of Supervisors of Bobcat Trail Community Development District, City of North Port, Florida and is not intended to be and should not be used by anyone other than these specified parties.

July 15, 2024

Grau & Associates
CERTIFIED PUBLIC ACCOUNTANTS

951 Yamato Road ▪ Suite 280
Boca Raton, Florida 33431
(561) 994-9299 ▪ (800) 299-4728
Fax (561) 994-5823
www.graucpa.com

MANAGEMENT LETTER PURSUANT TO THE RULES OF THE AUDITOR GENERAL FOR THE STATE OF FLORIDA

To the Board of Supervisors
Bobcat Trail Community Development District
City of North Port, Florida

Report on the Financial Statements

We have audited the accompanying basic financial statements of Bobcat Trail Community Development District, City of North Port, Florida ("District") as of and for the fiscal year ended September 30, 2023, and have issued our report thereon dated July 15, 2024.

Auditor's Responsibility

We conducted our audit in accordance with auditing standards generally accepted in the United States of America; the standards applicable to financial audits contained in G*overnment Auditing Standards,* issued by the Comptroller General of the United States; and Chapter 10.550, Rules of the Auditor General.

Other Reporting Requirements

We have issued our Independent Auditor's Report on Internal Control over Financial Reporting and on Compliance and Other Matters Based on an Audit of the Financial Statements Performed in Accordance with *Government Auditing Standards;* and Independent Auditor's Report on an examination conducted in accordance with *AICPA Professional Standards*, AT-C Section 315, regarding compliance requirements in accordance with Chapter 10.550, Rules of the Auditor General. Disclosures in those reports, which are dated July 15, 2024, should be considered in conjunction with this management letter.

Purpose of this Letter

The purpose of this letter is to comment on those matters required by Chapter 10.550 of the Rules of the Auditor General of the state of Florida. Accordingly, in connection with our audit of the financial statements of the District, as described in the first paragraph, we report the following:

I. Current year findings and recommendations.
II. Status of prior year findings and recommendations.
III. Compliance with the Provisions of the Auditor General of the State of Florida.

Our management letter is intended solely for the information and use of the Legislative Auditing Committee, members of the Florida Senate and the Florida House of Representatives, the Florida Auditor General, Federal and other granting agencies, as applicable, management, and the Board of Supervisors of Bobcat Trail Community Development District, City of North Port, Florida and is not intended to be and should not be used by anyone other than these specified parties.

We wish to thank Bobcat Trail Community Development District, City of North Port, Florida and the personnel associated with it, for the opportunity to be of service to them in this endeavor as well as future engagements, and the courtesies extended to us.

July 15, 2024

REPORT TO MANAGEMENT

I. CURRENT YEAR FINDINGS AND RECOMMENDATIONS

None

II. PRIOR YEAR FINDINGS

None

III. COMPLIANCE WITH THE PROVISIONS OF THE AUDITOR GENERAL OF THE STATE OF FLORIDA

Unless otherwise required to be reported in the auditor's report on compliance and internal controls, the management letter shall include, but not be limited to the following:

1. A statement as to whether or not corrective actions have been taken to address findings and recommendations made in the preceding annual financial audit report.

   There were no significant findings and recommendations made in the preceding annual financial audit report for the fiscal year ended September 30, 2022.

2. Any recommendations to improve the local governmental entity's financial management.

   There were no such matters discovered by, or that came to the attention of, the auditor, to be reported for the fiscal year ended September 30, 2023.

3. Noncompliance with provisions of contracts or grant agreements, or abuse, that have occurred, or are likely to have occurred, that have an effect on the financial statements that is less than material but which warrants the attention of those charged with governance.

   There were no such matters discovered by, or that came to the attention of, the auditor, to be reported, for the fiscal year ended September 30, 2023.

4. The name or official title and legal authority of the District are disclosed in the notes to the financial statements.

5. The District has not met one or more of the financial emergency conditions described in Section 218.503(1), Florida Statutes.

6. We applied financial condition assessment procedures and no deteriorating financial conditions were noted as of September 30, 2023. It is management's responsibility to monitor financial condition, and our financial condition assessment was based in part on representations made by management and the review of financial information provided by same.

7. Management has provided the specific information required by Section 218.39(3)(c) in the Other Information section of the financial statements on page 23.

Tab 3

Rizzetta & Company
Professionals in Community Management

3434 Colwell Avenue
Suite 200
Tampa, FL 33614
p: 813.514.0400
f: 813.514.0401
rizzetta.com

MEMORANDUM

TO: Board Supervisors

FROM: District Management

SUBJECT: Potential Goals and Objectives for FY 2023/2024

This memo outlines potential district goals and objectives for the 2023-2024 fiscal year in accordance with the recent legislation of HB 7013. The goals and objectives listed focus on maintaining statutory compliance while simultaneously pursuing efficiency and sound operational practices. Management advises against adopting all the proposed goals and objectives listed below. Instead, we recommend selecting a few key priorities that the board deems most advantageous to pursue.

Financial Goals and Objectives:

- Financial Transparency – commit to regularly reporting the financial status of the district.
- Budget Conscious – strive to stay within budget and provide justification for exceeding total budgeted expenditures.
- Investment Strategy - periodically review the district's investment objectives and performance.

Board Meeting Goals and Objectives:

- Productive Meetings – commit to conducting an orderly and efficient meeting.
- Audience Comments – adhere to this requirement to foster informed decision-making.
- Teamwork - work as a team and not as individuals.
- Provide a healthy and safe working environment for the board, staff and audience.
- Respect others and allow everyone that wishes to speak to be heard.

Administrative Goals and Objectives:

- Website Maintenance - ensure that the website is always up-to-date and in compliance.
- Adhere to the board's established Rules of Procedure.
- Review the district's Rules of Procedure on an annual basis (or as frequent as the board desires) and update, as necessary.
- Records Retention - periodically review the district's policy on records retention.

Operational Goals and Objectives:

- Promote efficient communication ensuring timely resolution of maintenance concerns – board and residents to contact manager outside of a meeting to report maintenance issues, not taking up time during a meeting.
- District Assets - safeguard the district's assets and ensure they are maintained in good condition.
- Ongoing Tasks - staff to provide continual updates on assigned tasks until conclusion.
- Reserve Study – if applicable, ensure periodic and consistent reviews and update as needed.

Tab 4

CONTRACT FOR PROFESSIONAL TECHNOLOGY SERVICES

DATE: July 1, 2024

BETWEEN: **RIZZETTA & COMPANY, INC.**
3434 Colwell Avenue
Suite 200
Tampa, Florida 33614

(Hereinafter referred to as "**Consultant**")

AND: **BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT**
3434 Colwell Avenue
Suite 200
Tampa, Florida 33614

(Hereinafter referred to as "**District**," and together with Consultant, the "**Parties**.")

I. The purpose of this contract for technology services (hereinafter referred to as "**Contract**") is for the Consultant to provide professional technology services to the District pursuant to Chapter 189.069, Florida Statutes. A description of these services is provided below.

A. ONE-TIME SERVICES. The Consultant shall provide the following One-Time Services to the District pursuant to this Contract:

i. **Website Content** - Consultant shall provide all required content to a third party website developer who has been retained separately by the District to design a website for the District to comply with Florida law, including, but not limited to, Chapter 189.069, Florida Statutes. The required content that shall be provided by Consultant is set forth in **Exhibit A**. Consultant shall secure and register a domain name in the District's name, which the domain shall be owned by the District, for purposes of establishing the website.

ii. **E-mail Set-up** - Consultant shall establish and register a domain name in the District's name for purposes of setting up and creating individual e-mail addresses for supervisors, staff or employees as designated by the District. Said domain name shall be owned by the District.

B. STANDARD ON-GOING SERVICES. The Consultant shall provide the following Standard On-Going Services on a monthly basis to the District pursuant to this Contract:

i. **Website Management** - Consultant shall manage the content of the website in compliance with Chapter 189.069, Florida Statutes. Consultant shall maintain the domain for the District. Consultant shall provide the website maintenance provider with documents and updated content as required in accordance with Chapter 189.0069 Florida Statutes.

ii. **E-mail** - Consultant shall provide services including ongoing maintenance of e-mail accounts, hosting and backup in accordance with public records and public records retention requirements.

II. ADDITIONAL SERVICES. In addition to the One-Time and Standard On-Going Services described above, or in any addendum executed between the Parties, the District may, from time to time, require additional services from the Consultant. Any services not specifically provided for in the scope of services above, as well as any changes in the scope requested by the District, shall be considered additional services. If any additional services are required or requested, the Consultant shall provide a detailed description of these services and fees for such services to the District for approval prior to beginning any additional services. The Consultant shall undertake the additional services after the District has issued its written approval of the description and fees for such services to the Consultant.

III. LITIGATION SUPPORT SERVICES. Upon the District's request, the Consultant shall prepare documentation in response to litigation requests and provide necessary expert testimony in connection with litigation involving the subject matter of this Contract. If the District requires or requests any litigation support services, the Consultant shall provide a detailed description of the services and fees for such services to the District for approval prior to beginning any litigation support services. The Consultant shall undertake the litigation support services after the District has issued its written approval of the description and fees for such services to the Consultant.

IV. TERM. The Consultant's services as provided in this Contract shall commence upon execution of this Contract. This Contract shall automatically renew annually unless terminated pursuant to its terms. The Consultant may change the prices only with the District's written consent.

V. FEES AND EXPENSES; PAYMENT TERMS.

A. FEES AND EXPENSES.

i. A schedule of fees for the services described in Sections I, II, and III of this Contract is shown in **Exhibit B** to this Contract, which is attached hereto and incorporated herein. The District shall pay the Consultant for the services provided under the terms of this Contract in accordance with the schedule of fees in **Exhibit B**. For purposes of the Consultant's compensation for services provided pursuant to this Contract, the District shall compensate the Consultant only for those services provided under the terms of this Contract. Unless otherwise specified by this Contract, the Consultant shall invoice the District for the Consultant's services in advance of each month and in the amounts set forth in **Exhibit B**. The fees for those services which are not being requested at the time this Contract is approved shall be provided to the District at such time as those services are required. Payment shall be made by the District within thirty (30) days of receipt of a correctly submitted invoice.

ii. Fees for the Standard On-Going Services described in this Contract may be negotiated annually by the Parties. Any amendment to Standard On-Going Services fees must comply with the amendment procedure in this Contract and must be reflected in the adopted General Fund Budget of the District. The District's adoption of the General Fund Budget shall not constitute the District's consent for payment of any expenses.

iii. In the event the District authorizes a change in the scope of services requested, Consultant shall submit, in writing to the District, a request for a fee amendment corresponding to the change in services being requested, if it has not already done so. Any change in the scope of requested services and the corresponding fee amendment shall comply with the amendment procedure in this Contract. Such amendment must be validly executed by the Parties before Consultant is authorized to begin providing services pursuant to the change in scope and the amended fees are adopted.

iv. For the purposes of this Contract, an out-of-pocket expense is an expense that the Consultant or one of its subcontractors, if applicable, incurs during the performance of the Standard On-Going Services, as provided in this Contract. Such out-of-pocket expenses are included in the fees shown in **Exhibit B**. Out-of-pocket expenses incurred in connection with the performance of Additional Services and Litigation Support Services shall be subject to reimbursement at cost. These expenses include, but are not limited to, airfare,

mileage, transportation/parking, lodging, postage and copies.

v. Fees for services to be billed on an hourly basis shall be billed at the Consultant's current hourly rates at the time of the execution of this Contract, as set forth in **Exhibit B**. The hourly rate for the services may be amended from time to time pursuant to the amendment procedure in this Contract and in advance of such proposed change. Consultant's current hourly rates are shown in **Exhibit B** to this Contract. Any proposed change shall indicate the new hourly fee for such services.

B. PAYMENT TERMS.

i. **One-Time Services.** One-Time Services shall be billed upon completion at the fixed fee shown in **Exhibit B**.

ii. **Standard On-Going Services**. Standard On-Going Services shall be billed monthly at a fixed fee pursuant to the schedule shown in **Exhibit B**.

iii. **Additional Services.** Additional Services shall be billed monthly on an hourly basis for the hours incurred at the Consultant's current hourly rate as shown in **Exhibit B**.

iv. **Litigation Support Services.** Litigation Support Services shall be billed monthly on an hourly basis for the hours incurred at the Consultant's current hourly rate as shown in **Exhibit B**.

v. **Out-of-Pocket expenses**. Out-of-Pocket expenses of the Consultant shall be billed monthly as incurred.

All invoices shall be due and payable forty-five (45) days from the date of invoice pursuant to the Prompt Payment Act, Chapter 218.70 Florida Statutes.

VI. SUSPENSION OF SERVICES FOR NON-PAYMENT. The Consultant shall have the right to suspend services being provided as outlined in this Contract if the District fails to pay Consultant's invoices in a timely manner, which shall be construed as forty-five (45) days from date of the invoice or as otherwise provided by the Prompt Payment Act, Section 218.70 Florida Statutes. Consultant shall notify the District, in writing, at least ten (10) days prior to suspending services.

VII. NON-CONTINGENCY. The payment of fees and expenses, as outlined in this Contract, are not contingent upon any circumstance not specifically outlined in this Contract.

VIII. AMENDMENT. Amendments to, and waivers of, the provisions contained in this Contract may be made only by an instrument in writing that is executed by both the District and the Consultant.

IX. RESPONSIBILITIES.

A. DISTRICT RESPONSIBILITIES. The District shall provide for the timely services of its legal counsel, engineer, and any other consultants, contractors, or employees, as required, for the Consultant to perform the duties outlined in this Contract. Expenses incurred in providing this support shall be the sole responsibility of the District unless specified herein.

B. LIMITATIONS OF RESPONSIBILITIES. To the extent not referenced herein, Consultant shall not be responsible for the acts or omissions of any other contractor, subcontractor, supplier, or of any other individual or entity performing services that are not under the control of the Consultant or its own employees, contractors, subcontractors, agents or related entities. Consultant shall not be liable for any damage that occurs from Acts of God, which are defined as those caused by windstorm, hail, fire, flood, hurricane, freezing, or other similar occurrences of nature.

X. TERMINATION. This Contract may be terminated as follows:

A. By the District for "good cause" immediately which shall include misfeasance, malfeasance, nonfeasance, or dereliction of duties by the Consultant. Termination for “good cause” shall be affected by written notice to Consultant at the address noted herein.

B. By the Consultant for “good cause”, immediately which shall include, but is not limited to, failure of the District to timely pay Consultant for services rendered in accordance with the terms set forth in this Contract, malfeasance, nonfeasance, or dereliction of duties by the District, or upon request or demand by the Board, or any member thereof, for Consultant to undertake any action or implement a policy of the Board which Consultant deems unethical, unlawful, or in contradiction of any applicable federal, state, or municipal law or rule. Termination for “good cause” shall be affected by written notice to District at the address noted herein.

C. By the Consultant or District, for any reason, upon provision of a minimum of sixty (60) days written notice of termination to the address noted herein.

D. Upon any termination, Consultant shall be entitled to the total amount of

compensation pursuant to the terms of this Contract, through the termination date, but subject to any offsets that the District may have for services not performed. Consultant shall make all reasonable effort to provide for an orderly transfer of the domain(s), e-mails, books and records of the District to the District or its designee. Upon termination, the District shall continue to own the domain name, e-mail accounts and e-mail and website content.

XI. GENERAL TERMS AND CONDITIONS.

A. All invoices are due and payable within forty-five (45) days of invoice date, or as otherwise provided by the Florida Prompt Payment Act, Section 218.70. Florida Statutes. Invoices not paid within forty-five (45) days of presentation shall be charged interest on the balance due at the maximum legally permissible rate.

B. In the event either party is required to take any action to enforce this Contract, the prevailing party shall be entitled to attorney's fees and costs, including fees and costs incurred in determining entitlement to and reasonableness of such fees and costs.

C. This Contract shall be interpreted in accordance with and shall be governed by the laws of the State of Florida. Venue for all proceedings shall be in Sarasota County, Florida.

E. In the event that any provision of this Contract shall be determined to be unenforceable or invalid by a Court of Law, such unenforceability or invalidity shall not affect the remaining provisions of the Contract which shall remain in full force and effect.

D. The rights and obligations of the District as defined by this Contract shall inure to the benefit of and shall be binding upon the successors and assigns of the District. There shall be no assignment of this Contract by the Consultant.

E. The Consultant and its officers, supervisors, staff, and employees shall use due care to protect the property of the District, its residents, and landowners from damage. The Consultant agrees to take steps to repair any damage resulting from the Consultant's activities and work pursuant to the Contract within twenty-four hours (24) hours.

F. Dissolution or court declared invalidity of the District shall not relieve the District of compensation due for services theretofore rendered.

XII. INDEMNIFICATION.

A. **DISTRICT INDEMNIFICATION.** To the extent allowable under applicable law (and only to the extent of the limitations of liability set forth in Section 768.28, Florida Statutes), and except and to the extent caused by the negligence, reckless and/or willful misconduct of the Consultant or persons or entities within Consultants control and direction, the District agrees to indemnify and hold harmless the Consultant and its officers, supervisors, staff, and employees from and against any and all liability, claims, actions, suits, demands, assessments or judgments asserted and any and all losses, liabilities, damages, costs, court costs, and expenses, including attorney's fees, that Consultant may hereafter incur, become responsible for, or be caused to pay out arising out of or relating to the negligent, reckless, and/or intentionally wrongful acts or omissions of the District that relates to the subject matter of this Contract. The indemnification provided for herein shall not be deemed exclusive of any other rights to which the Consultant may be entitled and shall continue after the Consultant has ceased to be engaged under this Contract.

CONSULTANT INDEMNIFICATION. The Consultant agrees to indemnify, defend, and hold harmless the District and its officers, supervisors, staff, and employees from and against any and all liability, claims, actions, suits, demands, assessments or judgments asserted and any and all losses, liabilities, damages, costs, court costs, and expenses, including attorney's fees, that the District may hereafter incur, become responsible for, or be caused to pay arising out of or relating to the negligent, reckless, and/or intentionally wrongful acts or omissions of the Consultant. The indemnification provided for herein shall not be deemed exclusive of any other rights to which the District may be entitled and shall continue after the Consultant has ceased to be engaged under this Contract.

The terms of this Section shall survive termination of this Contract.

B. **SOVEREIGN IMMUNITY**; **INDEMNIFICATION OBLIGATIONS**. Nothing herein shall be construed to limit the District's sovereign immunity limitations of liability as provided in Section 768.28, Florida Statutes, or other applicable law. Indemnification obligations under this Contract shall include the payment of all settlements, judgments, damages, liquidated damages, penalties, forfeitures, back pay awards, court costs, arbitration and/or mediation costs, litigation expenses, attorney fees, and paralegal fees (incurred in court, out of court, on appeal, or in bankruptcy proceedings) as ordered.

XIII. INSURANCE.

A. The District shall provide and maintain Public Official Liability and General Liability insurance policies, each in an amount not less than One Million Dollars ($1,000,000.00) throughout the term of this Contract.

B. The Consultant shall provide and maintain the following levels of insurance coverage at all times throughout the term of this Contract:

i. Worker's Compensation Insurance in accordance with the laws of the State of Florida.

ii. General Liability Insurance with the limit of One Million Dollars ($1,000,000.00) per each occurrence.

iii. Professional Liability Insurance with limit of no less than One Million Dollars ($1,000,000.00) per each occurrence.

iv. Employment Practices Liability Insurance with limit of Two Million Dollars ($2,000,000.00) per each occurrence.

v. Comprehensive Automobile Liability Insurance for all vehicles used by the Consultant's staff, whether owned or hired, with a combined single limit of One Million Dollars ($1,000,000.00).

C. Except with respect to Professional Liability and Worker's Compensation insurance policies, the District and its officers, supervisors, staff, and employees shall be listed as additional insureds on each insurance policy described above. None of the policies above may be canceled during the term of this Contract (or otherwise cause the District to not be named as an additional insured where applicable) without thirty (30) days written notice to the District. Consultant shall furnish the District with a Certificate of Insurance evidencing compliance with this section upon request. Insurance should be from a reputable insurance carrier, licensed to conduct business in the State of Florida.

D. If the Consultant fails to secure or maintain the required insurance, the District has the right (without any obligation to do so, however) to secure such required insurance, in which event the Consultant shall pay the cost for that required insurance and shall furnish, upon demand, all information that may be required in connection with the District's obtaining the required insurance.

XIV. ASSIGNMENT. Except as provided in this section, neither the District nor the Consultant may assign this Contract or any monies to become due hereunder without the prior written approval of the other. Any assignment attempted to be made by the Consultant or the District without the prior written approval of the other party is void.

XV. COMPLIANCE WITH PUBLIC RECORDS LAWS. Consultant understands and agrees that all documents of any kind provided to the District in connection with this Contract may be public records, and, accordingly, Consultant agrees to comply with all applicable provisions of Florida law in handling such records, including but not limited to Section 119.0701, Florida Statutes. Consultant acknowledges that the designated public records custodian for the District is Rizzetta & Company, Inc. ("Public Records Custodian"). Among other requirements and to the extent applicable by law, the Consultant shall 1) keep and maintain public records required by the District to perform the service; 2) upon request by the Public Records Custodian, provide the District with the requested public records or allow the records to be inspected or copied within a reasonable time period at a cost that does not exceed the cost provided in Chapter 119, Florida Statutes; 3) ensure that public records which are exempt or confidential and exempt from public records disclosure requirements, are not disclosed except as authorized by law for the duration of the contract term and following the contract term if the Consultant does not transfer the records to the Public Records Custodian of the District; and 4) upon completion of the Contract, transfer to the District, at no cost, all public records in Consultant's possession or, alternatively, keep, maintain and meet all applicable requirements for retaining public records pursuant to Florida laws. When such public records are transferred by the Consultant, the Consultant shall destroy any duplicate public records that are exempt or confidential and exempt from public records disclosure requirements. All records stored electronically must be provided to the District in a format that is compatible with Microsoft Word or Adobe PDF formats.

IF THE CONSULTANT HAS QUESTIONS REGARDING THE APPLICATION OF CHAPTER 119, FLORIDA STATUTES, TO THE CONSULTANT'S DUTY TO PROVIDE PUBLIC RECORDS RELATING TO THIS CONTRACT, CONTACT THE CUSTODIAN OF PUBLIC RECORDS AT (813) 514-0400, OR BY EMAIL AT INFO@RIZZETTA.COM, OR BY REGULAR MAIL AT 3434 COLWELL AVENUE, SUITE 200, TAMPA, FLORIDA 33614.

XVI. NOTICES. All notices, requests, consents and other communications under this Contract ("**Notices**") shall be in writing and shall be delivered, mailed by First Class Mail, postage prepaid, or overnight delivery service, to the parties, as follows:

If to the District: Bobcat Trail Community Development District
3434 Colwell Avenue, Suite 200
Tampa, Florida 33614
Attn: District Manager

With a copy to: Persson, Cohen, Mooney, Fernandez & Jackson, P.A.
6853 Energy Court
Lakewood Ranch, FL 34240
Attn: R. David Jackson

If to the Consultant: Rizzetta & Company, Inc.
3434 Colwell Avenue, Suite 200
Tampa, Florida 33614

Except as otherwise provided in this Contract, any Notice shall be deemed received only upon actual delivery at the address set forth above. Notices delivered after 5:00 p.m. (at the place of delivery) or on a non-business day, shall be deemed received on the next business day. If any time for giving Notice contained in this Contract would otherwise expire on a non-business day, the Notice period shall be extended to the next succeeding business day. Saturdays, Sundays, and legal holidays recognized by the United States Government shall not be regarded as business days. Counsel for the District and counsel for the Consultant may deliver Notice on behalf of the District and the Consultant, respectively. Any party or other person to whom Notices are to be sent or copied may notify the other parties and addressees of any change in name or address to which Notices shall be sent by providing the same on five (5) days written notice to the parties and addressees set forth herein.

XVII. EFFECTIVE DATE. This Contract shall become effective on July 1, 2024 and shall remain effective until terminated by either the District or the Consultant in accordance with the provisions of this Contract.

XVIII. HEADINGS FOR CONVENIENCE ONLY. The descriptive headings in this Contract are for convenience only and shall neither control nor affect the meaning or construction of any of the provisions of this Contract.

XIX. AGREEMENT; CONFLICTS. This instrument, together with accompanying **Exhibit A**, shall constitute the final and complete expression of this Contract between the District and the Consultant relating to the subject matter of this Contract. To the extent of any conflict between this instrument and **Exhibit A**, this instrument shall control.

XX. DEFAULT AND PROTECTION AGAINST THIRD PARTY INTERFERENCE. A default by either the District or the Consultant under this Contract shall entitle the other to all remedies available at law or in equity, which may include, but not be limited to, the right of damages, injunctive relief, and/or specific performance. The District shall be solely responsible for enforcing its rights under this Contract against any interfering third party. Nothing contained in this Contract shall limit or impair the District's right to protect its rights from interference by a third party to this Contract.

XXI. THIRD PARTY BENEFICIARIES. This Contract is solely for the benefit of the District and the Consultant and no right or cause of action shall accrue upon or by reason, to or for the benefit of any third party not a formal party to this Contract. Nothing in this Contract, express or implied, is intended or shall be construed to confer upon any person or corporation other than the District and the Consultant any right, remedy, or claim under or by reason of this Contract or any of the provisions or conditions of this Contract; and all of the provisions, representations, covenants, and conditions contained in this Contract shall inure to the sole benefit of and shall be binding upon the District and the Consultant and their respective representatives, successors, and assigns.

XXII. COMPLIANCE WITH GOVERNMENTAL REGULATION. The Consultant shall keep, observe, and perform all requirements of applicable local, State, and Federal laws, rules, regulations, and ordinances in performing the services under this Contract. If the Consultant fails to notify the District in writing within five (5) days of the receipt of any notice, order, required to comply notice, or a report of a violation or an alleged violation, made by a local, State, or Federal governmental body or agency or subdivision thereof with respect to the services being rendered under this Contract or any action of the Consultant or any of its agents, servants, employees, or materialmen, or with respect to terms, wages, hours, conditions of employment, safety appliances, or any other requirements applicable to provision of services, or fails to comply with any requirement of such agency within five (5) days after receipt of any such notice, order, request to comply notice, or report of a violation of an alleged violation, the District may terminate this Contract, such termination to be effective immediately upon the giving of notice of termination.

XXIII. ARM'S LENGTH TRANSACTION. This Contract has been negotiated fully between the District and the Consultant as an arm's length transaction. The District and the Consultant participated fully in the preparation of this Contract with the assistance of their respective counsel. In the case of a dispute concerning the interpretation of any provision of this Contract, the Parties are deemed to have drafted, chosen, and selected the language, and any doubtful language shall not be interpreted or construed against any party.

XXIV. COUNTERPARTS. This Contract may be executed in any number of counterparts, each of which when executed and delivered shall be an original; however, all such counterparts together shall constitute, but one and the same instrument.

XXV. E-VERIFICATION. Pursuant to Section 448.095(2), Florida Statutes,

A. Contractor represents that Contractor is eligible to contract with the District and is currently in compliance and shall remain in compliance, for as long as it has any obligations under this Agreement, with all requirements of the

above statute; this includes, but is not limited to, registering with and using the United States Department of Homeland Security's E-Verify system to verify the work authorization status of all employees hired on or after January 1, 2021.

B. If the District has a good faith belief that the Contractor has knowingly violated Section 448.09(1), Florida Statutes, the District shall terminate this Agreement as required by Section 448.095(2)(c), Florida Statutes. If the District has a good faith belief that a subcontractor knowingly violated Section 448.09(1), Florida Statutes, but the Contractor otherwise complied with its obligations thereunder, the District shall promptly notify the Contractor and the Contractor shall immediately terminate its contract with the subcontractor.

C. If this Agreement is terminated in accordance with this section, then the Contractor shall be liable for any additional costs incurred by the District.

XXVII. FORCE MAJEURE. The parties hereto shall be excused from the obligation to perform pursuant to the terms of this Contract to the extent that such party's performance is prevented due to any delay, or stoppage due to strikes, lockouts, labor disputes, labor shortages, acts of war, terrorism, terrorist activities, pandemic, epidemic, banking or financial institution closures, inability to obtain services from third parties, governmental actions, civil commotions, fire, flood, hurricane, earthquake, or other casualty, and other causes beyond the reasonable control of the party obligated to perform (collectively, a "**Force Majeure**"), except with respect to amounts to be paid by the District for services actually provided by the Agent pursuant to this Contract during a Force Majeure. Notwithstanding anything to the contrary contained in this Contract, a Force Majeure shall excuse the performance of such party for a period equal to any such prevention, delay or stoppage and, therefore, if this Contract specifies a time period for performance of an obligation of either party (other than payment to the Agent by District for services actually provided during a Force Majeure unless there is an event causing banking or financial institution closures), that time period shall be extended by the period of any delay in such party's performance caused by a Force Majeure. The foregoing shall not be interpreted as extending the term or renewal term of this Contract.

XXVIII. DISLCOSURE. Rizzetta & Company, Inc. is an affiliate of FirstService Residential Florida, Inc.

[Intentionally Left Blank]

Therefore, the Consultant and the District each intend to enter this Contract, understand the terms set forth herein, and hereby agree to those terms.

ACCEPTED BY:

RIZZETTA & COMPANY, INC.

BY: _____

PRINTED NAME: William J. Rizzetta

TITLE: President

DATE: _____

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT

BY: _____

PRINTED NAME: _____

TITLE: _____

DATE: _____

Exhibit A – Scope of Services
Exhibit B – Schedule of Fees

EXHIBIT A
Scope of Services

REQUIRED WEB SITE CONTENT: Pursuant to section 189.016 & 189.069, Florida Statutes, special district web sites are required to include and make available the following information or documents, which requirements may be changed from time to time. Changes to the requirements may be subject to additional fees:

1. The full legal name of the special district.
2. The public purpose of the special district.
3. The name, official address, official e-mail address, and, if applicable, term and appointing authority for each member of the governing body of the special district.
4. The fiscal year of the special district.
5. The full text of the special district's charter, the date of establishment, the establishing entity, and the statute or statutes under which the special district operates, if different from the statute or statutes under which the special district was established. Community development districts may reference chapter 190 as the uniform charter but must include information relating to any grant of special powers.
6. The mailing address, e-mail address, telephone number, and website uniform resource locator of the special district.
7. A description of the boundaries or service area of, and the services provided by, the special district.
8. A listing of all taxes, fees, assessments, or charges imposed and collected by the special district, including the rates or amounts for the fiscal year and the statutory authority for the levy of the tax, fee, assessment, or charge. For purposes of this subparagraph, charges do not include patient charges by a hospital or other health care provider.
9. The primary contact information for the special district for purposes of communication from the department.
10. A code of ethics adopted by the special district, if applicable, and a hyperlink to generally applicable ethics provisions.
11. The budget of the special district and any amendments thereto in accordance with s. 189.016.
12. Tentative budgets shall be posted at least two (2) days before the budget hearing and remain on District website for forty-five (45) days.
13. Final adopted budgets shall be posted within thirty (30) days after adoption and remain on District website for two (2) years.
14. Budget amendments shall be posted within five (5) days after adoption and remain on District website for two (2) years.
15. The final, complete audit report for the most recent completed fiscal year and audit reports required by law or authorized by the governing body of the special district

or a link to the District's most recent final, complete audit report on the Auditor General's website.

16. A listing of the District's regularly scheduled public meetings as required by s. 189.015(1).
17. The link to the Department of Financial Services' website as set forth in s. 218.32(1)(g).
18. At least seven (7) days before each meeting or workshop, the agenda of the event, The information must remain on the website for at least one (1) year after the event.

[Intentionally Left Blank]

EXHIBIT B
Schedule of Fees

One-Time Services shall be billed upon completion:

Website Content:	Yes____	No____	$ 750.00
Email Set-up:	Yes____	No____	$ 500.00
Total One-Time Services:			**$ _____**

Standard On-Going Services shall be billed in advance monthly pursuant to the following schedule:

		MONTHLY
Website Management:		$ 100.00
Email (50 GB per user) at $20.00 per month per account:		
Board Supervisor Account	__5___ X $20.00	$ 100.00
Onsite Staff Account	_____ X $20.00	$_____
Miscellaneous Account	_____ X $20.00	$_____
Total Standard On-Going Services:		**$ 200.00**

Tab 5

CustomReserves LLC

PREPARED FOR:

Bobcat Tail

Community Development District

Reserve Study Proposal

PREPARED BY:

Paul Grifoni, PRA, RS

Engineer
Reserve Specialist, RS
Professional Reserve Analyst, PRA
Licensed Home Inspector

Custom Reserves

5470 E Busch Blvd., Unit 171
Tampa, Fl 33617
Office: (888) 927-7865
Fax: (813) 200-8448
www.CustomReserves.com

Bobcat Tail Community Development District
Reserve Study Proposal

Scott Brizendine
District Manager

Bobcat Tail Community Development District
Reference #1471

1352 Bobcat Trail Boulevard
North Port, Florida



Dear Board of /Supervisors:

Thank you for the opportunity to be of service to your community. Custom Reserve's takes great pride in our work and in helping all our clients navigate through the Reserve Study process.

A Reserve Study is a key financial planning tool that helps Management and the Board in maintaining the common property components and planning for the future.

Included in Your Reserve Study:

- **Excellent communication** with our team. Custom Reserve's listen to its clients' concerns. From the timing of the inspection and report delivery to the financial or physical aspects of the community, Custom Reserve's always listen and hear your concerns.
- **Industry-leading experience** in all varieties of associations, community development districts, cooperatives commercial properties, and more! With over 25 years of experience in the industry, Custom Reserve's take the guess work out of budget season.
- **Timely contract completion** is a must. Custom Reserve's understands how important your receivables can be for budget and community meetings. Custom Reserve's takes great care in saying what it means and meaning what is said when it comes to delivery.
- **Accuracy** in results. The results depicted in a reserve study are only as good as the estimates of useful life, replacement cost and age of the individual components. More experience leads to greater accuracy in our product.
- **Relationship-building** is paramount. A reserve study should be updated periodically to keep up to date with changes in construction costs, inflation and interest rate, and new technology. Custom Reserve's puts our client relationships at the forefront of our core values.

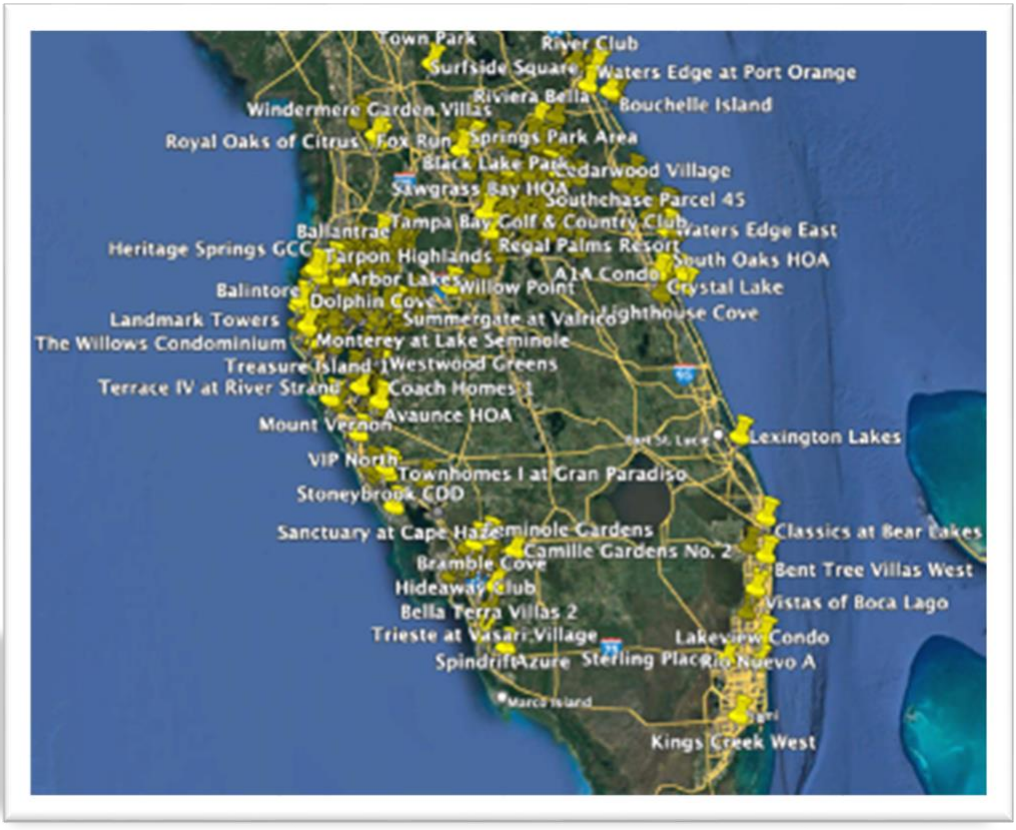
Benefits of a Custom Reserves Report

- **Proper and accurate** reserve planning for the future
- **Increased awareness** of upcoming major property repairs and replacements
- **Maximized** property and re-sale values when adequately funded
- **Increased** likelihood of loans being granted by lenders when adequately funded
- **Decreased** stress in knowing that a special assessment is not looming around the corner!

Click Here
For More Information



Florida Clients Served



Report Content and Data Visualization

CONDITION MODEL

Component Type	Component Name	Condition	Urgency	1st Year of Replacement
Exterior Building	Chimney Caps, Partial Replacements	5		2027
Exterior Building	Roofs, Aluminum-Coated Shakes (Incl. Soffit and Fascia)	6		2050
Exterior Building	Walls, Siding, Wood, Paint Finishes, Phased	6		2023
Exterior Building	Walls, Siding, Wood, Partial Replacements	6		2023
Property Site	Asphalt Pavement, Crack Repair and Patch	4		
Property Site	Asphalt Pavement, Mill and Overlay, Phased	4		
Property Site	Concrete Streets and Common Flatwork, Partial Replacement	5		
Property Site	Light Fixtures, Bollards (Incl. Pool Area)	6		
Property Site	Pipes, Subsurface Utilities, Partial Replacement	7		
Clubhouse	Clubhouse, Deck, Composite and Wood, Replacement (Incl. Rail)	10		
Clubhouse	Clubhouse, Exterior Renovation	7		
Clubhouse	Clubhouse, HVAC Equipment, Replacement	7		
Clubhouse	Clubhouse, Interior Renovations	6		
Clubhouse	Clubhouse, Parking Area and Pool, Light Poles and Fixtures	7		
Clubhouse	Clubhouse, Roof, Aluminum (Incl. Gutters and Downspouts)	8		2050
Clubhouse	Clubhouse, Windows and Doors	6		2028
Pool	Pool, Bulkhead, Wood, Replacement	3		2024
Pool	Pool, Deck, Pavers, Replacement (Incl. Clubhouse Area)	4		2028
Pool				
Pool				
Pool				

Easily view components by **Condition** and **Urgency**

PROPERTY COMPONENT MODEL

COMPONENT	COMMON COMPONENTS (X) RESERVES	OPERATING	LONG-LIVED	REMAINING COMPONENTS (O) OWNER	OTHER
Asphalt Pavement, Crack Repair and Patch	X				
Asphalt Pavement, Mill and Overlay, Phased	X				
Chimney Caps, Partial Replacements	X				
Clubhouse, Bicycle Rack		X			
Clubhouse, Deck, Composite and Wood, Replacement (Incl. Rail)	X				
Clubhouse, Exterior Renovation	X				
Clubhouse, HVAC Equipment, Replacement	X				
Clubhouse, Interior Renovations	X				
Clubhouse, Parking Area and Pool, Light Poles and Fixtures	X				
Clubhouse, Roof, Aluminum (Incl. Gutters and Downspouts)	X				
Windows and Doors	X				
iveways at Cluster Homes				O	
eets and Common Flatwork, Partial Replacement	X				
ge, Serving Cluster Homes				O	
lkways, Serving Cluster Homes				O	
ss Than $7,000		X			
s					O
s)			X		
and Associated Components					O
Downspouts, Serving Cluster Homes				O	
ystem Air Conditioners, Serving Cluster Homes				O	
rrigation System, Controls		X			
Irrigation System, Pumps		X			
Light Fixtures, Bollards (Incl. Pool Area)	X				
Light Fixtures, Exterior, Serving Cluster Homes		X			
Light Poles and Fixtures at Streets					O
Other Repairs Normally Funded Through the Operating Budget		X			
Pipes, Subsurface Utilities, Partial Replacement	X				
Ponds, Serving Golf Course					O
Pool, Bulkhead, Wood, Replacement	X				
Pool, Deck, Pavers, Replacement (Incl. Clubhouse Area)	X				
Pool, Fence, Metal, Replacement	X				
Pool, Finishes, Plaster and Tile (Incl. Coping)	X				
Pool, Structure and Deck, Total Replacement	X				
Pool, Trash Receptacles		X			

Easily view components by **Funding Source** and **Responsibility**

Bobcat Tail Community Development District
Reserve Study Proposal

Objectives

Conduct an on-site inspection of the common property, document condition and forecast a customized funding plan required to replace or repair these elements as they wear out over the course of their useful lives.

Scope of Services

1. An on-site meeting with Management and/or the Board.
2. Physical Analysis that includes an on-site inspection of the common property documented by photographs.
3. 30-year replacement/repair schedule that includes custom useful lives.
4. Financial Analysis with a 30-year Cash Flow and/or Component method of funding.
5. Electronic copy in PDF format of the Reserve Study that includes a detailed narrative including tables, graphs and charts depicting the findings.
6. Expenditures and Funding Plan in Excel upon request.
7. One hard copy of the Full Reserve Study upon request.
8. Free unlimited phone and online support.
9. One revision of the study up to the end of the current fiscal year.

Affiliations

Our services are provided by an Engineer with reserve study credentials from the Association of Professional Reserve Analysts (APRA) and Community Associations Institute (CAI). Additional qualifications include a Licensed Home Inspector with the Florida Association of Building Inspectors, construction management experience including estimating and scheduling.

Custom Reserves experience includes inspection and condition analysis of hundreds of communities. A partial list of relevant experience is included on the last page.

When the Reserve Study is complete, your community will have access to live support and edit capability until the budget is approved. These revisions include adjustments to variables such as costs, times of replacement, inflation, and interest rates.

Cost estimates are based on localized information gathered from resources that include, but are not limited to, local vendors and industry databases, combined with experience in home building, site development and actual data gathered from conducting thousands of reserve studies, collectively. Useful lives are generated from several factors such as environment, construction materials and historical information.

Client Responsibilities

This project requires involvement by your accounting personnel. To help achieve a smooth and successful implementation, it will be your responsibility to perform the following:

1. Include a copy of the financial statements i.e. (balance sheet, income statement and/or copy of the annual budget along with other financial reports.)
2. Supply the governing documents if applicable.
3. Provide access to all common areas.
4. Disclose known historical information.

Report Use

You may show our report in its entirety to those third parties who need to review the information contained herein. The Client and other third parties viewing this report should not reference Custom Reserves or our report, in whole or in part, in any document prepared and/or distributed to third parties without our written consent. This report contains intellectual property by Custom Reserves, LLC specified to this engagement.

Client agrees to indemnify and hold harmless Custom Reserves against any and all loses, claims, actions, damages, expenses or liabilities, including attorney's fees, to which Custom Reserves may become subject in connection with this engagement, because of any false, misleading or incomplete information supplied by client or third parties under client's control or direction.

The inspection and analysis of the subject property is limited to visual observations and is noninvasive. Custom Reserves does not investigate, nor assume any responsibility for any existence or impact of any hazardous materials, structural, latent or hidden defects which may or may not be present on or within the property. Our opinions of estimated costs and remaining useful lives are not a guarantee or a warranty of the common components.

Client Name

Custom Reserves maintains the confidentiality of all conversations, documents provided and the contents of the report, subject to legal or administrative process or proceedings. These conditions can only be modified by written documents executed by both parties.

Click Here
For Sample Report



Components Anticipated to be Included in Your Custom Reserve Study

Component Category	Component Name
Clubhouse	Exterior Renovations | HVAC Equipment | Interior Renovations | Roof | Windows and Doors
Pool	Deck | Fence | Finishes (Plaster and Tile) | Furniture | Mechanical Equipment | Rest Room Renovations
Property Site	Asphalt Pavement | Concrete Flatwork | Gate Entry System | Guard House | Irrigation System | Lighting | Pavers | Perimeter Walls | Ponds | Storm Water System | Signage | Recreational Court

Confirmation of Services

Fee estimates are based on the components summarized in the previous table. The fee for this Full Reserve Study is ---------- **$5,400**.

Custom Reserves appreciates the opportunity to be of service. Upon acceptance of this proposal, **please sign and return this page along with a fifty percent (50%) retainer payment**. We will contact you to schedule a site visit and inspection upon receipt of this payment. The remaining balance will be due upon receipt of the report.

This letter sets forth the understanding of the District and serves as confirmation of services provided by Custom Reserves.

Owner reserves the right to reject any and/or all Proposals received, and to rebid if the Owner deems necessary. Owner is not subject to pay any costs incurred by Vendors in the preparation and submission of their Proposals.

Sincerely,

Paul Grifoni, PRA, RS
Engineer
Reserve Specialist
Professional Reserve Analyst
Licensed Insurance Adjuster
Licensed Home Inspector

5470 E Busch Blvd., Unit 171
Tampa, Fl 33617
Office: (888) 927-7865
Fax: (813) 200-8448
contact@customreserves.com
www.CustomReserves.com

Accepted By Title Date

OPTIONAL future services are available upon request as depicted below. If your Association is interested in any of the following services, **please check the appropriate box** and we can provide pricing upon completion of the current reserve study. Please note that a non-site update can only be conducted one time between site visits.

- ☐ Annual Review of the 30-year expenditures and funding plan(s) only
- ☐ Non-site update
- ☐ Update with site visit

Experience

Experience includes condominiums, homeowners associations, planned unit developments, property owner associations, co-operatives and community development districts with construction styles that range from townhouses to hi-rises. Other experience includes specialty establishments such as golf clubs, international properties, vacation ownership resorts (timeshares) as well as worship, retreat and camp facilities.

A partial list of recent reserve study experience follows below:

Venetian Community Development District is a local unit of special purpose government located within North Venice, FL built from 2003 through 2015 shared by 1,377 property owners. The development contains over 11 miles of roadways, fencing, gate systems, guard house, security system, perimeter wall, irrigation, pavers, signage ponds and storm water system, over 15,000 square feet of clubhouse and amenity center that includes resort style pools and recreational courts.

Paseo Community Development District is a local unit of special purpose government established in 2007 and located in Fort Myers, FL shared by 1,146 unit owners. The development contains asphalt pavement, vehicular bridge, storm water system, dock, signage, gate system, fences, gazebos, irrigation, lighting, pavers, railings, retaining walls, tile roofs, ponds, and aerators.

Lucaya Community Development District is a local unit of special purpose government established in 2006 and located in Fort Myers, FL shared by 360 unit owners. The development contains lift stations and a storm water system.

Legends Bay Community Development District is a local unit of special purpose government located in Bradenton, FL, 250 homes established in 2007 that contains subsurface utilities, ponds, signage, fences and perimeter walls.

Lake Club Homeowners' Association is a large, planned unit development located in Lakewood Ranch, Fl. Lake Club was established in 2005. The development contains a clubhouse with two pools, tennis center and property site components located throughout the community.

Harbor Bay Community Development District owns and operates the community areas of Mira Bay in Apollo Beach FL including common areas, recreational facilities, public roadways, storm water management systems, street lighting, landscaping, clubhouse with café, lap pool, waterslide, clay tennis courts 35,000 linear feet of sea wall, boatlifts.

FLORIDA RESERVE STUDY AND APPRAISAL

July 25, 2024

Bobcat Trail CDD
c/o Rizzetta and Company
9530 Marketplace Rd, Suite 206
Fort Myers, FL 33912

RE: Full Service Reserve Study with Site Inspection
Bobcat Trail CDD
1352 Bobcat Trail
North Port, FL 34288

Dear Board of Supervisors:

We are very appreciative for the opportunity to perform a full reserve study with site inspection and recommendations for Bobcat Trail CDD. We are a team of knowledgeable reserve analysts with extensive experience and take pride in performing reserve studies. The reserve study will project costs and funding for a 30 year time frame for all common areas and improvements.

Bobcat Trail CDD commenced operations in April 1997. The community started home construction soon after and the construction was gradual over the next decade. The community is comprised primarily of single family home as well as some villas. There are 557 total community units that contribute to the CDD. The CDD consists of 369.94 acres and is located in North Port, Sarasota County, Florida. After a review of plats, aerials, and county records, we recommend the following reserve items to be included in the report:

- **Clubhouse**
- **Tennis Court**
- **Parking Area**
- **Pool Area and Equipment**
- **Streets**
- **Sidewalks**
- **Stormwater Drainage**
- **Ponds**
- **Pool Cabana**
- **Fencing**
- **Guardhouse/Gates**
- **Entry Monuments**
- **Street Lights**
- **Irrigation Pumphouse**
- **Any Other Items Specified by You**

The physical analysis portion of the reserve study will include a reserve item component list, remaining life, useful life, current cost, future cost of all reserve items as well as any site recommendations. The financial analysis portion of the study will include allowances for your interest income, taxes and projected changes in building costs. The pooled method and component method (if applicable) will be used and presented to derive the funding schedules.

PHONE : 813.932.1588
FAX : 813.388.4189
WEB : www.reservestudyfl.com
ADDRESS : 12407 N Florida Ave, Tampa, FL 33612

Scope of Service

Our scope of service for a full service reserve study with site inspection that includes all expenses consists of:

- Site inspection of common areas and improvements with both a Certified General Contractor and a CAI-designated Reserve Specialist (Both are degreed engineers).

- Our user-friendly reserve study report that includes narrative, photographs, pooled method cash flow plan, component method plan (if applicable), reserve item component cost, remaining life, and useful life inventory. The report projects costs and funding for 30 years using localized costs.

- Percent Funded Analysis. This compares what you have in reserve funds to what the ideal amount should be, something many reserve studies do not include.

- One site meeting with management or the board on the day of inspection, if requested.

- Electronic copies of the report. Electronic copies can also be requested any time in the future by email. A hard copy is available free of charge upon request.

- Revisions or amendments of reports for up to 90 days from the first submission of the report. We welcome all feedback. (It is not uncommon for there to be one or two refinements of the report to meet your specific requirements).

- Accessibility. Call, write, or email us any time and you will receive prompt follow-up. We aim to exceed expectations and consider customer service our top priority.

- 30 year cash flow plan in the report.

- Review of plats, drawings, and site aerials.

PHONE : 813.932.1588
FAX : 813.388.4189
WEB : www.reservestudyfl.com
ADDRESS : 12407 N Florida Ave, Tampa, FL 33612

Qualifications

Paul Gallizzi and Steven Swartz are professionals in the business of preparing reserve studies and insurance appraisals for community associations. We both inspect all properties and have provided detailed analysis of over 300,000 single family, apartment, villa, townhome, and condominium units. Our high repeat customer rate indicates high customer satisfaction. We have prepared reserve studies and insurance appraisals for all types of community associations including high rise condominiums, mid-rise condominiums, garden-style condominiums, office condominiums, medical condominiums, townhouse developments, single family residential homeowners associations, community development districts, and special use facilities.

We both hold engineering degrees from fully accredited universities. Paul is a State Certified General Real Estate Appraiser License Number RZ 110 and a State Certified General Contractor License Number CGC 019465 with over 30 years of experience in each. Steven is one of approximately only 200 people nationwide that have earned the designation of Reserve Specialist (RS) from the Community Associations Institute and is a State Certified General Real Estate Appraiser License Number RZ 3479. He has also been a speaker at CAI functions discussing reserves and budgeting. To learn more, please visit us on the web at www.reservestudyfl.com and visit our articles section for more than 50 articles about reserves, funding, and budgeting.

A partial list of our clients include:

- Greenacre Properties
- Standard Pacific Homes
- Leland Management
- M/I Homes
- Associa Gulf Coast
- Sentry Management
- Starwood Land Ventures
- Management & Associates
- Resource Property Management
- Condominium Associates
- Insurance Office of America
- Argus Property Management
- Creative Management
- Many Other Individually Managed Associations
- The Mahaffey Apartment Company
- Rizzetta & Company
- First Service Residential
- Brown & Brown Insurance
- Taylor Morrison Homes
- Vanguard Management Group
- Lennar Homes
- McNeil Management Services
- Development Planning and Financing Group
- Qualified Property Management
- Avid Property Management
- Southshore Property Management
- Terra Management Services

PHONE : 813.932.1588
FAX : 813.388.4189
WEB : www.reservestudyfl.com
ADDRESS : 12407 N Florida Ave, Tampa, FL 33612

Experience

Here is a short list of communities we have conducted reserve studies for, showing experience with various construction types, building systems, and community amenities:

Fishhawk CDD I, CDD II, CDD III, & CDD IV, Lithia, Florida
Fishhawk Ranch is a large planned community consisting of approximately 3000 acres in Lithia, Florida. It is comprised of numerous single family home subdivisions as well as a few townhome subdivisions. There are many community amenities including swimming pools, clubhouses, tennis courts, playgrounds, fitness centers, a banquet center, running trails, parks, and various others. The District also maintains the ponds, stormwater drainage, and the entry areas. There are a total of 6,286 members.

Heritage Harbour South CDD, Bradenton, Florida
Heritage Harbour South CDD is comprised of single family residential and multifamily residences. The community started construction in 2002 and construction finished in 2006. Overall, there are 1,523 units. The CDD maintains the baseball field and recreation area. The District also maintains the streets, ponds, stormwater drainage, and the entry areas. The CDD encompasses a total site size of 980.79 acres in Bradenton, Florida.

Riverwood CDD, Port Charlotte, FL
Riverwood CDD started development in the mid 1990s and most of the construction was complete over the next decade. The District maintains an amenity campus with a clubhouse/athletic center, pool area, tennis, and shuffleboard courts. The district also owns an off-site Beach Club on Manasota Key in Englewood. The Beach Club was built in 2003 and acquired in 2014. Additionally, the District also maintains the streets, potable water system, re-claimed water system, sewer system (and plant), and stormwater drainage.

Two Creeks CDD, Middleburg, FL
Two Creeks has 624 platted lots planned for single family residential development and encompasses 625 acres. The community was platted in June 2007. Within the district, there is a recreation comprised of a clubhouse, pool area, 2 tennis courts, a basketball court, playgrounds, and a volleyball court. The community also maintains the ponds, stormwater drainage, and the entry areas.

Orchard Hills HOA, Winter Garden, Florida
Orchard Hills is comprised of 605 units, most of which are single family homes. Townhomes make up the other portion of housing in the community. The association is responsible for maintaining the clubhouse and fitness center, pool area and equipment, alleys and parking areas, 3 entry areas with monuments, dog park, 2 playgrounds, walls and fencing, and irrigation system. Construction in the community started in 2014. Total site size for the community is approximately 200 acres.

PHONE : 813.932.1588
FAX : 813.388.4189
WEB : www.reservestudyfl.com
ADDRESS : 12407 N Florida Ave, Tampa, FL 33612

Services

The fee schedule for the current assignment is as follows, please sign below to confirm your acceptance:

Full Service Reserve Study with Site Inspection (Level-1) **$8,200**

We will provide you with electronic copies of the report. Payment will be due at the first submission of the report. The report will be completed within twelve weeks of our firm receiving this engagement letter signed and faxed or emailed to our office.

Thank you again for the opportunity to present our proposal to you.

Sincerely,

Paul Gallizzi
Florida General Contractor #CGC-019465
State-Certified General Appraiser RZ110

Steven Swartz, RS
Reserve Specialist Designation No. 214
State-Certified General Appraiser RZ3479

Accepted by Signature: _____ Date _____

Accepted by Printed Name: _____

PHONE : 813.932.1588
FAX : 813.388.4189
WEB : www.reservestudyfl.com
ADDRESS : 12407 N Florida Ave, Tampa, FL 33612

Property Wellness
Reserve Study Program Proposal
Level I Reserve Study

Bobcat Trail Community Development District
North Port, FL

Reserve Advisors, LLC
201 E. Kennedy Boulevard, Suite 1150
Tampa, FL 33602
(800) 980-9881
reserveadvisors.com



Reserve Advisors
Your Property Wellness Consultants



Our Property Wellness Reserve Study Program

Your home is the most expensive personal property you will ever own. The responsibility for preserving its value reaches beyond your home to include the spaces you share with your neighbors. Structures, systems, streets and amenities must be maintained to protect the value of your investment. But the required responsibility often stretches beyond individual knowledge and expertise. That's why associations turn to Reserve Advisors. As your property wellness consultants, our reserve study helps associations understand their assets, expected lifespans, and both the budgets and maintenance needed to keep them in great working order.



A Proactive Property Wellness Program

Our engineers provide a thorough evaluation of your property and shared assets, and create a strong, informed plan to maximize your community's physical and financial wellness for the long haul. Because proactive care ensures that your shared property is cared for the way you would care for your home. We have been helping communities thrive for over 30 years. But the job we are obsessed with is making sure you and your neighbors have what you need to protect your property today, and prevent costly and avoidable repairs tomorrow. It is the best way to care for the place that makes you feel welcome, safe, secure and proud.



Helping Communities Thrive for Over 30 Years

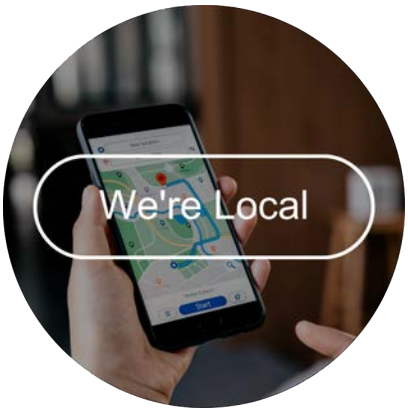
Reserve Advisors has prepared over 29,000 reserve studies for common interest realty associations nationwide. Our service area is one of the largest in the industry.

Through the leadership of our founders, John Poehlmann and Theodore Salgado, we helped pioneer the standards that all reserve study providers are measured by today. This success comes from our independence, extensive knowledge and experience. We pride ourselves on delivering unbiased recommendations that give community associations the plans they need to ensure the future well-being of their property.

60+
ENGINEERS

29,000
RESERVE STUDIES CONDUCTED

300+
YEARS OF RESERVE STUDY EXPERIENCE



Local Conditions

Drawing upon our broad national experience, we recognize the profound impact local conditions have on the wear and tear of common property and subsequent replacement needs.

Local Costs

Our exclusive database of client project costs grants you real-time access to localized pricing, ensuring that your reserve study projections are not reliant on standardized costs.

Level I Full Reserve Study

RESERVE™ ADVISORS
Long-term thinking. Everyday commitment.

	LEVEL I	LEVEL II	LEVEL III
	FULL RESERVE STUDY	RESERVE STUDY UPDATE WITH SITE-VISIT	RESERVE STUDY WITHOUT SITE-VISIT
		RESERVE STUDY PROCESS	
ONSITE VISUAL INSPECTION	✓	✓	
PRE-INSPECTION MEETING	✓	✓	
COMPONENT INVENTORY PLUS COMPONENT QUANTITIES & MEASUREMENTS	Established	Re-Assessed/Evaluated	Reflects prior study
CONDITION ASSESSMENTS	Based on visual observation	Based on visual observation	As reported by association
USEFUL LIFE ESTIMATES	Based on engineer's condition assessment	Based on engineer's condition assessment	Based on client's reported condition
VALUATION/COST ESTIMATES VIA PROPRIETARY BID DATABASE	Established for each reserve component	Re-evaluated for each reserve component	Re-evaluated for each reserve component
		KEY DELIVERABLES	
MEETS AND EXCEEDS CAI'S NATIONAL RESERVE STUDY STANDARDS	✓	✓	✓
PRIORITIZED LIST OF CAPITAL EXPENDITURES	✓	✓	✓
CUSTOMIZED RECOMMENDED FUNDING PLAN(S)	✓	✓	✓
RECOMMENDED PREVENTATIVE MAINTENANCE ACTIVITIES	✓	✓	
INCLUSION OF LONG-LIVED ASSETS	✓	✓	✓
ELECTRONIC REPORT	Comprehensive report with component detail	Comprehensive report with component detail	Executive summary overview
EXCEL SPREADSHEETS	✓	✓	✓
SUPPORT WITH IMPLEMENTATION OF REPORT	✓	✓	✓
COMPLIMENTARY REPORT REVISION	✓	✓	
UNCONDITIONAL POST-STUDY SUPPORT AT NO ADDITIONAL COST INCLUDING REPORT PRESENTATION	✓	✓	✓
	★ RECOMMENDED SERVICE LEVEL		

We are proposing a Level I Full Reserve Study. This service involves developing a component list and quantification of each item - a crucial aspect often overlooked by unqualified providers. This service is suitable for communities that have never undergone a reserve study, as well as those contemplating a change in reserve study providers. Conducting a Level I Reserve Study allows us to not only verify the accuracy of the component inventory and related quantities/measurements with certainty - the foundation of any reserve study - but to also present capital planning recommendations with unwavering confidence.

Property Wellness Reserve Study Program - Level I

Reserve Advisors will perform a Level I Reserve Study in accordance with Community Associations Institute (CAI) National Reserve Study Standards. Your reserve study is comprised of the following:

Physical Analysis: The reserve study consultant will develop a detailed list of reserve components, also known as a component inventory, and related quantities for each. We will complete a condition assessment or physical evaluation for each reserve component and the current condition of each will be documented with photographs. Life and cost estimates will be performed to determine estimated useful lives, remaining useful lives and current cost of repair or replacement.

Financial Analysis: The reserve study consultant will identify the current reserve fund status in terms of cash value and prepare a customized funding plan. The funding plan outlines recommended annual reserve contributions to offset the future cost of capital projects over the next 30 years.

Property Description

Bobcat Trail Community Development District comprises 546 homes. We've identified and will include the following reserve components:

Fitness Room(s), Party Room(s), Meeting Room(s), Clubhouse(s), Sport Court(s), Pond(s), Pool(s), Pool House(s), Streets and Curbs, Access Drives, Parking Areas and/or Driveways, Gate House(s), Sidewalks, Walking Paths, Irrigation System, Landscaping, Retaining Walls, Fences, Perimeter Walls/Fences, Monuments, Signage, and other property specifically identified that you'd like us to include.

Scope of work includes all property owned-in-common as defined in your association's declaration and other property specifically identified that you'd like us to include.

Key Elements of Your Level I Property Wellness Reserve Study Program

Reserve Advisors' Exclusive Tools

Reserve Advisors' exclusive tools allow you to make informed decisions to maintain your association's long-term physical and financial health.



Reserve Expenditures

View your community's entire schedule of prioritized expenditures for the next 30-years on one easy-to read spreadsheet.

View Example



Funding Plan

Establishes the most stable and equitable recommended annual reserve contributions necessary to meet your future project needs.

View Example



Reserve Funding Graph

Highlights your community's current financial health and provides visibility to your projected cash flow over the next 30 years.

View Example



Component Specific Details

Including photographic documentation of conditions, project specific best practices outlining the scope of future projects, and preventative maintenance activities to maximize component useful lives.

View Example



Excel Spreadsheets

Empowering you to make more informed decisions by adjusting project schedules, future costs, and annual contributions in real time.

For Confidence in All Decisions

Personalized Experience Guarantee

As your trusted advisor, we are committed to providing clarity on the true cost of property ownership through a comprehensive reserve study solution and unmatched advisory services. If the experience we provide fails to live up to your expectations, contact us at any time for a refund.



Your property is your biggest investment. Here's why our solution is the best for your community:

Full Engagement

It's our job to understand your specific concerns and to discuss your priorities in order to ensure your reserve study experience exceeds expectations.

Detailed Understanding

We will do whatever it takes to ensure you have complete confidence in interpreting and putting into practice our findings and recommendations.

Ongoing Support

Unlike other firms, we provide current and future boards with additional insight, availability to answer questions and guidance well beyond report delivery.

The Time to Protect Your Property's Long-Term Health is Now

This proposal, dated 07 / 25 / 2024, for a **Level I Property Wellness Reserve Study**, is valid for 90 days.

To Start Your Property Wellness Level I Reserve Study Program Today:

1. Select the service options below to confirm scope of engagement

Service	Price
Reserve Study (Level I) This service includes a pre-project meeting to discuss your unique needs and priorities with our engineer. You'll receive: 1) a PDF report with 30-year expenditure and funding plan tables, 2) Excel spreadsheet with formulas, and 3) Complimentary support with implementation of your study and ongoing guidance.	$8,250.00
Total	**$8,250.00**

---

2. E-sign below

Signature: Title:

Name: Date:

For: Bobcat Trail Community Development District Ref: 242951

---

3. Pay $4,125.00 Retainer via mail or ACH

Mailing Address
Reserve Advisors, LLC
PO Box 88955
Milwaukee, WI 53288-8926

ACH
Send Remittances to 'accounting@reserveadvisors.com' at time of payment
Checking Account Number: 151391168
Routing Number: 075905787
Financial Institution: First Business Bank
17335 Golf Parkway, Suite 150 | Brookfield, WI 53045

You will receive your electronic report approximately four (4) weeks after our inspection, based on timely receipt of all necessary information from you. Authorization to inspection time varies depending on demand for our services. This proposal, dated 07 / 25 / 2024, is valid for 90 days, and may be executed and delivered by facsimile, portable document format (.pdf) or other electronic signature pages, and in any number of counterparts, which taken together shall be deemed one and the same instrument. One complimentary hard copy report is available upon request.

Professional Service Conditions

Our Services - Reserve Advisors ("RA" or "us" or "we") performs its services as an independent contractor in accordance with our professional practice standards and its compensation is not contingent upon our conclusions. The purpose of our reserve study is to provide a budget planning tool that identifies the current status of the reserve fund, and an opinion recommending an annual funding plan, to create reserves for anticipated future replacement expenditures of the subject property. The purpose of our energy benchmarking services is to track, collect and summarize the subject property's energy consumption over time for your use in comparison with other buildings of similar size and establishing a performance baseline for your planning of long-term energy efficiency goals.

Our inspection and analysis of the subject property is limited to visual observations, is noninvasive and is not meant to nor does it include investigation into statutory, regulatory or code compliance. RA inspects sloped roofs from the ground and inspects flat roofs where safe access (stairs or ladder permanently attached to the structure) is available. Our energy benchmarking services with respect to the subject property is limited to collecting energy and utility data and summarizing such data in the form of an Energy Star Portfolio Manager Report or any other similar report, and hereby expressly excludes any recommendations with respect to the results of such energy benchmarking services or the accuracy of the energy information obtained from utility companies and other third-party sources with respect to the subject property. The reserve report and any energy benchmarking report (i.e., any Energy Star Portfolio Manager Report) (including any subsequent revisions thereto pursuant to the terms hereof, collectively, the "Report") are based upon a "snapshot in time" at the moment of inspection. RA may note visible physical defects in the Report. The inspection is made by employees generally familiar with real estate and building construction. Except to the extent readily apparent to RA, RA cannot and shall not opine on the structural integrity of or other physical defects in the property under any circumstances. Without limitation to the foregoing, RA cannot and shall not opine on, nor is RA responsible for, the property's conformity to specific governmental code requirements for fire, building, earthquake, occupancy or otherwise.

RA is not responsible for conditions that have changed between the time of inspection and the issuance of the Report. RA does not provide invasive testing on any mechanical systems that provide energy to the property, nor can RA opine on any system components that are not easily accessible during the inspection. RA does not investigate, nor assume any responsibility for any existence or impact of any hazardous materials, such as asbestos, urea-formaldehyde foam insulation, other chemicals, toxic wastes, environmental mold or other potentially hazardous materials or structural defects that are latent or hidden defects which may or may not be present on or within the property. RA does not make any soil analysis or geological study as part of its services, nor does RA investigate vapor, water, oil, gas, coal, or other subsurface mineral and use rights or such hidden conditions, and RA assumes no responsibility for any such conditions. The Report contains opinions of estimated replacement costs or deferred maintenance expenses and remaining useful lives, which are neither a guarantee of the actual costs or expenses of replacement or deferred maintenance nor a guarantee of remaining useful lives of any property element.

RA assumes, without independent verification, the accuracy of all data provided to it. Except to the extent resulting from RA's willful misconduct in connection with the performance of its obligations under this agreement, you agree to indemnify, defend, and hold RA and its affiliates, officers, managers, employees, agents, successors and assigns (each, an "RA Party") harmless from and against (and promptly reimburse each RA Party for) any and all losses, claims, actions, demands, judgments, orders, damages, expenses or liabilities, including, without limitation, reasonable attorneys' fees, asserted against or to which any RA Party may become subject in connection with this engagement, including, without limitation, as a result of any false, misleading or incomplete information which RA relied upon that was supplied by you or others under your direction, or which may result from any improper use or reliance on the Report by you or third parties under your control or direction or to whom you provided the Report. NOTWITHSTANDING ANY OTHER PROVISION HEREIN TO THE CONTRARY, THE AGGREGATE LIABILITY (IF ANY) OF RA WITH RESPECT TO THIS AGREEMENT AND RA'S OBLIGATIONS HEREUNDER IS LIMITED TO THE AMOUNT OF THE FEES ACTUALLY RECEIVED BY RA FROM YOU FOR THE SERVICES AND REPORT PERFORMED BY RA UNDER THIS AGREEMENT, WHETHER ARISING IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY OR OTHERWISE. YOUR REMEDIES SET FORTH HEREIN ARE EXCLUSIVE AND ARE YOUR SOLE REMEDIES FOR ANY FAILURE OF RA TO COMPLY WITH ITS OBLIGATIONS HEREUNDER OR OTHERWISE. RA SHALL NOT BE LIABLE FOR ANY SPECIAL, INDIRECT, INCIDENTAL, CONSEQUENTIAL, PUNITIVE OR EXEMPLARY DAMAGES OF ANY KIND, INCLUDING, BUT NOT LIMITED TO, ANY LOST PROFITS AND LOST SAVINGS, LOSS OF USE OR INTERRUPTION OF BUSINESS, HOWEVER CAUSED, WHETHER ARISING IN CONTRACT, TORT (INCLUDING NEGLIGENCE), BREACH OF WARRANTY, STRICT LIABILITY OR OTHERWISE, EVEN IF RA HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. IN NO EVENT WILL RA BE LIABLE FOR THE COST OF PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES. RA DISCLAIMS ALL REPRESENTATIONS AND WARRANTIES WHATSOEVER, EXPRESS OR IMPLIED OR OF ANY NATURE, WITH REGARD TO THE SERVICES AND THE REPORT, INCLUDING, WITHOUT LIMITATION, MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

Professional Service Conditions - Continued

Report - RA will complete the services in accordance with the Proposal. The Report represents a valid opinion of RA's findings and recommendations with respect to the reserve study and is deemed complete. RA will consider any additional information made available to RA within 6 months of issuing the Report and issue a revised Report based on such additional information if a timely request for a revised Report is made by you. RA retains the right to withhold a revised Report if payment for services was not tendered in a timely manner. All information received by RA and all files, work papers or documents developed by RA during the course of the engagement shall remain the property of RA and may be used for whatever purpose it sees fit. RA reserves the right to, and you acknowledge and agree that RA may, use any data provided by you in connection with the services, or gathered as a result of providing such services, including in connection with creating and issuing any Report, in a de-identified and aggregated form for RA's business purposes.

Your Obligations - You agree to provide us access to the subject property for an on-site visual inspection. You agree to provide RA all available, historical and budgetary information, the governing documents, and other information that we request and deem necessary to complete the Report. Additionally, you agree to provide historical replacement schedules, utility bills and historical energy usage files that RA requests and deems necessary to complete the energy benchmarking services, and you agree to provide any utility release(s) reasonably requested by RA permitting RA to obtain any such data and/or information from any utility representative or other third party. You agree to pay actual attorneys' fees and any other costs incurred to collect on any unpaid balance for RA's services.

Use of Our Report - Use of the Report is limited to only the purpose stated herein. You acknowledge that RA is the exclusive owner of all intellectual property rights in and relating to the Report. You hereby acknowledge that any use or reliance by you on the Report for any unauthorized purpose is at your own risk and that you will be liable for the consequences of any unauthorized use or distribution of the Report. Use or possession of the Report by any unauthorized third party is prohibited. The Report in whole or in part is not and cannot be used as a design specification for design engineering purposes or as an appraisal. You may show the Report in its entirety to the following third parties: members of your organization (including your directors, officers, tenants and prospective purchasers), your accountants, attorneys, financial institutions and property managers who need to review the information contained herein, and any other third party who has a right to inspect the Report under applicable law including, but not limited, to any government entity or agency, or any utility companies. Without the written consent of RA, you shall not disclose the Report to any other third party. By engaging our services, you agree that the Report contains intellectual property developed (and owned solely) by RA and agree that you will not reproduce or distribute the Report to any party that conducts reserve studies or energy benchmarking services without the written consent of RA.

RA will include (and you hereby agree that RA may include) your name in our client lists. RA reserves the right to use (and you hereby agree that RA may use) property information to obtain estimates of replacement costs, useful life of property elements or otherwise as RA, in its sole discretion, deems appropriate.

Payment Terms, Due Dates and Interest Charges - If reserve study and energy benchmarking services are performed by RA, then the retainer payment is due upon execution of this agreement and prior to the inspection by RA, and any balance is due net 30 days from the Report shipment date. If only energy benchmarking services are performed by RA, then the retainer payment is due upon execution of this agreement and any balance is due net 30 days from the Report shipment date. In any case, any balance remaining 30 days after delivery of the Report shall accrue an interest charge of 1.5% per month. Unless this agreement is earlier terminated by RA in the event you breach or otherwise fail to comply with your obligations under this agreement, RA's obligations under this agreement shall commence on the date you execute and deliver this agreement and terminate on the date that is 6 months from the date of delivery of the Report by RA. Notwithstanding anything herein to the contrary, each provision that by its context and nature should survive the expiration or early termination of this agreement shall so survive, including, without limitation, any provisions with respect to payment, intellectual property rights, limitations of liability and governing law.

Miscellaneous – Neither party shall be liable for any failures or delays in performance due to fire, flood, strike or other labor difficulty, act of God, act of any governmental authority, riot, embargo, fuel or energy shortage, pandemic, wrecks or delays in transportation, or due to any other cause beyond such party's reasonable control; provided, however, that you shall not be relieved from your obligations to make any payment(s) to RA as and when due hereunder. In the event of a delay in performance due to any such cause, the time for completion or date of delivery will be extended by a period of time reasonably necessary to overcome the effect of such delay. You may not assign or otherwise transfer this agreement, in whole or in part, without the prior written consent of RA. RA may freely assign or otherwise transfer this agreement, in whole or in part, without your prior consent. This agreement shall be governed by the laws of the State of Wisconsin without regard to any principles of conflicts of law that would apply the laws of another jurisdiction. Any dispute with respect to this agreement shall be exclusively venued in Milwaukee County Circuit Court or in the United States District Court for the Eastern District of Wisconsin. Each party hereto agrees and hereby waives the right to a trial by jury in any action, proceeding or claim

brought by or on behalf of the parties hereto with respect to any matter related to this agreement. We reserve the right to limit or decline refunds in our sole discretion. Refunds vary based on the applicable facts and circumstances.

Tab 6

REQUEST FOR PROPOSALS
LANDSCAPE AND IRRIGATION MAINTENANCE SERVICES
BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
SARASOTA COUNTY, FLORIDA

Section A

Bobcat Trail is a residential community located in the City of North Port, Sarasota County, Florida. The community is located on Toledo Blade Boulevard, minutes from Interstate 75 and 20 miles south of Sarasota.
Bobcat Trail is a gated community of 447 single family homes and 110 villas.

The Bobcat Trail Community Development District (the "District") oversees the maintenance of the common properties within Bobcat Trail. The District's infrastructure in Bobcat Trail includes major roadways and drainage, surface water management systems, irrigation lines, common land and recreational facilities.

Notice is hereby given that the District will accept proposals ("Proposal") from qualified entities ("Proposers") interested in providing landscape and irrigation maintenance services for the District, all as more specifically set forth in this Request for Proposals ("RFP"). This RFP will be available starting Tuesday, May 28, 2024, at 10:00 A.M., by contacting the District's Office in the Bobcat Trail Community Center, 1352 Bobcat Trail, North Port, FL 34288, via telephone at 941-426-0808, via e-mail at info@bobcatcdd.com, or on the District's website at bobcatcdd.com. Office hours are Monday - Friday from 9:00 A.M. until 3:00 P.M.

Section B

The purpose of this RFP is to solicit proposals from various entities, conduct a fair and extensive evaluation based on the criteria herein, and select the Proposer who best meets the District's needs. The awarded contract will be for a three (3) year term with no price increase during that time period with the following provisions for early termination:

- Thirty (30) days written notice will be by certified mail from the District, with or without cause, in its sole and absolute discretion, whether reasonable or not.
- Ninety (90) days written notice by certified mail from the Contractor, with the same conditions.

The District and Contractor may mutually, in writing, extend the contract on a year-to-year basis without the District issuing another RFP. Any written extension to the contract shall specify the compensation to be paid by the District to the Contractor for the extension term.

Section C

A non-mandatory Pre-Proposal Meeting will be held at the District's Office in the Bobcat Trail Community Center, 1352 Bobcat Trail, North Port, FL 34288 at **10:00 A.M. on Monday, June 24, 2024**. The intent of this meeting is to answer any questions regarding all aspects of this contracted service, review maps of the involved District property for necessary familiarity and specific site visits as warranted. The Proposer, by and through submission of a Proposal, agrees that it shall be held responsible for having heretofore examined the property site, the location of all proposed work, and all other physical characteristics of the work.

The Proposer agrees to accept the site in an "as is" condition and hold its prices for the period set forth.

Section D

In order to submit a Proposal, a Proposer must meet the following qualifications:

(1) be authorized to do business in the State of Florida; (2) hold all required local/ county/state and federal licenses in good standing; and (3) must have at least five (5) years of experience as a landscape maintenance contractor. By submitting a Proposal, the Proposer is assumed to be familiar with all federal, state, and local laws, ordinances, rules and regulations that in any manner may affect the work. The District reserves the right in its sole discretion to make changes to this RFP up until the time of the Proposal Opening, and to provide notice of such changes only to those Proposers who have attended the Pre-Proposal Meeting or otherwise notified the District in writing of intent to submit a Proposal.

Section E

Entities desiring to provide services for this project must submit one (1) original and (1) electronic copy (PDF format on a USS flash drive) of its Proposal, including all required documents, no later than **3:00 P.M. on Monday, July 15, 2024,** at the District's Office in the Bobcat Trail Community Center, 1352 Bobcat Trail, North Port, FL 34288. Proposals shall be submitted in a sealed package, shall bear the name of the Proposer on the outside of the package and shall clearly identify the project. Proposer is solely responsible for the successful and timely delivery of its Proposal. Any Proposal not completed as specified or missing required documents may be disqualified. Proposals received after the time and date stipulated above will be returned unopened to the Proposer. All Proposals must be signed by an official agent or representative of the Proposer.

Section F

If a Proposer must outsource or sub-contract any work to meet the requirements of this RFP, this must be clearly stated in the Proposal. Additionally, all costs included in the Proposal must be all-inclusive to include any outsourced or sub-contracted work. Any Proposal which calls for outsourcing or sub-contracting work must include the name of the sub-contractor and a description of the intended sub-contract work.

Sub-contractors must also meet the minimum required insurance coverage.

Section G

Rankings will be made based on the Evaluation Criteria contained within the RFP. Cost will be one factor used in determining the Proposal that is in the best interests of the District, but, the District explicitly reserves the right to make the contract award to other than the lowest priced Proposal. The District has the right to reject any and all Proposals and waive any technical errors, informalities, or irregularities if it determines in its discretion it is in the best interest of the District to do so.

Section H

All Proposals will be publicly opened, stating each Proposer's name and total pricing, at a meeting of the Landscape Committee on **Tuesday, July 16, 2024, at 1:00 P.M.** at the District's Office in the Bobcat Trail Community Center, 1352 Bobcat Trail, North Port, FL 34288. No final selection will be made at that time. The Landscape Committee may at a time of their choosing further inspect Proposal provisions or possibly hold interviews with Proposers. It is further intended that the Landscape Committee will submit their recommendations to the District's Board of Supervisors for their consideration at the Board's meeting on **August 15, 2024, at 3:00 P.M.**

Said meetings are open to the public and will be conducted in accordance with the provisions of Florida law. Said meetings may be continued in progress with additional notice to a time, date, and location stated on the record.

Section I

Public Records: The Proposer understands and agrees that all documents of any kind provided to the District in connection with this Proposal may be public records under Chapter 119, Florida Statutes and shall be treated as such in accordance with Florida Law.

Section J

Proposer and its subcontractors (if any) warrant compliance with all federal immigration laws and regulations that relate to their employees including, but not limited to, registering with, and using the E-Verify system. The District is a public employer that is subject to the E-Verify requirements as set forth in Section 448.095, Florida Statutes, and the provisions of Section 448.095, F.S., will apply to the contract awarded under this RFP.

Section K

Interpretations and Addenda. All questions about the meaning or intent of the RFP are to be directed in writing, via e-mail only, to the attention of Jeff Brall, CDD Supervisor at info@bobcatcdd.com Interpretations or clarifications considered necessary in response to such questions will be issued by Addenda to all parties recorded as having received the RFP. Questions received after **4:00 P.M., Friday, June 28, 2024** will not be answered. Answers to all questions will be provided to all Proposers by e-mail by **3:00 p.m., July 2, 2024.** Only questions answered by formal written Addenda will be binding. No interpretations will be given verbally. No inquiries will be accepted from subcontractors; the Proposer shall be responsible for all queries.

Section L

Modification and Withdrawal. Proposals may be modified or withdrawn by an appropriate document duly executed and delivered to the place where Proposals are to be submitted at any time prior to the time and date the Proposals are due. No proposal may be withdrawn after the Proposal due date for a period of ninety (90) days.

Section M

Protests. Any protest regarding Proposal rejection, or a Proposal award, or the RFP must be filed in writing, within seventy-two (72) hours after the receipt of the notice of the District's decision or the issuance of the RFP, as applicable, and must be filed at the District's offices as set forth herein, Attention: Jeff Brall, CDD Supervisor. The formal protest setting forth with particularity the facts and law upon which the protest is based shall be filed within seven (7) calendar days

after the initial notice of protest was filed. Failure to timely file a notice of protest or failure to timely file a formal written protest shall constitute a waiver of any right to object or protest.

Section N

Black-Out Period/Cone of Silence. The black-out period is defined as between the time the RFP is issued by the District and the time the Board awards the contract. During this black-out period, any attempt by a Proposer to influence the thinking of District staff or officials related to this RFP, in person, by mail, by facsimile, by telephone, by electronic mail, or by any other means of communication, may result in disqualification of the Proposer. Proposer's attendance at the Pre-Proposal Meeting referenced in Section C, or any inquiries by a Proposer seeking interpretations or clarifications regarding the RFP, as provided for under Section K, are permissible and will not be considered violations of this Section N provided that the Proposer does not attempt to influence the thinking of District staff or officials related to the RFP.

Section O

Proposal Forms: All blanks on the Proposal forms must be completed in ink or typewritten.

- A completed and executed Affidavit of Acknowledgments.
- A completed and executed Proposal form.
- A listing of the position/title and responsibilities of key management or supervisory personnel of Proposer, including experience.
- Description of Proposer's proposed staffing levels.
- Information related to other projects of similar size and scope for which the Proposer has provided or is providing landscape and irrigation maintenance services.
- At least three (3) references from projects of similar size and scope.
- Completed Proposal pricing. Unit costs for mulch, annuals, and trimming of palms above 15' should be provided and included in the contract pricing
- Insurance: Proposer should include a current Certificate of Insurance, or equivalent information as called for in the RFP to meet the insurance coverage requirements. Proposer may offer additional insurance, or less insurance, and such modifications may be taken into account in the scoring of the Proposal.

AFFIDAVIT OF ACKNOWLEDGMENTS

STATE OF Florida

COUNTY OF Sarasota

Before me, this undersigned authority, appeared the affiant, Jay Grimaldi, and having taken an oath, affiant, based on personal knowledge, disposes and states:

1. I assisted with the preparation of, and have reviewed, the Proposer's proposal (**"Proposal"**) provided in response to the Bobcat Trail Community Development District's **("District")** request for proposals for landscape and irrigation maintenance Services. All of the information provided therein is full and complete, and truthful and accurate. I understand that intentional inclusion of false, deceptive or fraudulent statements, or the intentional failure to include full and complete answers, may constitute fraud; and, that the District may consider such action on the part of the Proposer to constitute good cause for rejection of the proposal.
2. Under penalties of perjury under the laws of the State of Florida, I declare that I have read the foregoing Proposal and all of the questions are fully and completely answered, and all of the information provided is true and correct.

Dated this 15 day of July 2024.

Proposer: ArtisTree Landscape

By: _____

Title: Business Developer

STATE OF Florida

COUNTY OF Sarasota

The foregoing instrument was acknowledged and before me this 15th day of July, 2024 by Jay Grimaldi of ArtisTree

who ~~is personally known to me or~~ who has produced _____ as identification and did (X) or did not ( ) take the oath.

_____

Notary Public, State of Florida

Print Name. Jennifer S. Lassen

Commission No. HH 171839

MyCommission Expires 9/28/2025

BOBCAT TRAIL COMMUNITY DEVELOPMENT
DISTRICT LANDSCAPE AND IRRIGATION
MAINTENANCE RFP

EVALUATION CRITERIA

Pre-Requisite: Contractor has all applicable licenses?
Pre-Requisite: Contractor is authorized to do business in Florida?
Pre-Requisite: Contractor has 5 years of experience as a landscape maintenance contractor?

1. Personnel & Equipment (10 points possible)

Addresses the following criteria: skill set and experience of key management and assigned personnel, including the project manager and other specifically trained staff who will manage the property; present ability to manage this project; capability of performing the work; geographic location; inventory of necessary equipment, etc. Skill set includes certification, technical training, and experience with similar projects.

2. General Experience (10 points possible)

Addresses past and current record and experience in similar projects; volume of work previously awarded to the firm; past performance in any other contracts, etc.

3. Experience with St. Augustine Sod (5 points possible)

Addresses past and current record and experience in projects similar with St Augustine sod.

4. Understanding Scope of RFP (5 points possible)

Addresses: Does the Proposer demonstrate an understanding of the District's needs for the services requested? Does it provide all information requested? Does it demonstrate clearly the ability to perform these services? Does the Proposal as a whole appear to be feasible, in light of the scope of the work?

5. Financial Capacity (10 points possible)

Addresses whether the Proposer has demonstrated that it has the financial resources and stability as a business entity to implement and execute the work. Does the Proposer provide proof of required minimum insurance, and has the Proposer provided 5 years of audited financial statements or similar information?

6. Price (10 points possible)

Addresses the proposed pricing for the work, taking into account the base term, as well as the reasonableness of all unit pricing and other pricing information.

TOTAL POINTS POSSIBLE (50 POINTS)

PROPOSAL FORM
PART I - GENERAL INFORMATION

Proposer General Information:

Proposer Name Artistree Landscape Maintenance + Design

Street Address 160 Pond Cypress Road, Suite B

P. O. Box (if any) _____

City Venice State FL Zip Code 34292

Telephone 941.488.8897 Fax no. 941.484.0945

1st Contact Name Jay Grimaldi Title Business Development Manager

2nd Contact Name Mike Casper Title Business Development Manager

Parent Company Name (if any) Sunrise Landscaping LLC

Street Address 100 W. Kennedy Blvd., Suite 325

P. O. Box (if any) _____

City Tampa State FL Zip Code 33609

Telephone 813-985-9381 Fax no. -

1st Contact Name Same as above Title -

2nd Contact Name Same as above Title -

PART II - PERSONNEL AND EQUIPMENT

List the location of the Proposer's office, which would perform work/or the District.

Street Address 160 Pond Cypress Road, Suite B

P. O. Box (if any) _____

City Venice State FL Zip Code 34292

Telephone 941.488.8897 Fax no. 941.484.0945

1st Contact Name Jay Grimaldi Title Business Development Manager

2nd Contact Name Mike Casper Title Business Development Manager

PART III - BUSINESS STANDING AND INSURANCE

Is the Proposer registered with the State of Florida, Division of Corporations and authorized to do business in Florida? YES ✓ NO _____

If no, please explain _____

What are the Proposer's current insurance limits?

1. Workers' Compensation: See Attachment

   a. State Worker's Compensation $ _____ per occurrence / $ _____

   aggregate / $ _____ per disease _____

   b. Employer's Liability $ _____

2. Commercial General Liability Insurance: See Attachment

a. Bodily Injury, Sickness, Disease or Death, and Property Damage, per Occurrence

$_____

b. Bodily Injury, Sickness , Disease or Death, and Property Damage, Aggregate

$_____

c. Products-Completed Operations $ _____

d. Personal and Advertising Injury $_____

e. Property Damage liability insurance will provide Explosion, Collapse, and Under-ground coverages where applicable:

3. Automobile Liability:

- Bodily Injury:

Each Person $ _____

Each Accident $ _____

- Property Damage:

Each Occurrence $ _____

4. Contractual Liability Insurance: See Attachment

a. General Aggregate $_____

b. Bodily Injury and Property Damage

Combined Each Occurrence $_____

5. Pollution Insurance (covering third-party injury and property damage claims, including clean-up costs) $ n/a

Licensure - Please list all applicable state and federal licenses and state whether such licenses are presently in good standing:

Florida General Contractor - Lic. # CGC1525297

Florida State Irrigation License - Lic. # SCC131152027

Certified Pest Control License - Lic. # JE47814

Attachment

CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY): 7/12/2024

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Higginbotham Insurance Agency, Inc. 110 Carillon Parkway Saint Petersburg FL 33716 License#: 2081754	**CONTACT NAME:** Brooke McCabe **PHONE (A/C, No, Ext):** 7273919791 **FAX (A/C, No):** 727-393-5623 **E-MAIL ADDRESS:** certificatesstpete@higginbotham.net
INSURED Save-On Enterprises of Sarasota LLC dba ArtisTree Landscape Maint. & Design PO Box 5648 Clearwater FL 33758 SRLANDS-01	**INSURER(S) AFFORDING COVERAGE** — **NAIC #** INSURER A : FCCI Insurance Company — 10178 INSURER B : National Trust Insurance Company — 20141 INSURER C : Federal Insurance Company — 20281 INSURER D : Monroe Guaranty Insurance Company — 32506 INSURER E : INSURER F :

COVERAGES **CERTIFICATE NUMBER:** 2137653384 **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
A	X COMMERCIAL GENERAL LIABILITY			GL100073229-02	10/1/2023	10/1/2024	EACH OCCURRENCE	$ 1,000,000
	CLAIMS-MADE [X] OCCUR						DAMAGE TO RENTED PREMISES (Ea occurrence)	$ 1,000,000
							MED EXP (Any one person)	$ 10,000
							PERSONAL & ADV INJURY	$ 1,000,000
	GEN'L AGGREGATE LIMIT APPLIES PER:						GENERAL AGGREGATE	$ 2,000,000
	POLICY [X] PRO-JECT [ ] LOC						PRODUCTS - COMP/OP AGG	$ 2,000,000
	OTHER:							$
A	AUTOMOBILE LIABILITY			CA100073282-03	10/30/2023	10/30/2024	COMBINED SINGLE LIMIT (Ea accident)	$ 1,000,000
	X ANY AUTO						BODILY INJURY (Per person)	$
	OWNED AUTOS ONLY [ ] SCHEDULED AUTOS						BODILY INJURY (Per accident)	$
	X HIRED AUTOS ONLY [X] NON-OWNED AUTOS ONLY						PROPERTY DAMAGE (Per accident)	$
							PIP	$ 10,000
B	X UMBRELLA LIAB [X] OCCUR			UMB100080195-01	10/1/2023	10/1/2024	EACH OCCURRENCE	$ 5,000,000
C	EXCESS LIAB [ ] CLAIMS-MADE			78190775	10/1/2023	10/1/2024	AGGREGATE	$ 5,000,000
	DED [X] RETENTION $ $0							$
D	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY Y/N	N/A		WC0100073231-02	10/1/2023	10/1/2024	X PER STATUTE [ ] OTH-ER	
	ANYPROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? [N] (Mandatory in NH)						E.L. EACH ACCIDENT	$ 1,000,000
	If yes, describe under DESCRIPTION OF OPERATIONS below						E.L. DISEASE - EA EMPLOYEE	$ 1,000,000
							E.L. DISEASE - POLICY LIMIT	$ 1,000,000
A	Leased/Rented Equipment			CM100073230-02	10/1/2023	10/1/2024	Max Per Item Occurence Deductible	200,000 200,000 5,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

SEE ATTACHED NOTES

See Attached...

CERTIFICATE HOLDER

Bobcat Trail CDD
Toledo Blade Boulevard
North Port FL 34288

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

© 1988-2015 ACORD CORPORATION. All rights reserved.

The ACORD name and logo are registered marks of ACORD

AGENCY CUSTOMER ID: SRLANDS-01

LOC #:

ADDITIONAL REMARKS SCHEDULE

AGENCY		NAMED INSURED
Higginbotham Insurance Agency, Inc.		Save-On Enterprises of Sarasota LLC dba ArtisTree Landscape Maint. & Design PO Box 5648 Clearwater FL 33758
POLICY NUMBER		
CARRIER	NAIC CODE	EFFECTIVE DATE:

ADDITIONAL REMARKS

THIS ADDITIONAL REMARKS FORM IS A SCHEDULE TO ACORD FORM,

FORM NUMBER: 25 FORM TITLE: CERTIFICATE OF LIABILITY INSURANCE

Certificate Holder is Additional Insured as respects to General Liability, Automobile Liability & Umbrella Liability where required by written contract or agreement. Subject to the terms, conditions and limits as specified in the policy.

Certificate Holder is an Additional Insured with respects to General Liability including ongoing and completed operations, where required by written contract or agreement. Subject to the terms, conditions and exclusions as specified in the policy.

Coverage is Primary and Non-Contributory as respects to General Liability and Automobile Liability subject to terms, conditions and exclusions as specified in the policy

Waiver of Subrogation applies in favor of the Certificate Holder as respects to General Liability, Umbrella, Automobile Liability and Workers Compensation where required by written contract or agreement. Subject to the terms, conditions and limits as specified in the policy.

Umbrella Liability is Follow Form

© 2008 ACORD CORPORATION. All rights reserved.

The ACORD name and logo are registered marks of ACORD

PART IV - ADDITIONAL SUPPORTING INFORMATION

Supervisory Personnel to be Assigned to this Project:
Please list primary managers /supervisors/technical personnel to be assigned to this project.

General Manager - Scott Acton
Account Manager - To Be Determined
Irrigation Manager - Bob Hall
Mow Manager - Luis Garcia
Pest / Fert. Manager - Carl Sikkema
Labor Crew (5 man) - Shrub / detail

*** Does the Proposer currently employ any other technical personnel who have expertise in the scope of work for this Project and in pesticide application, herbicide application, arborculture, horticulture, or other relevant fields of expertise? Yes ✓ No _____
If yes, please explain. Arborist, IPM, Irrigation Manager

Security Measures - Please describe any background checks or other security measures taken with respect to the hiring and retention of personnel.
*** All employees shall be competent and qualified, and shall be U.S. citizens or legal residents, and/or authorized to work in the United States. E-Verify, Background Checks, Drug-Free Workplace

Sub-Contractors - Does the Proposer intend to use any subcontractors in connection with the work?
Yes _____ No ✓
*** For each subcontractor please provide name, address, contact person, phone#, proposed duties/responsibilities, and location of equipment and workforce site to perform this work.

Please provide three (3) references of other CDD or HOA properties that you service with the contact information of each representative for that property.
***** Include as a separate attachment.**

Please include your Company's proposed Detailed Scope of Work and Services for this Project (i.e. fertilization, mowing, pest control, weed control, irrigation management, etc.).
***** Include as a separate attachment.**

Please list the major equipment to be used in this Project, and the location of equipment and workforce site to perform this work. Please also detail the # of Projects this equipment is dedicated to.
***** Include as a separate attachment.**

Please include pricing for the following:

* cost per cubic yard of grade A Dark Brown Shredded Cypress Mulch $ 80.00 per cubic yard

* individual cost per pruning of approximately 226 (+ or -) palms over 15' in height
$ 45.00 per palm

* Unit cost for planting 250 annuals $ 4.50 per 4 inch plant

REFERENCES

Lakehouse Cove, Sarasota, FL
Contact: Juan Gutierrez, Homeowner Representative to the Board, 813.376.1481

Common Grounds, Single Family Homes, Clubhouse Grounds, and Model Homes

Lakewood National Golf Club Inc., Lakewood Ranch, FL
Contact: Warren Lee, General Manager, 941.777.7036

Common Grounds and Maintenance-free communities: Coach Homes I, II, III, IV; Terrace Homes I, III, IV, V, VI, VII, VIII; Verandas I, II, III, IV, V, VI

Renaissance at Wellen Park, Venice, FL
Contact: Bill Moniz, HOA Board, 941-441-6658

Common Grounds and Community of 700 +/- Homes

Bellacina by Casey Key, Nokomis, FL
Contact: Chris Strahm, President, 607.624.5548

Common Grounds and Community of 300 +/- Homes

CERTIFICATIONS

Certified Best Management Practices
Certified Low Voltage Landscape Lighting
Certified DynaScapes CAD Designers
Florida Certified Pest Control Operator
Certified Irrigation Specialist
LEED Green Associate
Florida Water Accredited Professional
Florida Certified Horticulture Professionals
Landscape Industry Certified Horticultural Technician
Florida Green Industry Certified

PROPOSAL

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
NORTH PORT, FLORIDA

MANAGEMENT COMPANY: Bobcat Trail CDD

SUBMISSION DATE: July 15th, 2024
Bid price good for 30 days

This ArtisTree proposal, in printed or electronic form, contains confidential information and is intended only for the requesting parties. It is not to be reviewed, retransmitted or disseminated to unintended recipients.

SCOPE OF WORK:

This proposal is to provide pricing for the landscape maintenance of the Bobcat Trail residential community located in the city of North Port, Sarasota County, Florida. The community is located on Toledo Blade Boulevard and consists of 447 single family homes and 110 villas. Services will be provided as described in the attached specifications which coincide with the RFP.

Proposed Pricing

Year 1:	$149,556.00 annually
Year 2:	$154,790.46 annually
Year 3:	$157,886.27 annually

Accepted: _____

Date: _____

GROUNDS MAINTENANCE SPECIFICATIONS

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT

LANDSCAPE AND IRRIGATION MAINTENANCE RFP

I. MOWING/EDGING/BLOWING

A. Mowing of turf areas as outlined: **Weekly mowing services:** April 1 to October 31. **Bi-weekly mowing services:** November 1 to March 31. The height of the cut will be based on correct horticultural standards for turf variety and seasonality. Bahia grass areas will be mowed bi-weekly.

B. Edging of all sidewalks, curbs, pathways and other paved surfaces to follow mowing schedule above. Edging is to be defined as outlining and/or removing turf from the above-mentioned borders by use of a mechanical edger. Bed edging/soft edging will be done every other mowing throughout the year.

C. Trimming around obstacles within finished turf areas will be completed during each mowing visit by use of a string trimmer or other mechanical means.

D. Sidewalks, curbs, and other paved surfaces adjacent to turf and/or other landscaped elements will be kept clean of unwanted landscape debris by the use of forced air machinery.

E. Soft edging/bed edging will be performed every other mowing from April 1 through October 31, once a month November 1 through March 31. Beds with cement curbing will be trimmed with a string trimmer.

F. Blades are changed and sharpened daily to help ensure a quality cut.

G. Pre-mow cleanup: trash and debris will be removed from mowing areas prior to mowing.

II. PRUNING

A. Detailing of planted areas will be performed on a sectional basis with the frequency of passes being 12 times per year. The detailing process will include trimming and pruning of shrubbery, ornamentals, and groundcover, removal of tree suckers as well as the removal of trimmed vegetation.

B. Plants shall be neatly pruned and/or clipped to maintain the natural character of the plant and in a manner appropriate to the particular requirement of each plant.

C. Mechanical pruning will be used only on hedges where a walled effect is desired. Selective hand pruning will be employed on other varieties.

D. Ground cover and vines: thin and prune according to standard horticultural practices.

E. Evergreen flowering shrubs: Except for gardenia, azalea, and camellia, which will be pruned after flowering, all other shrubs will be pruned according to standard horticultural practices.

160 Pond Cypress Road, Suite B, Venice FL 34292 | P: 941.488.8897 F: 941.484.0945 | artistree.com

F. All plant beds and tree basins will be maintained in a clean manner. Herbicide and Gly-Pro applications will be used to help control weed growth in plant beds, sidewalks and driveways as needed. Gly-Pro will not be used to chemically edge plant beds.

G. Remove grass from impeded irrigation heads to maintain proper functionality.

H. Palms 15-ft. and under that can be reached from the ground will be trimmed of dead fronds on the sectional rotation performed by the shrub crew. Tall trees and palms that cannot be reached from the ground can be trimmed for an additional charge. Debris generated from trimming will be removed the same day of trimming.

I. Low tree canopies near sidewalks and driveways will be raised so as not to interfere with pedestrians or parked vehicles.

III. MULCH/ANNUALS

ArtisTree offers a variety of mulch materials and programs. Mulch is horizontally spread as to not harm plant material. Only treated bag mulch is used; we do not use untreated bulk mulch.

There are many varieties of annuals that may be installed as well.
Mulch and/or annuals may be installed at an additional cost which will be determined and billed at time of installation.

IV. HEALTHCARE PROGRAM

All turf, shrubs, ornamentals and groundcovers will be monitored for pest, disease and nutrient problems with positive findings being reported.

TURF MAINTENANCE

Fertilizer will be a minimum 50% granular slow release containing trace elements. A total of four pounds of nitrogen per 1000 feet per year will be applied, as recommended by the Florida Cooperative Extension Agency. The ratio of nitrogen to potash will be 1:1 or 2:1 for complete fertilizer formulations.

Properties will be routinely evaluated and soil-tested when and where warranted.

Insecticide shall be included where warranted to prevent or control seasonal turf grass pest infestations. Contractor shall periodically inspect the grounds to schedule additional local applications as may be required for acceptable control of pest infestation.

Weed control treatments shall be applied where warranted during the cooler months as required by herbicide labeling. Weed control is limited to the broadleaf variety. Carpet grass and crab grass are excluded from this contract, as currently there are no chemicals on the market to effectively treat this type of weed problem.

Disease control and/or fungus and limited nutritional supplements shall be included if a deficiency exists or soil conditions warrant.
Bermuda grass is an aggressive weed in Zoysia and St. Augustine lawns, and it's extremely difficult to control with herbicides. ArtisTree cannot be held responsible for lawns infested with Bermuda grasses.

FERTILIZATION: TREES, SHRUBS AND PALMS

The Contractor will fertilize trees, shrubs and palms as recommended by the Florida Cooperative Extension Service.

160 Pond Cypress Road, Suite B, Venice FL 34292 | P: 941.488.8897 F: 941.484.0945 | artistree.com

Young trees and shrubs: minimum 1-2 lbs. N per year in a 3:1:3 ratio of fertilizer, with applications split between spring and summer. Apply appropriate micronutrients if deficiencies occur to maintain proper plant health.

Palms and cycads: minimum of 2 lbs. N and K per year at a ratio of 3:1:3, with applications split between spring and late summer. Apply appropriate micronutrients if deficiencies occur to maintain proper plant health.

Notes: shrub and tree fertilizers will consist of 50% slow-release nutrients.

INSECTICIDE SPRAYING

All trees, shrubs and ornamentals will be sprayed with premium product to control insects where and when needed.

The Contractor will apply recommended, legally approved, pesticides to control insects and fungus causing damage to shrubs. Pesticides will be applied only as necessary to maintain the health of plant material.

Integrated pest management: ArtisTree proactively monitors damage caused by pests and disease. Horticultural pest control recommendations will be made to minimize ornamental plant injuries.

V. IRRIGATION MAINTENANCE – Standard Services including warranty

Irrigation maintenance is performed by experts who have completed extensive internal and external training from recognized irrigation manufacturers. Our services include:

- Inspection of entire system monthly
- Manually run each zone and check valves
- Check all heads and coverage
- Adjust heads where warranted
- Check shrub zones, adjust where warranted
- Check controller for automatic control
- Set controller for automatic control
- Inspect water source
- Clear grass (runners or growth inhibiting the rising of heads) from irrigation heads as needed for proper functionality
- 24-hour response time for service calls
- 24-hour emergency service available at a billable price of $125.00 per hour
- Billable service calls will be billed at $70.00 per man hour

Estimated pricing for major repairs will be submitted by proposal prior to services being performed, unless it is an emergency. In case of an emergency, necessary procedures will be performed and a proposal will be submitted after the emergency services have been performed.

Any irrigation system damages caused by the Contractor while performing maintenance operations will be repaired at no charge.

IRRIGATION WARRANTY

Irrigation warranty coverage includes the replacement of all pop-up heads, rotors, standpipes, nozzles, drip line and/or micro irrigation and small breaks, up to 1", for worn and damaged parts during routine monthly inspection. Warranty excludes main line breaks, solenoids, valves, wiring, and clocks unless damaged by the Contractor. After hour and emergency charges still apply.

160 Pond Cypress Road, Suite B, Venice FL 34292 | P: 941.488.8897 F: 941.484.0945 | artistree.com

VI. ADDITIONAL ARTISTREE SERVICES

Clean-up and removal of storm damage debris, fallen trees, tree limbs or other excessive debris from trees can be accomplished under a separate work order if it should become necessary.

VII. GENERAL CONDITIONS

It is agreed by both parties that the work performed under this contract will be done on a routine schedule that is sensitive to the overall function of the property. Additionally, it is understood that all work will be performed professionally in accordance with generally accepted horticultural principles.

Contractor is not liable for damage to cable, internet cable, electrical wiring, irrigation/water lines, etc., that are not properly buried at a depth and location that would protect them from mowing or shrub services.

There must be at least 58" open access to side yards and back yards of homes and structures. This area cannot be obstructed by trees, plants, installed edging/curbing.

Yard area need to be free of pet waste prior to services being performed.

Contractor is not liable for damage to fences caused by string trimmer. Fencing should have a buffer/mulch area as to separate the fencing from the grass.

Contractor is not liable for string trimming damage to water backflows or landscape lighting fixtures in turf to be mowed, if not separated from turf by bed/mulch area around the backflow.

Contractor is not liable for damage by string trimming around houses/structures/monuments, etc. if there is no buffer, bed/mulch, at the base of the house/structure/monument, etc.

Contractor is not liable for damage caused by landscaping rocks/pebbles in plant beds or design areas, which have intruded into the turf areas to be mowed, string trimmed or blade edged.

Contractor will furnish to owner, upon request, evidence of general liability insurance, property damage insurance, and workman's compensation insurance. Contractor agrees to maintain at all times the necessary licenses and/or permits required to perform said work in the state, county, or city having jurisdiction.

It is expressly understood and agreed that Contractor shall assume no responsibility or liability for personal injury or property damage arising out of or resulting directly or indirectly from the accumulation of water, falling limbs, leaves or other debris on walkways, sidewalks, curbs and other paved surfaces between scheduled visits by maintenance crews.

Contractor agrees to reimburse owner for damages to personal and/or real property the Contractor damages due to negligence. Reimbursement will occur when, and only when, the owner has taken the necessary steps to reasonably protect the structures and fixtures where damage will most likely occur. Notification of damage must be made promptly to the Contractor and an opportunity for inspection by the Contractor must occur before repairs are made.
If Contractor falls below acceptable industry standards in its performance of the items listed in any of the applicable schedules, owner shall notify Contractor in writing by certified mail, return receipt, of each specific deficiency. Then Contractor shall have fifteen (15) days in which to remedy stated deficiencies. If stated deficiencies are not remedied in fifteen (15) days, owner shall have the right to give Contractor thirty (30) days written notice of cancellation, delivered certified mail, return receipt.

160 Pond Cypress Road, Suite B, Venice FL 34292 | P: 941.488.8897 F: 941.484.0945 | artistree.com

COMPANY OWNED MAJOR EQUIPMENT

Quantity	Description	# of Projects Dedicated To	Branch
2	72" mowers	1	Venice
1	48" mowers	1	Venice
1	62" mowers	1	Venice
1	Hort rig w/ sprayer	4	Venice
2	Irrigation rigs	5	Venice
3	Blowers, trimmers, edgers	1	Venice
2	Hedge trimmers	1	Venice


Zone_1
Zone_2

BOBCAT TRAIL CDD

1352 Bobcat Trail
NORTH PORT, FL 34288

ATTENTION: Jeffery Brall



LMP Landscape Maintenance Professionals, Inc.℠

Built on Integrity. Grown on Relationships.

Tampa
13050 E US Highway 92
Dover, Florida 33527
(813) 757-6500

Wesley Chapel
26324 Wesley Chapel Blvd.
Lutz, FL 33559
(813) 406-4465

Sarasota
1306 Rome Avenue
Sarasota, FL 34243
(941) 556-9404

LMP Landscape Maintenance Professionals, Inc.℠

Built on Integrity. Grown on Relationships.

Thank you!

We would like to thank you for the opportunity to submit the following proposal for review. Our approach is one of partnership and stewardship; we want you to earn your trust and work together to exceed your needs, goals, and desires, improving your landscape's appearance, longevity and preserving your investment.

We care about understanding all of your primary concerns and areas of challenge, which helps us establish our rotational service and how we will divide the property into areas for service.

1. Providing detail services rotationally each week.
2. Scheduling all annual services prior to due date.
3. Actively scouting for opportunities to improve the landscape.
4. Manage your landscapes water consumption by property oversight and proposing long-term improvements.

Communication is key. We provide a proprietary customer service experience with a hands-on Account Manager. We offer weekly, monthly, and quarterly reports on the status of services and work quality. This process is done in partnership with you to document our progress and pictures of what we have discussed.

The LMP Advantage is that we partner with you rather than simply doing jobs for you. LMP will provide project management, offer maintenance strategies, and oversee the execution of services that provide the expected results. We understand that needs change as a business and landscape evolve. Our focus is on the 'big picture,' which enables us to create strategic plans that help guide your budgeting. When critical business objectives are driven by quality, we know there is no margin for error. With LMP, you will discover a better long-term landscape—giving you and your property the proper attention and care and bringing you the information you need to communicate to your stakeholders efficiently.

We understand the challenges you face in managing expectations, and we look forward to the opportunity to serve as your landscape partner. Your property's appearance and your brand are safe with us.

Sincerely,

The LMP Team

LMP Landscape Maintenance Professionals, Inc.℠

Built on Integrity. Grown on Relationships.

Table of Contents

Section 1 | About Us | Our Roots 1-9

Executive Leadership
- Optimal Standards
- Optimal Communication
- Optimal Results - Reporting
- Onboarding Service Blueprint
- Industry Leaders in Safety
- Natural Disaster Emergency Response Plan
- Industry Recognition
- Community Care

Section 2 | Partnership Plan | Landscape Management Services 10-13
- Maintenance
- Fertilization, Weed & Pest Control
- Irrigation & Water Management
- Arbor Care
- Floriculture
- Maintaining Trails & Natural Areas
- Additional Services
  - Landscape Design | New Construction
  - Turf Aeration | Mulch Installation | Sod Installation

Section 3 | Meet your Partners | Leadership & Qualifications 14-21
- Account Management Key Elements
- Your Team
- An Educated Approach – Licensure & Certifications
- Water Wise – Water Management Peace of Mind
- Fleet
- Equipment
- **Insurance, Licensing & Regulatory Compliance** 22-27
  - COI
  - W-9
  - Business Tax Receipts
  - Operating Permits

Section 4 | Experience | Client References | Project Gallery 28-35
- Community Development Districts
- Homeowner Associations
- Corporate
- Multifamily

Section 5 | Partnership | LMP Pricing & Details 36-...

SECTION 1 33rd ANNIVERSARY OUR ROOTS

To deliver quality landscaping, with the best service and value, across every community we serve.

2021 proudly marked our company's 30th year in business as a Certified Minority Business Enterprise by the City of Tampa. Locally owned and operated, LMP attributes success to ethical business practices and policies that mutually benefit customers and team members,



ORLANDO CASTILLO | President & CEO

Landscaping Industry 34 years ✟ LMP 32 years

Orlando Castillo, LMP's President, founded LMP with just a handful of trucks in his fleet. Growing up, Orlando's father instilled in him the value of being an entrepreneur and keeping one's word, even in challenging circumstances.

He leads with a straightforward motto: *"Do what you say you're going to do when you say you're going to do it."* These values of commitment and integrity are at the heart of LMP's mission and are demonstrated in every aspect of the company's operations.

SCOTT CARLSON | Chief Operating Officer

Landscaping Industry 20 years ✟ LMP 13 years

As the Chief Operating Office, Scott's strong leadership skills have been invaluable in guiding the team toward success. Under Scott's guidance, the team has achieved numerous milestones and has continued to grow and thrive.

With a passion for the natural environment, Scott is dedicated to our client's needs and works closely to meet their goals. He takes the time to listen to their concerns and understands their unique situations to ensure solutions are tailored to meet their specific needs.



CREATING A BALANCE

BETWEEN URBAN DEVELOPMENT & THE NATURAL LANDSCAPE

We manage the landscape in a way that collaborates with nature and the daily needs of the site. Soil, plant science, and extensive horticultural experience dictate success, not the day of the week.

The advantage is that by performing these practices according to your landscape's unique Characteristics, we keep your landscape healthy and lush through the responsible use of resources.

OPTIMAL STANDARDS

BUILT ON INTEGRITY
We strive to always act with honesty and transparency and to make decisions that are in the best interests of our clients.

EXECUTION EXCELLENCE
We hold ourselves to a high standard of excellence in all aspects of our work. This includes not only planning and strategizing but also execution.

PASSION
Our team is fueled by passion and a shared drive to succeed. It's this dedication and collaboration that sets us apart and drives our success.

HIGH-PERFORMANCE CULTURE
By fostering a culture that values excellence, hard work, and collaboration, employees are motivated to perform at their best, thus driving the organization's success.

LEADERSHIP
We prioritize leadership around developing and executing core business processes centered on our branch team's and customers' needs.



LOCAL ROOTS

We take pride in creating lasting relationships. After all, as a locally owned and operated company, we're more than just your landscapers; we're members of your community, your neighbors, and your friends. We feel a strong sense of community; nothing makes us happier than seeing you love the land around you.

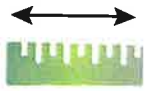
DOVER	SARASOTA	WESLEY CHAPEL
Serving	Serving	Serving
Hillsborough, Pasco, Pinellas & Polk	Charlotte, DeSoto, Hardee, Manatee,& Sarasota	Citrus, Hernando, Hillsborough, Pasco & Pinellas

OPTIMAL COMMUNICATION

WE VALUE ACCOUNT MANAGEMENT
AS AN LMP CLIENT, YOU WILL ALWAYS BE HEARD.

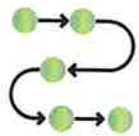
A results-driven Account Manager will be directly responsible and dedicated to the quality of your landscape and service support. After signing up, your Account Manager will be on the phone to welcome you. They will get to know you and your landscaping needs while coordinating all aspects of your service needs.

You will also have a dedicated crew, which ensures that you'll always be able to rely on a team with a vested interest in your community that will work with you quickly to resolve issues.



Translate your vision and budget into a customized plan and schedule.

Will always be accessible and return telephone calls, texts, and emails promptly.



Will oversee your designated crews.

Provides solutions for your benefit.

Will provide constructive feedback, have open discussions about challenges, and own up to mistakes based on mutual respect and openness.



Provide flexibility in account management with the ability to adapt to new situations, adjust strategies and provide service excellence.

Will deliver on every detail and communicate consistently.

FLORIDA FRIENDLY

STRATEGIST

RESULTS DRIVER

SOLUTIONS

INNOVATIVE

STRUCTURE

ACCOUNTABILITY

COLLABORATOR

PARTNER

OPTIMAL RESULTS

What you do see makes all the difference.

MQI REPORT CATEGORIES

[1] Details
[2] Mowing Functions
[3] Shrub Pruning
[4] Shrub-Insect Disease
[5] Bed Weeds
[6] Turf & Plant Fertility
[7] Palm Pruning
[8] Tree Pruning
[9] Mulching
[10] Cleanliness
[11] Turf-Insect Disease
[12] Turf Weeds
[13] Water Management
[14] Carryovers
[15] Annuals

QUALITY CUSTOMER CARE

We do regular property walks independently and with our clients to ensure we meet your expectations. Each property receives multiple "touches" from a variety of LMP staff members. As part of this commitment, we conduct Monthly Quality Inspections (MQI) on all properties and share the results with you.

We evaluate our properties using objective criteria based on horticultural standards. Because of these audits, we can track your property history, develop timelines for improvements or enhancements, and provide a higher standard of care than you might receive elsewhere.

We want to meet with you regularly to share the results of our self-audits, bring issues to your attention before they become problems, and ensure we honor your vision with our work.

MONTHLY IRRIGATION REPORT

An irrigation inspection includes the following:

- Running the system to observe water distribution.
- Ensuring zones are running properly.
- Checking all components of the irrigation system.
- Adjusting heads as needed.
- Examining run times and making necessary adjustments.



FERTILIZATION & PESTICIDE REPORT

Our Technicians will treat and minimize the impact of insects, fungi and diseases. Applications will be applied using our LMP Spray Vehicles for Certified Personnel. We will apply both liquid and granular products at the proper rates per material label and under EPA guidelines and restrictions.

FLEET & EQUIPMENT MAINTENANCE & INSPECTIONS

Maintaining our fleet is crucial to our success. We take pride in our image and want to ensure our equipment is always in top condition. Our rigorous maintenance schedule ensures that every asset is operating at peak performance. We have on-site mechanics and full-service shops at each branch location to ensure we can work on everything in-house.

Not only does this attention to detail help us perform better in the field, but it also sets the expectation of our customers. When they see our clean trucks, well-dressed crew, and organized equipment, they know they can expect high-quality service.

Committing resources to our image increases efficiency, morale, and company pride. And most importantly, it adds value to our customers. By maintaining our fleet of high-performing tools, equipment, and vehicles, we can bring this value to our coworkers and customers.

ONBOARDING SERVICE BLUEPRINT

IT STARTS WITH 'HELLO.'
THIS IS THE BEST WAY FOR US TO LEARN WHO YOU ARE,
FOR YOU TO LEARN WHO WE ARE,
AND FOR ALL OF US TO FEEL LIKE WE'RE PART OF A TEAM.

DIGGING IN

Before our Start Date

Discovery

- Alignment between teams comes from shared knowledge.
- Discuss existing safety concerns.

Planning

- Health Evaluations of Turf and Plants
- Conduct Initial Soil and Compaction Tests

Initial Transition | Kick-Off Meeting

Introductions

- Meet the LMP team

Expectations

- Review agreed-upon first-month expectations
- Confirm site maintenance plan and initiatives for the first month.
- Identify any areas of concern.

Collaboration

- Sync Calendars
- Schedule Weekly Communication
- Schedule Monthly Reviews with Management
- Add Board Meetings and Special Events to the Calendar

Sync Communication

- Provide Emergency Action Plan with detailed contact information
- Client Portal Set-up and Training.



30

Planting Roots

On-Site Account Management Daily

- Weekly Reports submitted to FHR Management

Landscape Management

- Concentrate efforts for immediate improvement on areas of concern
- Spot-treat weeds in turf areas where needed.
- Formulate options for turf areas needing restoration.
- Implement a weed control program in planting beds.
- Fertilize weak shrubs throughout the property.

Irrigation Management

- Perform a full audit, including the infrastructure of the irrigation system.

Quality Inspection performed by LMP Management

LMP + FHR Satisfaction Review

- Review Monthly Quality Inspection
- Provide Fertilization and Pest Control Agronomics Plan and Schedule.

Submit Weekly Work Journal

- Provide a summary of work performed with notification of any problem areas.

Attend Board meetings

60

Landscape Management
- Carry on with the Scheduled Maintenance Plan
- Evaluate insect and disease programs and make necessary adjustments.

Irrigation Management
- Carry on with Irrigation Inspections and Improvements.
- Review Irrigation Audit Report with FHR
- Present Proposals of necessary repairs by priority

Arbor Care
- LMP Certified Arborist evaluates all trees on the property.
- Offer a tree inventory and maintenance plan.
- Provide proposals for any diseased, distressed, or dangerous trees.

Quality Inspection performed by LMP Management.

LMP + FHR Satisfaction Review
- Review Monthly Quality Inspection Report
- Review Fertilization and Pest Control Report
- Review Soil & Compaction Analysis
- Review Monthly Irrigation Report
- Review deficiencies from the number of zones, faulty controllers, compromised lines, and potential improvements to hydro zoning practices.
- Present Irrigation Recommendations for review and implementation approval.

Submit Weekly Work Journal
- Provide a summary of work performed with notification of any problem areas.

Attend Board meetings

90

Carry on with Landscape and Irrigation Management Schedule

Quality Inspection performed by LMP Management

LMP 90-Day Satisfaction Review
- Review details discussed during the initial meeting.
- Ensure the maintenance team is completing objectives, showing attention to detail, and that any major/minor issues with the landscape have been addressed.
- Review All Reporting

Submit Weekly Work Journal
- Provide a summary of work performed with notification of any problem areas.

Attend Board meetings

6 Month Touchpoint Satisfaction Survey



LONG-TERM PLANNING

Landscape design often incorporates twice the amount of plant material that will be sustainable when mature. In addition, proper soil development is ignored, and drainage problems are poorly understood once the site is completed. LMP can provide a long-term (3-5 years) management plan to guide you through these and other common landscape problems without starting over.



IMPROVING THE BUDGET

We are dedicated to helping you achieve your goals by consistently delivering proactive solutions that enhance operational savings, improve year-round aesthetics, and increase value. By effectively managing fixed and variable costs, we provide transparent budgets that eliminate surprises, allowing you to plan ahead and allocate your budget dollars wisely.

INDUSTRY LEADERS IN SAFETY

What you don't see makes all the difference.

Safety and compliance are two of the most essential concepts for property and facility managers. As such, it's critical that those they hire can demonstrate their commitment in these areas through certification.

Avetta® is a prestigious organization that ensures safety and compliance across various contractors and vendors, including Landscape Maintenance. Becoming certified is a complex process and requires ongoing compliance to uphold their status.

> As a member of Avetta, our valued clients can be guaranteed that LMP is committed to maintaining the highest health, safety, and sustainability levels within our organization.

Our employees are acutely aware of their individual responsibility for contributing to and maintaining a safe workplace for themselves, other workers, and all customers that could potentially be affected throughout our client's projects.

WE BUILD TRUST. WE BUILD PEOPLE. WE BUILD PEACE OF MIND.

Avetta MEMBER

We conduct our work in a matter that mitigates hazards and injuries.

Our field crews and managers are OHSA 10 & 30-hour trained.

Our full-time Safety Director makes routine Site Safety Audits.

At our weekly Safety Meetings, we share lessons learned from incident investigations to prevent others from getting hurt.

We hold all levels of the organization accountable for safety performance.

We empower all employees to stop any action or situation they believe is unsafe.

GPS Fleet Tracking System to minimize risks while maximizing our fleet's performance.

LMP is a Drug-Free Workplace Program.

NATIONAL ASSOCIATION OF LANDSCAPE PROFESSIONALS
Safe Company Program

GPS FLEET TRACKING

DRUG-FREE WORKPLACE
WE CONDUCT DRUG TESTING
- WHEN HIRED
- AT RANDOM
- AFTER AN ACCIDENT

E-Verify
Landscape Maintenance Professionals, Inc.
Company ID # 939290

NATURAL DISASTER
EMERGENCY RESPONSE PLAN
Minor, Major, or Catastrophic


Fire


Tropical Storm


Hurricane


Storm Surge


Safety Hazards


Tree Down

Having assisted with innumerable post-storm clean-up efforts and witnessed first-hand the force of hurricanes up-and-down the West Coast, LMP is well-positioned to quickly mobilize equipment and deploy crews to aid emergency responders, open roadways, and keep essential services running.

Our disaster response crews quickly and efficiently take care of your urgent cleanup and removal needs when there is no time to wait. Our equipment inventory includes bucket trucks, grapple trucks, chipper trucks, dump trailers, bobcats, chainsaws, and everything you need for storm cleanup and debris removal.

PRE-DISASTER

Depending on the disaster's location and magnitude, we will establish a support plan with all three branches.

Communication during a disaster is critical, but sometimes our communication can get disrupted during severe weather. We ask that you let us know the best way to contact you after a storm so we can report onsite in a timely manner when it's safe to do so.

The Irrigation team will shut down Pump Stations.

As needed, we'll secure any newly installed materials, such as palms or trees.

POST-DISASTER

1

ACCESSIBILITY

Remove debris and obstructions from roadways allowing for safe vehicle access.

Notify Property Manager of any hazardous areas.

Removing tree hazards causing or leading to unsafe conditions, such as limbs and trunks on top of buildings, power lines, blocking roads, or leaning in precarious situations.

2

IMMINENT DANGER

Analyze common area trees that are failing or leaning tree risks and act accordingly.

Remove debris from sidewalks and walkways.

Trim broken and hanging branches.

3

DEBRIS CLEARANCE

Debris clean-up and disposal from grounds and common areas

COSMETIC DAMAGE

Assess damage to plant materials and salvage when possible.

Resume irrigation schedule or adjust if grounds have flooded.

FINAL INSPECTION

Property inspection after all clean-up is complete.

INDUSTRY RECOGNITION

Lawn & Landscape | Top 100 Landscaping Firms | 2013-2023
Tampa Bay Business Journal | Top Commercial Landscape Firms | 2013 & 2017
Tampa Bay Business Journal | Top 25 Minority-Owned Businesses | 2014
Planet | National Landscape Award of Excellence | Cory Lakes CDD Merit Award | 2014
Business Observer | Gulf Coast Top 500 Companies | 2017
The American Registry | America's Most Honored Businesses Top 1% | 2018
Landscape Management | LM150 Largest Landscape Companies | 2018
Florida Community Association Journal | FLCAJ Readers' Choice Award | 2017 - 2018 - 2019
BOMA | Toby Awards
Suburban Office Park Mid-Rise (6-10 stories) Corporate Center I - IV at International Plaza
Cousins Properties | Corporate Center at International Plaza | Patrick Gehm | 2020

COMMUNITY CARE

We are proud to be a family-owned and operated business with a vision of success as we partner with our customers to enhance their properties. As a company comprised of managers and employees who live where we work, we're also focused on improving the areas we serve. Over the years, we have partnered with many organizations to help our community, and below are just a few.

Department of Veterans Affairs | Beautification of the Community Living Center Gardens
Dignity Memorial | Vietnam Wall Experience
Keep Pinellas Beautiful | Honeymoon Island State Park Adopt-A-Dune
Pasco County UFIIFAS Extension Luggage of Love Drive
Boricuas de Corazon Inc. Food Giveaway & Blood Donation
Youth Garden Grant | Kid's Gardening
Florida Water's Stewardship Program

SECTION 2 | LANDSCAPE MANAGEMENT SERVICES

Our teams are trained in comprehensive landscape maintenance protocols, from policing a property to removing all debris and hazards.

LANDSCAPE MAINTENANCE

TURF MAINTENANCE

Weekly commercial lawn care services consist of mowing all grass areas, edging line trimming, blowing debris off hard surfaces, and spraying selective weed control.

LAWN MOWING

Lawn Mowing Services are performed by trained and experienced employees.
We cut the right amount at the right time, taking great care in providing our clients with a lawn that is well-manicured and evenly cut.
Mowing is performed with specified mower types and blades sharpened daily to provide a quality cut.
We rotate our mowing patterns to minimize scalping and rutting by mower wheels and to minimize soil compaction.

EDGING & TRIMMING

Turfgrass edges along hardscaping are edged vertically, ensuring your property is perfectly manicured.
We carefully trim around plant material, boulders, and other landscape elements.
All hard surfaces (driveways, sidewalks, and curb lines) will be blown clean of grass clippings.

BED MAINTENANCE

Our pruning programs are designed to maintain your plant's natural form and a neat, healthy appearance.
We remove weeds every time we are on-site.
We address insect pest and disease symptoms early before they become a problem.

FERTILIZATION, WEED & PEST CONTROL

Our Lawn and Ornamental Care starts from the ground up.

SOIL TESTING PROGRAM

Good soil grows good plants and grass, which is why we begin every new landscape contract with a soil analysis. This will tell us the ph of the soil, the amount of different nutrients needed, and whether or not those nutrients are at the proper ratios.

INTEGRATED PEST MANAGEMENT

To successfully manage pests, it is crucial to have a practical solution that is executed properly. The most favorable outcomes are achieved when the client and LMP clearly understand the program's objectives and work together to implement them. This partnership enables us to handle pest issues proactively by controlling infestations and quickly addressing conditions that may lead to further infestations.

LMP takes pride in its ability to customize IPM programs to each customer's specific needs. This involves providing clear and easy-to-understand findings and recommendations, training employees, and continually evaluating the program to make any necessary adjustments.

FERTILIZATION PROGRAM

The lawn program is designed to provide timely fertilizer and weed control applications to give you the healthiest lawn possible while keeping weeds in check.

INSECT & PEST CONTROL PROGRAM

Designed for a healthy, pest-free lawn and trees and shrubs, using premium products, advanced techniques, and well trained personnel.

FIRE ANT MANAGEMENT

Fire ants don't feed on landscape plants but infest landscapes that, cause painful stings to people and pets. Fire ants can be life-threatening to people who have allergic reactions to stings. LMP offers safe and effective treatments that will suppress fire ants.

IRRIGATION & WATER MANAGEMENT

The experience and education of our Irrigation Division are the cornerstones of our effective water management. Our team of Certified Irrigation Contractors, Technicians, and Horticulturists provides industry-leading consultation, design, installation, maintenance, and repair services to ensure your irrigation system performs optimally. We use industry-leading irrigation equipment and adhere to best practices at all times.

MONTHLY IRRIGATION AUDITS

We inspect each zone of your irrigation system – every pipe, every nozzle, and head–ensuring the coverage is correct, heads are clean, and repairs are made as needed. Results are continuously tracked, analyzed, and provided for complete transparency and peace of mind.

IRRIGATION SYSTEM MAPPING & ASSESSMENTS

We begin each maintenance contract by thoroughly mapping the entire system to understand what valve works in which zone. The only way to maintain an irrigation system is by knowing it inside and out.

IRRIGATION DESIGN & INSTALLATION

As a licensed irrigation contractor, LMP incorporates the latest technology and equipment into our system designs, and there are no corners regarding irrigation system installation.

We maintain and install irrigation systems for all commercial applications. We design efficient irrigation systems utilizing the latest drip line, micro, spray, rotor, and bubbler irrigation technology.

We do not compromise our integrity. We only use top-quality products and components that guarantee functionality, durability, and longevity. The installation services will be done using cutting-edge techniques that guarantee outstanding performance. ***Quotes and Designs Available Upon Request***






RETROFITS

If your irrigation system is aging but is outside your budget for a complete replacement, we can upgrade existing components to improve performance. This allows you to maintain the efficiency of your system without the expense of an entirely new irrigation system.

EROSION CONTROL

Our goal is to minimize run-off and sediment, protect the integrity of the soil, mitigate risk, educate our clients, and deliver fast and reliable service.

Erosion problems associated with construction activities can scale from water pollution, flooding, stream channel damage, decreased groundwater storage, slope failures, damage to downstream lands and properties, and the time and costs associated with addressing these issues. These impacts can be successfully minimized by implementing erosion control measures on construction sites. These Best Management Practices (BMPs) prevent soil movement and soil loss, enhance project aesthetics, reduce complaints and fines, and eliminate appreciable damage to off-site receiving channels, properties, natural resources, and surface water bodies.

RAPID RESPONSE WATER MANAGEMENT TEAM

Our specialized team of certified irrigation professionals responds rapidly to mainline breaks, hot spots, and other water-related emergencies.

ARBOR CARE

LMP offers a complete line of arboriculture services to our commercial customers. Our team is trained and certified, and all operations are conducted with exceptional attention to all surroundings. We utilize the industry's best safety practices and are licensed and insured.

TREE HEALTH
Tree Assessment
Structural Restoration
Tree Trimming & Pruning
Fertilization
Injections
Aeration
Disease & Diagnosis
Cabling & Bracing
Preservation

EMERGENCY SERVICE
Hazardous Tree Removal
24–7 Emergency Tree Service
Storm Damage Services

TREE MAINTENANCE
Plant & Tree Installations
Palm Tree Services
Stump Grinding
De-Mossing
Debris Removal
Chipping
Forestry Mulching
Root Pruning & Air Spading
Tree & Palm Removal



Leon Jennings
ISA® Certified Arborist - FL-5259A
ISA® Tree Risk Assessment Qualified

FLORICULTURE SERVICES

Our floriculture services include design, installation, maintenance, and insect and disease control. Whether planted in garden beds or arranged in flowerpots, seasonal color can provide that extra something to enhance your landscape. Our design experts will work with you to design the right color program for your common areas.



Flower Color Display & Texture Studies
Flower & Bloom Selection
Soil Assessment & Optimization
Mulching & Irrigation Planning
Seasonal Flower Planting & Care
Post-Installation Deadheading Weekly

MAINTAINING TRAILS & NATURAL AREAS

Designated natural and preserved areas should be primarily for wildlife use and managed and maintained with that purpose in mind.

Buffers generally do not need to be "cleaned" up. Instead, buffers should be maintained naturally because they are essential for protecting interior habitats. Buffers are commonly pine-flatwood habitats that provide an upland component to the adjacent wetland ecosystem. Leaving the buffer in its natural state encourages the decomposition cycle, an essential biological process that creates microhabitats, food sources, nesting areas, and denning areas, returning nutrients to the soil.

Sustainable maintenance protects and enhances natural resources. While natural habitats often survive independently, expert intervention can help them flourish. Our team includes ISA Certified Arborists, Horticulturists, and other professionals who offer quality natural areas management services.

ADDITIONAL LANDSCAPE MANAGEMENT SERVICES

Our landscape enhancement services are perfect for those looking to make strategic improvements to enrich the appearance and sustainability of their current landscaping. . Our experienced, in-house quality manager will assess your property in-depth to create a comprehensive and wholly customized landscaping enhancement plan.

DESIGN

Whether it's a turf conversion, a new installation, or a complete landscape renovation, our experienced, award winning landscape designers will identify opportunities to optimize the value and perception of your property and implement those improvements. *Consultations and designs are provided to our clients at no charge.*

TURF AERATION

The soil under a lawn becomes harder and harder as the years pass. It is rained on, walked on, played on, and mowed regularly. Compaction tightens and restricts the passageways in your soil, preventing the roots of your grass from getting the nutrients it needs. The aeration process is a great way to improve the effectiveness of irrigation, reduce soil compaction and encourage healthy root development.

Reduced Water Runoff and Puddling	Benefits pH Modification
Aids in Thatch Management	Prepares Grass for Dormancy

MULCH REPLACEMENT

Mulch is sometimes viewed as an aesthetic element, and a layer of mulch can indeed make your landscape beds look sharp. However, beauty is just a bonus. The benefits of mulch run much more profound than appearance.

Adding a 2- to 3-inch layer of mulch is optional but adds a decorative "finished" look as it reduces weeds and conserves soil moisture for better growth.

As a part of the mulch process, all bed lines shall be trenched and beveled at a depth of 3" along bed areas bordered by sidewalks, curbs, and seasonal color bed areas to prevent mulch from washing out.

SOD INSTALLATION

Whether you need Bermuda grass, Bahia, Empire Zoysia, or one of eleven types of St. Augustine grass.

LANDSCAPE CONSTRUCTION SERVICES

Site Development & Land Clearing	Landscape Installation	Bed Delineation & Amend Soil
Site Prep & Grading	Irrigation Installation	Drainage & Erosion Control

Confidence from Integrity

Our estimating team works closely with each client from the project's inception to the finishing touches. Our pre-construction services include sourcing materials, accurately estimating costs, and providing value options.

Pre-Construction Services

Our experienced operational team members provide estimates, budgets, coordination, and value engineering opportunities that make your team more efficient without compromising the quality of the project.

Seamless Project Management & Quality Assurance

Our back office operates with the same dedication to quality and efficiency as our field operations.

Job Site Maintenance

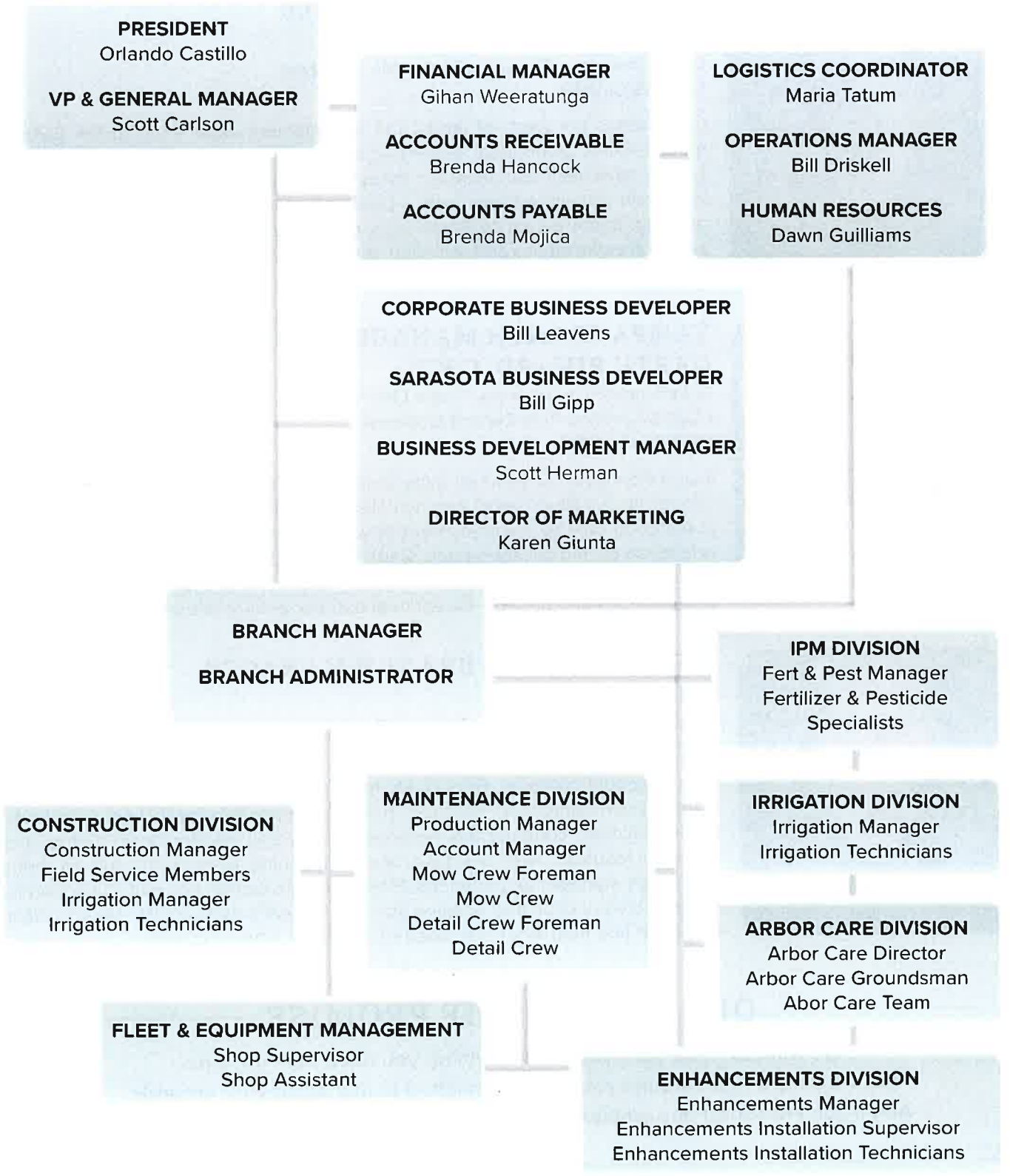
A clean, clear construction site so health, safety, and productivity are never impaired.

Phased Planning

More extensive development projects may require a phased installation approach. We start with a master plan, which allows the project to be phased in correctly and efficiently.

LMP ACCOUNT MANAGEMENT

ALIGNING PEOPLE ALIGNING INFORMATION ALIGNING ACTIONS



BRANCH MANAGEMENT

The are the backbone of our branches, ensuring efficiency, and quality, driving our commitment to excellence, and delivering outstanding results every step of the way.



SARASOTA BRANCH MANAGER
CHRISTOPHER BERRY

Green Industry – 17 years | Team LMP – 5 years
UF-IFAS GI-BMP

Chris brings 17+ years of landscape management experience to the Sarasota branch. Chris' exceptional leadership and unwavering commitment to customer service have been instrumental in the successful growth of our Sarasota branch. He leads with a client-first approach, a passion for the horticulture industry and team building, and a balanced knowledge of production operations and clients. He sets high expectations and, with that, is dedicated to overseeing the development of his team.



TAMPA BRANCH MANAGER
GARTH RINARD, CPCO

Green Industry – 34 years | Team LMP – 7 years
FDACS Certified Pest Control Operator
UF-IFAS GI-BMP

Aside from over 37 years of experience, Garth's hard work ethic and positive outlook inspire all who work with him. His love for horticulture and the natural world is matched only by his enjoyment of working with people to form long-lasting relationships and collaborations. Garth provides service leadership and support to our clients and his team, ensuring we understand and deliver on their needs and priorities and provide exceptional outdoor environments for our clients.



WESLEY CHAPEL BRANCH MANAGER
BILL CONRAD

Green Industry – 35 years | Team LMP – 2 years
UF-IFAS GI-BMP

As an account manager, Bill quickly translated his plant expertise to projects, using proven horticulture practices to find solutions. His loyal client base loved his friendliness, competence, responsiveness, and insistence on high-quality work. Bill leads our Wesley Chapel team in planning, executing, and monitoring landscape management services. Everyone who works with him is inspired by his strong work ethic and positive attitude. He leads by example, always willing to step in and help wherever needed while focusing on quality.

OUR LEADERSHIP PROMISE

We want to make sure you get everything you need from day one.
So, we build a team around you that's committed to managing your grounds.
And if you encounter any problems, we'll always go the extra mile to get it right.

DEDICATION AT WORK FOR YOU

Clear Value. Consistent Results. Quality Customer Care.

HIGH-PERFORMANCE CREW MEMBERS

At LMP, Team building is an ongoing process. We regularly evaluate individual and team performance and encourage each other to set and achieve personal and professional goals building upon a cohesive and supportive team environment. The result is a strong work ethic among all teams that focuses on results and shared recognition of team successes.





"We have created an environment where team members can achieve more than they believed possible. Dedication, team spirit, and accomplishments are seen every day at LMP, and so are the opportunities that accompany those traits."

– Scott Carlson, VP & GM








AN EDUCATED APPROACH

The LMP team consists of arborists, horticulturalists, and landscape professionals who are genuine experts in tree care and landscaping services. We create a harmonious balance of trees, plants, shrubs, and flowers and are sensitive to the environment. When you choose to work with LMP, you can count on designs grounded in science and abundant in artistic beauty. Our education, certifications, accreditations, and passion for the environment create long-term success in the landscape.

Certified Horticulture Professional

Paula Means — BS Horticultural Production & Design, Florida Southern College

Landscape Design

Paula Means — Professional Career Institute

UF | IFAS GI-BMP Certified 75+ employees

International Society of Arboriculture (ISA)
Certified Arborist & Tree Risk Assessment Qualification (TRAQ)

Leon Jennings — FL-5259A

Irrigation Association Certified Irrigation Contractor

Sam Martel — LSS-009912

Florida Department of Agriculture & Consumer Services

Landscape Maintenance Professionals, Inc. | JB136721

Certified Pest Control Operator

Scott Richardson	JF327415
Garth Rinard	JF159948
Alex Figueroa	JF287006

Limited Commercial Fertilizer Certification

Nelson Calderon	LF233541	David Mason	LF279730
Alex Figueroa	LF242457	Scott Richardson	LF263836
Stephen Fletcher	LF219686	Jose Rios	LF284218
Carlos Gomez	LF225682	Bonifacio Villegas	LF219742

Pesticide Applicator Certification

Ramon Barbosa	JE327033	Andres Melo	JE266670
Joseph Bond	JE207834	Angel Miron	JE284078
Ricardo Burgos-Sepulveda	JE252127	Gabriel Miron Torres	JE201115
Nelson Calderon	JE186565	Edgardo Navarro	JE201115
Candido Gaspar Juan	JE272937	Hector Ortiz	JE280379
Michael Davidson	JE116766	Esteban Portillo-Castro	JE307203
Luis Ernesto Diaz	JE266583	Ledarin Ragins	JE205518
Alex Figueroa	JE243326	Sotero Ramos	JE277849
Stephen Fletcher	JE199332	Scott Richardson	JE254469
Carlos Picazo Gomez	JE201112	Garth Rinard	JE29820
Nayeli Gomez Diaz	JE325314	Jose Rios	JE283843
Alejandro Juarez	JE252128	Rueben Rivero Hernandez	JE280376
Rigaud Lafortune	JE262585	Sergio Rojas	JE257142
Felix Carlos Laporte	JE237375	Jose Ruiz	JE230001
Robert Law	JE136722	Nicholas Sanborn	JE170039
William Leavens	JE138769	Roman Santa Maria	JE312806
Auner Lopez	JE243116	Luis Santana	JE280377
Andres Lopez Juan	JE257877	Steven Small	JE170038
David Mason	JE174601	Lorenzo Vargas	JE206681
Paula Means	JE287366	Bonifacio Villegas	JE204496

A WATER-WISE IRRIGATION TEAM

Landscape Maintenance Professionals, Inc. is a licensed and insured certified irrigation system contractor that employs numerous certified irrigation technicians. The LMP Irrigation team is dedicated to providing the highest quality and the highest standard of customer satisfaction. We are fully vetted and ready to provide the best commercial irrigation project solution.

Our goal at LMP is to provide each customer with the proper volume of sprinkler head coverage to move water around their lawn efficiently.

Dover Irrigation Manager: Sergio Uresti
Pasco Irrigation Manager: Kevin Pajala
Sarasota Irrigation Manager: Jonathan Lopez
Certified Irrigation Contractor: Sam Martel

Irrigation Design

Irrigation Installation

Hunter Core Product Specialist

Hunter Advanced Product Specialist

I-Core DUAL Decoder Specialist

ACC & Two-Wire Specialist

X2™ Specialist

Centralus Irrigation Management

EZ Decoder System Specialist

Hydrawise Specialist









LANDSCAPE MAINTENANCE FLEET

A successful landscape maintenance engagement is driven by the performance of services by qualified and experienced individuals and their access to well-maintained equipment and vehicles. LMP has three full-time mechanics, supported by mechanic assistants, who oversee the vehicles in its fleet and minor engine repairs. LMP has over ninety vehicles in its fleet and more than four hundred pieces of equipment that it utilizes to perform professional services, including:

Make	Model	Year		Totals
Chevy	4500 LCF Gas 176" Wheelbase Crew Cab w/ 14ft Landscape Dump bed	2021 [2]		2
GMC	Canyon	2022 [1]		1
Chevy	Colorado	2022 [3] 2021 [3] 2020 [4] 2019 [3]	2018 [3] 2016 [3] 2015 [2]	21
Ford	F-150	2013 [3] 2011 [5] 2010 [4]		12
Ford	F-250	2022 [2] 2020 [1] 2017 [1] 2016 [1] 2015 [2] 2014 [1]	2013 [1] 2012 [4] 2011 [5] 2010 [1] 2008 [2] 2006 [1]	20
Ford	F-250XL 4x2 Reg Cab 8' bed SRW	2022 [1]		1
Ford	F-350	2002 [1]	1999 [1]	2
Ford	F-450	2011 [1]		1
Freightliner	M2-106	2020 [1]		1
Isuzu	NPR Crew Cab	2016 [2]	2018 [3]	5
Isuzu	NPR HD	2020 [1]		1
Isuzu	NPR HD Crew Cab	2021 [1]		1
Isuzu	NPR w/ Dump Body	2022 [1]		1
Isuzu	NPR with 14' Landscape dovetail body	2022 [1]		1
Isuzu	NPR with 14' Landscape dump body	2022 [3]		3
Isuzu	NQR	2018 [2]		2
Isuzu	NQR w/ Dump Body	2020 [2]	2018 [1]	3
Nissan	NV200	2018 [1] 2015 [2]	2014 [2]	5
Ford	Ranger	2011 [1]	2008 [1]	2
GMC	Sierra 1500	2008 [1]		1
Chevy	Silverado 1500	2013 [2]	2011 [1]	3
Chevy	Silverado 2500HD	2022 [1]		1
Isuzu	Spray	2005 [1]		1
Ford	Transit Connect XL Cargo Van LWB	2022 [3]		3
Dodge	RAM ProMaster City Base Cargo Van	2022 [1]		1
Chevy	Colorado WT 4x2 Crew Cab 5' bed , V6 engine	2022 [1]		1
Ford	F-250 XL 4x2 SD Crew Cab 8 ft. box 176 in. WB SRW	2022 [1]		1
Ford	Transit Connect XL Cargo Van LWB	2022 [3]		3
Chevy	2022 ISUZU NPR HD CREW CAB - Landscape Dovetail body	2021 [1]		1
International	4200 SBA 4x2 (Bucket Truck)	2007 [1]		1
Chevy	Colorado WT 4x2 Crew Cab 5' bed	2022 [1]		1

LANDSCAPE MAINTENANCE EQUIPMENT

At Landscape Maintenance Professionals, we have the tools necessary to take care of your lawn properly. All of our equipment is state of the art and regularly maintained and cleaned to ensure you're getting the best service available for your commercial property.



Manufacturer	Description	In Rotation
Stihl	28.4 CC Edger	2
Stihl	28.4 CC Straight Shaft Trimmer	3
Stihl	Blower	105
Husqvarna	Blower	13
Billy Goat	Blower	4
Bread Cyclone	KB4 Pull Behind Blower	1
Bobcat	S570 T4 Bobcat	1
Echo	Chainsaw	1
Stihl	Chainsaw	10
Stihl	Edger	82
Husqvarna	Edger	13
Echo	Edger	2
John Deere	Gator	7
Stihl	Hedge Trimmer	36
Husqvarna	54" Stand On Mower	1
Husqvarna	Husqvarna 60" ZTR	1
Husqvarna	Husqvarna 72" ZTR	3
TORRO	Lake Shore Trimmer	1
Stihl	Long Trimmer	3
TORRO	48" Recycle Kit Mower	2
TORRO	48" Walk-Behind Mower	2
TORRO	60" Recycle Kit Mower	16
TORRO	72" ZTR Turbo Force Mower	2
ExMark	Push Mower	1
ExMark	Riding Mower 60"	5
ExMark	Riding Mower 72"	8
ExMark	Walk-Behind Mower	10

Manufacturer	Description	In Rotation
ExMark	Zero Turn Mower	5
TORRO	Two Wheel Sulky	10
Stihl	Pole Pruner	11
Stihl	Pole Saw	6
Gravely	Pro Stance	3
Little Wonder	Push Blower	2
Bravo 25	Push Mower	2
ExMark	Push Mower	2
Husqvarna	Push Mower	1
Mc Lane	Reel Mower	1
Stihl	Saw	6
Husqvarna	Saw	1
Stihl	Shear	7
Stihl	Short Trimmer	6
Husqvarna	Short Trimmer	2
ExMark	Sprayer	6
ExMark	Stand-on	8
Stihl	String Trimmer	94
ExMark	Turf Tracer	6
Pace	Push Mowers	2
Echo	Water Pumps	2
Echo	Weed Eater	4
Stihl	Whip	28
ExMark	Zero Turn Mower	9
Husqvarna	Zero Turn Mower	18
John Deere	Zero Turn Mower	1



INSURANCE, LICENSING & REGULATORY COMPLIANCE

CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY): 08/02/2023

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER	**CONTACT NAME:** Chayla Deitz, CISR, CIC
Stahl & Associates Insurance, Inc.	**PHONE (A/C, No, Ext):** (727) 391-9791 **FAX (A/C, No):** (727) 393-5623
110 Carillon Parkway	**E-MAIL ADDRESS:** certificatesstpete@stahlinsurance.com
St. Petersburg FL 33716	
INSURED	**INSURER(S) AFFORDING COVERAGE** — **NAIC #**
Landscape Maintenance Professionals Inc	**INSURER A:** FCCI Insurance Group — 10178
DBA: LMP	**INSURER B:** Monroe Guaranty Ins Co — 32506
P O Box 267	**INSURER C:** Endurance American Specialty — 41718
Seffner FL 33583-0267	**INSURER D:** FCCI Insurance Company — 10178
	INSURER E:
	INSURER F:

COVERAGES **CERTIFICATE NUMBER:** 2023 Master Liability **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
A	[X] COMMERCIAL GENERAL LIABILITY [ ] CLAIMS-MADE [X] OCCUR [X] $1,000 PD Deductible GEN'L AGGREGATE LIMIT APPLIES PER: [ ] POLICY [X] PRO-JECT [X] LOC [ ] OTHER:			GL10007876801	08/01/2023	08/01/2024	EACH OCCURRENCE DAMAGE TO RENTED PREMISES (Ea occurrence) MED EXP (Any one person) PERSONAL & ADV INJURY GENERAL AGGREGATE PRODUCTS - COMP/OP AGG $	$ 1,000,000 $ 100,000 $ 5,000 $ 1,000,000 $ 2,000,000 $ 2,000,000 $
B	AUTOMOBILE LIABILITY [X] ANY AUTO [ ] OWNED AUTOS ONLY [ ] SCHEDULED AUTOS [ ] HIRED AUTOS ONLY [ ] NON-OWNED AUTOS ONLY			CA10007877101	08/01/2023	08/01/2024	COMBINED SINGLE LIMIT (Ea accident) BODILY INJURY (Per person) BODILY INJURY (Per accident) PROPERTY DAMAGE (Per accident) UM / UIM	$ 1,000,000 $ $ $ $ 20,000 / 20,000
C	[X] UMBRELLA LIAB [X] OCCUR [ ] EXCESS LIAB [ ] CLAIMS-MADE [ ] DED [X] RETENTION $ N/A			EXT30042351200	08/01/2023	08/01/2024	EACH OCCURRENCE AGGREGATE $	$ 1,000,000 $ 1,000,000 $
A	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) Y/N: N If yes, describe under DESCRIPTION OF OPERATIONS below	N / A		WC010007877201	08/01/2023	08/01/2024	[X] PER STATUTE [ ] OTH-ER E.L. EACH ACCIDENT E.L. DISEASE - EA EMPLOYEE E.L. DISEASE - POLICY LIMIT	 $ 1,000,000 $ 1,000,000 $ 1,000,000
D	Leased or Rented Equipment			CM10007876901	08/01/2023	08/01/2024	Limit Deductible	$75,000 $2,500

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

CERTIFICATE HOLDER

FOR INFORMATION PURPOSES ONLY

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

© 1988-2015 ACORD CORPORATION. All rights reserved.

Form **W-9**
(Rev. October 2018)
Department of the Treasury
Internal Revenue Service

Request for Taxpayer Identification Number and Certification

▶ Go to *www.irs.gov/FormW9* for instructions and the latest information.

Give Form to the requester. Do not send to the IRS.

Print or type. See Specific Instructions on page 3.

1 Name (as shown on your income tax return). Name is required on this line; do not leave this line blank.
Landscape Maintenance Professionals, Inc.

2 Business name/disregarded entity name, if different from above

3 Check appropriate box for federal tax classification of the person whose name is entered on line 1. Check only one of the following seven boxes.

☐ Individual/sole proprietor or single-member LLC ☐ C Corporation ☑ S Corporation ☐ Partnership ☐ Trust/estate

☐ Limited liability company. Enter the tax classification (C=C corporation, S=S corporation, P=Partnership) ▶

Note: Check the appropriate box in the line above for the tax classification of the single-member owner. Do not check LLC if the LLC is classified as a single-member LLC that is disregarded from the owner unless the owner of the LLC is another LLC that is **not** disregarded from the owner for U.S. federal tax purposes. Otherwise, a single-member LLC that is disregarded from the owner should check the appropriate box for the tax classification of its owner.

☐ Other (see instructions) ▶

4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3):

Exempt payee code (if any)

Exemption from FATCA reporting code (if any)

(Applies to accounts maintained outside the U.S.)

5 Address (number, street, and apt. or suite no.) See instructions.
PO BOX 267

Requester's name and address (optional)

6 City, state, and ZIP code
Seffner, FL 33583

7 List account number(s) here (optional)

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN*, later.

Note: If the account is in more than one name, see the instructions for line 1. Also see *What Name and Number To Give the Requester* for guidelines on whose number to enter.

Social security number
___ - ___ - ____

or

Employer identification number
59 - 3613665

Part II Certification

Under penalties of perjury, I certify that:

1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
2. I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
3. I am a U.S. citizen or other U.S. person (defined below); and
4. The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II, later.

Sign Here Signature of U.S. person ▶ [signature] Date ▶ 1-3-23

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to *www.irs.gov/FormW9*.

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS must obtain your correct taxpayer identification number (TIN) which may be your social security number (SSN), individual taxpayer identification number (ITIN), adoption taxpayer identification number (ATIN), or employer identification number (EIN), to report on an information return the amount paid to you, or other amount reportable on an information return. Examples of information returns include, but are not limited to, the following.

- Form 1099-INT (interest earned or paid)
- Form 1099-DIV (dividends, including those from stocks or mutual funds)
- Form 1099-MISC (various types of income, prizes, awards, or gross proceeds)
- Form 1099-B (stock or mutual fund sales and certain other transactions by brokers)
- Form 1099-S (proceeds from real estate transactions)
- Form 1099-K (merchant card and third party network transactions)
- Form 1098 (home mortgage interest), 1098-E (student loan interest), 1098-T (tuition)
- Form 1099-C (canceled debt)
- Form 1099-A (acquisition or abandonment of secured property)

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN.

If you do not return Form W-9 to the requester with a TIN, you might be subject to backup withholding. See What is backup withholding, *later.*

2023 - 2024 HILLSBOROUGH COUNTY BUSINESS TAX RECEIPT **EXPIRES SEPTEMBER 30, 2024**

ACCOUNT NO. 216156
RENEWAL

OCC. CODE
330.001009 RETAIL STORE WITHOUT HAZARDOUS WASTE SURCHARGE

Receipt Fee	30.00
Hazardous Waste Surcharge	0.00
Law Library Fee	0.00

BUSINESS LANDSCAPE MAINTENANCE PROFESSIONALS INC
13050 E HWY 92
DOVER, FL 33527

2023 - 2024

NAME LANDSCAPE MAINTENANCE PROFESSIONALS INC
MAILING ADDRESS PO BOX 267
SEFFNER, FL 33583

Paid 22-0-643818
09/19/2023 30.00

BUSINESS TAX RECEIPT

HAS HEREBY PAID A PRIVILEGE TAX TO ENGAGE IN BUSINESS, PROFESSION, OR OCCUPATION SPECIFIED HEREON

NANCY C MILLAN, TAX COLLECTOR
813-635-5200
THIS BECOMES A TAX RECEIPT WHEN VALIDATED.

2023 - 2024 HILLSBOROUGH COUNTY BUSINESS TAX RECEIPT **EXPIRES SEPTEMBER 30, 2024**

ACCOUNT NO. 25734
RENEWAL

OCC. CODE
280.030001 LAWN MOWING/LANDSCAPING SERVICE MORE THAN 3 EMPL(120 Employees

Receipt Fee	150.00
Hazardous Waste Surcharge	40.00
Law Library Fee	0.00

BUSINESS LANDSCAPE MAINTENANCE PROFESSIONALS INC
13050 E 92 HWY
DOVER, FL 33527

2023 - 2024

NAME LANDSCAPE MAINTENANCE PROFESSIONALS INC
MAILING ADDRESS PO BOX 267
SEFFNER, FL 33583

Paid 22-0-643818
09/19/2023 190.00

BUSINESS TAX RECEIPT

HAS HEREBY PAID A PRIVILEGE TAX TO ENGAGE IN BUSINESS, PROFESSION, OR OCCUPATION SPECIFIED HEREON

NANCY C MILLAN, TAX COLLECTOR
813-635-5200
THIS BECOMES A TAX RECEIPT WHEN VALIDATED.

2023 - 2024 HILLSBOROUGH COUNTY BUSINESS TAX RECEIPT **EXPIRES SEPTEMBER 30, 2024**

ACCOUNT NO. 241489
RENEWAL

OCC. CODE
330.000010 NURSERY/PLANT

Receipt Fee	30.00
Hazardous Waste Surcharge	40.00
Law Library Fee	0.00

BUSINESS LMP INC TREE & SHRUB
13050 US 92 E
DOVER, FL 33527

2023 - 2024

NAME LMP INC TREE & SHRUB
MAILING ADDRESS PO BOX 267
SEFFNER, FL 33583

Paid 22-0-644690
09/20/2023 70.00

BUSINESS TAX RECEIPT

HAS HEREBY PAID A PRIVILEGE TAX TO ENGAGE IN BUSINESS, PROFESSION, OR OCCUPATION SPECIFIED HEREON

NANCY C MILLAN, TAX COLLECTOR
813-635-5200
THIS BECOMES A TAX RECEIPT WHEN VALIDATED.

PASCO COUNTY BUSINESS TAX RECEIPT

2024
Expires September 30th

Issued pursuant and subject to Florida Statutes and Pasco County Ordinances. Issuance does not certify compliance with zoning or other laws. This receipt must be posted conspicuously in place of business.

ACCOUNT # 88302

SIC CODE 0781 01

MIKE FASANO
TAX COLLECTOR
PASCO COUNTY FLORIDA

TYPE OF BUSINESS
LANDSCAPING SERVICE

STATE LICENSE # /or COUNTY COMP CARD #

OWNER/QUALIFYING AGENT
CASTILLO ORLANDO JR CARLSON SC

LANDSCAPE MAINTENANCE PROFESSIONALS INC

PO BOX 267
SEFFNER, FL 33583-0267

LOCATION ADDRESS
26324 WESLEY CHAPEL BLVD
LUTZ, FL 33559-7208

MOBILE BUSINESS

DATE	RECEIPT	AMOUNT
09/20/2023	23-0-151583	113.75

State of Florida
Department of Agriculture and Consumer Services
Division of Consumer Services
2005 Apalachee Pkwy
Tallahassee, Florida 32399-6500

Registration No.: **AD1294**
Issue Date: October 30, 2023
Expiration Date: November 4, 2024

POST CERTIFICATE CONSPICUOUSLY

License as Dealer in Agriculture Products

Section 604.15-604.30, Florida Statutes

LANDSCAPE MAINTENANCE PROFESSIONALS, INC.
13050 E US HIGHWAY 92
DOVER, FL 33527-4106

WILTON SIMPSON
COMMISSIONER OF AGRICULTURE

B123622

FLORIDA DEPARTMENT OF AGRICULTURE AND CONSUMER SERVICES
COMMISSIONER WILTON SIMPSON

CERTIFICATE OF NURSERY REGISTRATION

Section 581.131, F.S. and Rule 5B-2.002, F.A.C
1911 S.W. 34th St. P.O. Box 147100, Gainesville, FL 32614-7100 (352) 395-4700

ISSUED TO:

LMP INC. TREE AND SHRUB
CASTILLO, ORLANDO
PO BOX 267
SEFFNER, FL 33583-0267

FEE PAID: $100.00

REGISTRATION NO.: 48009485

DATE ISSUED: 01/12/2024

THIS IS TO CERTIFY that the nursery stock on the premises of the nursery shown hereon has been inspected for plant pests and meets at least the minimum requirements of Section 581.131, Florida Statutes.

THIS CERTIFICATE OF REGISTRATION MUST BE DISPLAYED or in the immediate possession of any person engaged in the sale or distribution of nursery stock.

WILTON SIMPSON
Commissioner of Agriculture

FDACS-08002 Revised 05/05

CITY OF CLEARWATER

Business & Development Department
Post Office Box 4748, Clearwater, Florida 33758-4748
Municipal Services Building, 100 South Myrtle Avenue, Clearwater, Florida 33756
Telephone (727) 562-4005

REG-0023075

2023-2024 BUSINESS REGISTRATION

THIS REGISTRATION MUST BE IN YOUR POSSESSION WHEN WORKING IN CLEARWATER.

Owner Name/Address
LANDSCAPE MAINTENANCE
PROFESSIONALS INC
P O BOX 267
SEFFNER, FL 33583

Business Name
LANDSCAPE MAINTENANCE
PROFESSIONALS INC
REGISTRATION

Category	Quantity
038320 Contractor: Landscaping/tree surgery	
038330 Contractor: Lawn, yard and garden care	REGISTRATION / HILLSBOROUGH CO / DACS #68795-5

CONTRACTOR IS RESPONSIBLE FOR REMOVING ALL DEBRIS

LICENSE	PERIOD BEGINNING	PERIOD ENDING		PRINT DATE	
2023-2024	October 1, 2023	September 30, 2024		September 8, 2023	
				FEE	RECEIVED
Registration Fee		21868	992891	28.00	28.00

TOTAL RECEIVED 28.00

THE ISSUANCE OF A LOCAL BUSINESS TAX RECEIPT DOES NOT PERMIT THE HOLDER TO VIOLATE ANY ZONING

State of Florida
Department of State

I certify from the records of this office that LANDSCAPE MAINTENANCE PROFESSIONALS, INC. is a corporation organized under the laws of the State of Florida, filed on December 16, 1999.

The document number of this corporation is P99000109381.

I further certify that said corporation has paid all fees due this office through December 31, 2021, that its most recent annual report/uniform business report was filed on May 20, 2021, and that its status is active.

I further certify that said corporation has not filed Articles of Dissolution.

Given under my hand and the Great Seal of the State of Florida at Tallahassee, the Capital, this the Twenty-third day of June, 2021

Secretary of State

Tracking Number: XQ92363492CU

To authenticate this certificate, visit the following site, enter this number, and then follow the instructions displayed.

https://services.sunbiz.org/Filings/CertificateOfStatus/CertificateAuthentication

STATE OF FLORIDA
DEPARTMENT OF HEALTH
Operating Permit

29-57-901419

29-BID-6807481

Limited Use Water - LU Commercial

Issued To: Landscape Maintenance Professionals (Castillo, Orlando)
13070 US 92 Highway
Dover, FL 33527

Mail To: Orlando Castillo (Landscape Maintenance Professionals, Inc)
PO Box 267
Seffner, FL 33583

Owner: Landscape Maintenance Professionals, Inc (Castillo, Orlando)

County: Hillsborough
Amount Paid: $140.00
Date Paid: 09/19/2023
Issue Date: 10/01/2023
Permit Expires On: 09/30/2024

Issued By:
Department of Health in Hillsborough County
P O Box 5135
Tampa, FL 33675
(813) 307-8059

STATE OF FLORIDA
DEPARTMENT OF HEALTH
Operating Permit

Operating Permit

29-QH-941392

29-BID-6809181

OSTDS - Operating - Industrial or Manufacturing

Issued To: Landscape Maintenance Professionals, Inc.
13050 E US 92 Highway
Dover, FL 33527

Mail To: Landscape Maintenance Professionals, Inc.
13050 E US 92 Highway
Dover, FL 33527

Owner: Landscape Maintenance Professionals Inc. (,)

County: Hillsborough
Amount Paid: $150.00
Date Paid: 09/19/2023
Issue Date: 10/01/2023
Permit Expires On: 09/30/2024

Issued By:
Department of Health in Hillsborough County
P O Box 5135
Tampa, FL 33675
(813) 307-8059

SECTION 4 | REFERENCES & PROJECT GALLERY

Triple Creek Community Development District
Management | Rizzetta & Company, Inc.
Telephone | (813) 699-9065
Contract Start Date | December 1, 2020

Contact | Alex Garces
Email | boardmember5@triplecreek.com
Contract Value| $813,024.00





Belmont Community Development District
Management | GMS Management Services
Telephone | (404) 723-1245
Contract Start Date | October 1, 2020

Contact | Kristen Brooks, Chairman
Email | Boardmember5@belmontcdd.com
Contract Value | $402,500.00





Panther Trace Community Development District
Management | Vesta Property Services
Telephone | (813) 671-8023
Contract Start Date | November 11, 2015

Contact | Monica Vitale, Facilities Director
Email | ptrecentermanager@verizon.net
Contract Value | $158,664.00





Heritage Isles Golf & Country Club Community Development District

Management | Inframark
Telephone | (813) 907-7388
Contract Start Date | October 1, 2009

Contact | Rich Unger, Director of CDD Operations
Email | HIManager@hicdd.org
Contract Value | $250,000.00






Cory Lakes Community Development District

Management | Wrathell, Hunt & Associates
Telephone | (813) 924-4673
Contract Start Date | December 1, 2010

Contact | John Hall
Email | clcddfm@corylakescdd.net
Contract Value | $343,900.00





The Starkey Ranch Community Development District

Management | Wrathall, Hunt & Associates
Telephone | (813) 399-0865
Contract Start Date | January 1, 2023

Contact | Barry Mazzoni
Email | mazzonib@whhassociates.com
Contract Value | $1,850,000.00





Watergrass I Community Development District

Management | Inframark
Telephone | (813) 873-7300 Ext. 397
Contract Start Date | September 1, 2017

Contact | Gene Roberts
Email | gene.roberts@inframark.com
Contract Value | $162,636.00





Watergrass II Community Development District

Management | Inframark
Telephone | (813) 991-1116 Ext. 1002
Contract Start Date | February 1, 2021

Contact | Andy Mendenhall
Email | andy.mendenhall@inframark.com
Contract Value | $518,580.00





Estancia at Wiregrass Community Development District

Management | GMS
Telephone | (813) 344-3844
Contract Datel July 1, 2021

Contact | Pete Williams
Email | pete@pwillassoc.com
Contract Value | $622,500.00







Hunter's Green Community Association

Self-Managed
Telephone | (813) 991-4818
Contract Start Date | March 1, 2022

Contact | Wally Switzer
Email | wswitzer@huntersgreen.com






Harrison Ranch Community Development District

Management | Rizzetta & Company, Inc.
Telephone | (813) 658-6048
Contract Start Date | November 18, 2019

Contact | Taylor Nielsen
Email | tnielsen@rizzetta.com
Contract Value | $411,697.00





Venetian Community Development District

Management | Rizzetta & Company, Inc.
Telephone | (941) 485-8500
Contract Start Datel September 26, 2019

Contact | Keith Livermore, District Field Manager
Email | fieldmanager@vcdd.org
Contract Value | $332,845.00





Ventura Bay Homeowner's Association

Management | Leland Management
Telephone | (727) 498-1451
Contract Start Date | March 4, 2019

Contact | Angela Estilette
Email | aEstilette@lelandmanagement.com





Hawk's Point West Homeowner's Association

Management | Vesta Property Services
Telephone | (813) 645-1569
Contract Start Date | February 25, 2019

Contact | Donald Novak
Email | hpw.donnovak@yahoo.com





Willowbend Community Association

Management | Sentry Management
Telephone | (770) 380-0225
Contract Start Date | October 1, 2019

Contact | Scott Brundrett, President
Email | willowbendpresident@gmail.com






Urban Centre
Management | Franklin Street Real Estate
Telephone | (813) 839-7300
Contract Start Date | July 1, 2009

Contact | Amy Hewitt
Email | amy.hewitt@franklinst.com






Tampa Bay Park Corporate Center
Management | Highwood Properties
Telephone | (813) 876-7000
Contract Start Date | April 1, 2001

Contact | Mike Dean
Email | michael.dean@highwoods.com





Corporate Center at International Park
Management | Cousins Properties
Telephone | (813) 421-8702
Contract Start Date | March 15, 2013

Contact | Don Stupp
Email | dstupp@cousins.com





Highwoods Preserve
Management | Highwoods Properties
Telephone | (317) 289-3616
Contract Start Date | January 1, 1999

Contact | Diamond Asabi
Email | diamond.asabi@cbre.com





Sarah Vande Berg Tennis & Wellness Center
Management | SVB
Telephone | (610) 888-5599
Contract Start Date | October 12, 2020

Contact | Pascal Collard
Email | pascal.collard@svbtenniscenter.com







100 Carillon Parkway
Management | Commonwealth Commercial
Telephone | (813) 536-7050
com Contract Start Date | March 8, 2008

Contact | Jonathan Harris
Email | jonathan.harris@commonwealthcommercial.





Cypress Creek Town Center
Management Company | Sierra Properties
Telephone | (813) 484-2288
Contract Start Date | February 1, 2015

Contact | Brent Whitley
Email | brentwhitley@sierra-properties.com






The Amalfi Clearwater
Management | Richman Properties Services
Telephone | (727) 224-6050
Contract Start Date | February 1, 2012

Contact | Brian Murphree
Email | murphreeb@richmanmgt.com







SECTION 5 | PARTNERSHIP PRICING & DETAILS

PERSONNEL

The individual who will be responsible for directly managing this account will be Sergio Rojas. Sergio has been with LMP for 8+ years, and during this tenure, he has extensive experience managing extensive CDD districts and HOA's. His attention to detail and his communication separate Sergio from other Account Managers in the industry. He is very personable and is not afraid to get his hands dirty when needed. Sergio understands that relationships are the essential facet of our business. He strives to instill this on every property he is involved with and is the foundation in which he manages.

The LMP local office that will be servicing Bobcat Trail CDD is approximately 30 minutes away, on Rome Ave. Sarasota, near I-75, affording us the ability to mobilize very quickly to go in any direction. For Bobcat Trail CDD, we intend to use 1 maintenance crew of 6 to service the property weekly, 1 detail crew of 5 monthly. We have always felt that a smaller crew over multiple days does a much better job than a large crew in one
day. Multiple days of service provide us the extra ability to pay close attention to items that we observed on our first day of service and address those items that same week as opposed to waiting until the following weeks to service. In addition, we will have two supervisors, including our Fertilizer/Pest Supervisor. As for trained technical staff, we will be utilizing additional skilled technicians to address the community's floral enhancements, fertilization, and pest control throughout the year.

SERVICE AND SITE SUPERVISION

LMP will be providing hard copies of our work activity reports to the property manager; applicable maintenance form, pest control forms, irrigation forms. The Sarasota Branch Manager, Chris Berry, will make weekly visits to the property, perform quality control checks, and ensure that the finer detail work is fulfilled. Your account manager will also conduct monthly Maintenance Quality Inspections (MQI), our in-house quality program where LMP performs a scored inspection, including pictures and detailed notes on observed issues. This inspection is provided to the property manager, LMP Corporate Management, and passed down to the maintenance crews as an "items to correct" punch list.

EXPERIENCE

LMP has been in business since 1991. We are a family-owned company based in Tampa with offices in Lutz and Dover and a branch in Sarasota. We employ over 220 employees and have roughly 100 trucks on the road each and every day. In our bid package, you will see a partial list of our various customers. I would encourage you to pick out any of those customers you would like to contact, and we will supply you with the contact information. This is how committed we are to our quality, as we firmly believe our customers will tell you just how pleased they are to have LMP as their landscape maintenance partner. Currently, we work with over 25+ Community Development Districts throughout the state of Florida.

UNDERSTANDING THE SCOPE OF WORK

Being a service provider that currently maintains over 25 CDD's in the State of Florida, we fully understand the scope of work. We are very committed to working hard to improve the overall appearance of Bobcat Trail CDD. All of our technicians are certified in Best Management Practices (BMP) from the University of Florida. This is critical when considering a vendor because our technicians (fertilization, pesticide, and irrigation) are trained to diagnose issues before they become an issue on your property, which helps reduce any issues before they become more significant issues. Ultimately, it is our responsibility to make the property's landscape look the very best at all times, and we can assure you that we fully understand the high level of service expectations. We also understand the expectation of the specifications that they provide to contractors probably better than any of the other bidders.

FINANCIAL CAPACITY

Our bid package outlines our fleet and equipment owned as well as our insurance coverage information. Working for several Fortune 500 companies, we understand the importance of being stable as a business. These companies and many other customers put their largest uninsured asset in the hands of LMP to oversee for them, and we welcome the challenge to take ownership of their landscape.

PRICE

We believe our pricing is comprehensive and well-thought-out for both parties. We understand what the job needs are and have accounted for all items in our bid. We also fully understand that pricing is vital in the evaluation process. Still, we are also in the relationship business and pride our reputation as an excellent operational company that provides high-level quality service at reasonable prices. We honor our prices for the life of the contract. You will not have any bait and switch tactics issues from the low bidding of portions of the agreement.

REASONABLENESS OF ALL NUMBERS

LMP leadership has built a culture of accountability, meaning we take ownership over the impact of our actions. Our teams have seen first-hand how accountability has helped them bridge the gap between goals and implementation, improved performance discussions, and in the end, achieved better results and outcomes for our clients.

If we were to miss the mark on our fertilizer count, we would provide the needed fertilizer to fulfill the job at no additional cost. Additionally, if the fertilizer quantity was inaccurate, what else might we have missed in the pricing process? We would revisit the initial evaluation to establish our counts and review all areas to readjust fertilizer across the property.

SHRUB, BEDS & TREE RING WEED CONTROL PROGRAM

- LMP will use mechanical means (pulling weeds by hand) and chemical means (non selective and pre-emergent herbicides) to create relatively weed-free ornamental beds.
- According to the service schedule map, weeds found in beds and tree rings are treated and/or pulled.
- Mechanical means will be used around plants filled with undesirable grasses/weeds to prevent and damage from non-selective herbicides. Weeds taller than 2 inches are removed manually.
- Chemical means: non-selective herbicides will be used in open areas around shrubs, plants and tree rings.
- Pre-emergent herbicides will be used to reduce and eliminate the germination of weeds in ornamental beds.
- Areas that have been treated with weed control will be flagged with the application date and time.

TURF WEED CONTROL PROGRAM

- LMP will implement a comprehensive turf weed control using a variety of control methods and Florida Best Management Practices (BMP).
- Spot applications of selective weed control; rotating products throughout the growing season as temperatures and weather conditions change. These applications will be conducted monthly and as needed.
- Broadcast weed control applications will be performed on areas where weeds have reached a threshold not controllable by spot applications only.
- Proper Irrigation: this practice limits the spread of dollar weed and sedges, two weed species that thrive when the turf is over-watered.
- Pre-emergent weed control: this would be a broad spectrum pre-emergent weed control product to reduce the amount of weed germination. Pre-emergent would be applied once the current turf broadleaf weed issues are brought under control. Applications would be conducted following contract specifications.
- Areas that have been treated with weed control will be flagged with the application date and time.

SOIL TESTING PROGRAM

- LMP will implement a comprehensive soil testing program to ensure that the custom-blended fertilizers that we plan to use are compatible with the current soil conditions.
- We plan to conduct these tests as needed to provide the optimum fertilization and soil amendment program for Bobcat Trail CDD.

Landscape Maintenance Professionals, Inc.SM

P.O. BOX 267 SEFFNER, FL 33583 – (813) 757-6500 – FAX (813) 757-6501 – SALES@LMPPRO.COM

LANDSCAPE MAINTENANCE SERVICE AGREEMENT

Landscape Maintenance Professionals, Inc. ("LMP, Inc.") appreciates the opportunity to propose to you how we can help enhance the overall quality of your landscape. Our team is committed to integrating the specific landscape needs of your property with your service expectations taking into account your budget considerations.

The contract does not attempt to address damage caused by vandalism, floods, hurricanes, poor drainage, or other incidents beyond the control of the contractor. The contractor will endeavor to address such contingencies upon client's request by separate agreement.

This Agreement is by and between the following Parties:

"**Contractor**"
Landscape Maintenance Professionals, Inc.
P.O. Box 267
Seffner, FL 31583
Phone: (813) 757-6500
Fax: (813) 757-6501

"**Customer**"
BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT
Jeffery Brall
1352 Bobcat Trail
North Port, FL 34288
941-426-0808

Any and all notices, written correspondences shall go to the above-listed addresses for "Contractor and "Customer."

Description of "**Property**" covered by this Agreement: All landscaped areas within the boundaries of
BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT, NORTH PORT, FL 34288

LMP, Inc., hereafter referred to as "Contractor," agrees to furnish all supervision, labor, materials, supplies, and equipment to perform the work hereinbelow

ACCORDING TO FLORIDA'S CONSTRUCTION LIEN LAW (SECTIONS 713.001-713.37, FLORIDA STATUTES), THOSE WHO WORK ON YOUR PROPERTY OR PROVIDE MATERIALS AND SERVICES AND ARE NOT PAID IN FULL HAVE A RIGHT TO ENFORCE THEIR CLAIM FOR PAYMENT AGAINST YOUR PROPERTY. THIS CLAIM IS KNOWN AS A CONSTRUCTION LIEN. IF YOUR CONTRACTOR OR A SUBCONTRACTOR FAILS TO PAY SUBCONTRACTORS, SUB-SUBCONTRACTORS, OR MATERIAL SUPPLIERS, THOSE PEOPLE WHO ARE OWED MONEY MAY LOOK TO YOUR PROPERTY FOR PAYMENT, EVEN IF YOU HAVE ALREADY PAID YOUR CONTRACTOR IN FULL. IF YOU FAIL TO PAY YOUR CONTRACTOR, YOUR CONTRACTOR MAY ALSO HAVE A LIEN ON YOUR PROPERTY. THIS MEANS IF A LIEN IS FILED YOUR PROPERTY COULD BE SOLD AGAINST YOUR WILL TO PAY FOR LABOR, MATERIALS, OR OTHER SERVICES THAT YOUR CONTRACTOR OR A SUBCONTRACTOR MAY HAVE FAILED TO PAY. TO PROTECT YOURSELF, YOU SHOULD STIPULATE IN THIS CONTRACT

THAT BEFORE ANY PAYMENT IS MADE, YOUR CONTRACTOR IS REQUIRED TO PROVIDE YOU WITH A WRITTEN RELEASE OF LIEN FROM ANY PERSON OR COMPANY THAT HAS PROVIDED TO YOU A "NOTICE TO OWNER." FLORIDA'S CONSTRUCTION LIEN LAW IS COMPLEX, AND IT IS RECOMMENDED THAT YOU CONSULT AN ATTORNEY.

Landscape Maintenance Specifications

A. Turf Care

1. **Mowing:** Rotary lawn mowers will be used with sufficient horsepower to leave a neat, clean, and uncluttered appearance at least 42 times per calendar year (Floratam) and 36 times per calendar year (Bahia) depending on growing season and conditions. It is anticipated that mowing services shall be provided weekly during the growing season, April through October, and every other week during the non-growing season or, as needed, November through March.

2. **Trimming:** Turf areas inaccessible to mowers and areas adjacent to buildings, trees, fences, etc., will be controlled by a line trimmer. A continuous cutting height will be maintained when line trimming to prevent scalping.

3. **Edging:** All turf edges of walks and curbs shall be performed every mowing (42 times per year). A soft edge of all bed areas will be performed every other mowing (21 times per year). A line trimmer will be used for this purpose. A line trimmer may be used only in areas not accessible to power edgers.

4. **Fertilization:** St. Augustine turf areas shall be fertilized with a commercial-grade fertilizer four (4) times per year. Timing of applications will be adjusted to meet horticultural conditions, and supplemental applications of appropriate nutrients shall be applied as indicated by test results. *Bahia turf areas may be fertilized at additional cost that is outside of the scope of work for this contract.* All local governmental ordinances shall be strictly followed by Contractor.

5. **Weed, Insect, and Disease Control:** LMP, Inc. employs an IPM (Integrated Pest Management) program, which calls for only legally approved chemicals to be used as needed for weed, insect, and disease issues. Any infestations will be treated on an as-needed basis throughout the year, and the customer will be made aware of the actions taken and the chemicals used. Pre-Emergent herbicides will be used from November 1st to April 1st, and Post-Emergent herbicides will be used from April 1st to October 30th due to soil and air temperatures. (LMP, Inc. will not be held responsible for the post-emergent control of common grassy weeds like crabgrass due to the absence of legal and selective post-emergent herbicides for this use.) Ant mounds will be treated as they appear with Advion Ant Bait to eliminate mounds. **Contract pricing does include Bayer's Top Choice** , *or similar products that are used for guaranteed year-long fire ant control, at a minimum of two times per year to the entire property.*

B. Tree, Palm, Shrub, and Groundcover Care,

1. **Pruning:** All trees, palms, shrubs, and ground cover shall be pruned as follows:
   A) All trees **(up to 12 feet)** shall be pruned **AS NEEDED** per year to keep them away from walls and rooftops and to also eliminate any overhanging branches or foliage which obstructs and or hinders pedestrian or motor traffic.
   B) All palms **(up to 15 feet)** shall be pruned **AS NEEDED** per year, removing dead fronds and spent seedpods. Loose boots will be removed and kept consistent in height.
   C) All shrubs shall be pruned and shaped a maximum of twelve (12) times per year. This will help the individual plant retain its natural form and eliminate branches which are rubbing against any structures.
   D) All Fakahatchee and Liriope shall be cut back in early Spring to remove all dead foliage, allowing for plants to be at optimum health during the growing season.
   E) Selective pruning of shrubs shall occur one (1) time per year to balance infiltrating light, remove dead wood, and promote maximum health and growth.
   F) The removal of diseased or injured branches and palms fronds will be performed as needed up to 12' on trees and 15' on palms. Any branches or fronds above these heights will be performed at an additional cost.
   G) All sucker growth from trunks and base of trees shall be removed as needed during every visit to property.

H) Ground covers, and vines will be maintained in a neat, uniform appearance.

2. **Fertilization**: Shrubs and ground covers will be fertilized three (3) times per year. Palms and hardwood trees will be fertilized three (3) times per year. Supplemental applications of appropriate nutrients shall be applied as indicated by soil samples if necessary.

3. **Weeding:** Weeds will be removed from all plant, tree, and flower beds once a month during the non-growing season and twice a month during the growing season (18 times per year). Manual (hand pulling) and chemical (herbicides) will be used as control methods. **Three (3) blanket applications of a Pre-emergence will be applied to all ornamental beds.**

4. **Insect and Disease Control:** All landscape beds shall be monitored and treated with appropriate baits as needed throughout the year by our dedicated team. LMP, Inc. employs an IPM (Integrated Pest Management) program, which calls for chemicals to be used only as needed. Any infestations will be treated on an as-needed basis, and the customer will be made aware of the actions taken as well as the chemicals used. Plants will be monitored, and issues addressed as necessary to effectively control insect infestation and disease as environmental, horticultural, and weather conditions permit. (*Our pricing **does not** include Bayer's Top Choice or Chipco Choice, or similar products*).

C. Miscellaneous

1. **Clean-Up:** During every visit to the property, all areas shall be policed. All non-turf areas will be cleaned with a backpack or street blower. All trash shall be picked up throughout the property before each mowing 42 times per year. Trash shall be disposed of offsite. Construction debris or similar trash is not included as part of weekly clean-up.

2. **Leaf Removal:** Leaf accumulations in curb lines and parking lots during the Fall months shall be removed and disposed of offsite. Any accumulation in shrub beds shall be blown out of the beds to prevent damage to plant material while providing a neat and clean appearance.

3. **Irrigation Inspection:** All irrigation zones shall be inspected one (1) time per month to ensure proper operation. All zones will be turned on for a minimum of five minutes to check for any coverage issues or any broken irrigation components. Any issues that require adjustments or cleaning of the filters, heads, rotors, spray nozzles will be performed during the monthly inspection. Any issues that have been caused by contractor shall be repaired at no cost to the client. Management shall receive a monitoring report after monthly irrigation inspection. All repairs to system shall be done on a time and materials basis, with the hourly labor rate being $70.00 per man-hour. Contractor is not responsible for turf or plant loss due to water restrictions. Contractor shall identify any operational issues to said irrigation system within the first thirty (30) days of contract commencement for customer to be aware so that written authorization may be approved to bring system up to fully operational status. **COVERED REPAIRS INCLUDED IN THE CONTRACT PRICE ARE ALL COMPONENTS ON THE DISTRIBUTION SIDE OF THE VALVES, INCLUDING VALVES. REPAIRS TO BE PRICED SEPARATELY INCLUDE ALL SYSTEM COMPONENTS ON THE SUPPLY SIDE OF THE VALVES, INCLUDING BUT NOT LIMITED TO ELECTRICAL, RAIN SENSORS, AND CONTROLLERS AND ALL MODIFICATIONS TO THE SYSTEM CONFIGURATION.**

D. Additional Services

1. **Mulching: INCLUDED IN THIS CONTRACT** Upon written authorization of the client, contractor shall mulch all planting beds with pine bark or shredded mulch at a price of $65.00 per cubic yard, ensuring that all areas have a 2" depth after installation. As a part of the mulch process, all bed lines shall be trenched and beveled at a depth of 3" along bed areas that are bordered by sidewalks, curbs, and seasonal color bed areas to prevent mulch from washing out. If the amount quoted is not sufficient to mulch the entire property, an additional count will be submitted for completion at the same price per yard.

2. **Annuals: INCLUDED IN THIS CONTRACT** Upon authorization of the client, contractor will replace and install **250 4 ½" annuals four (4) times per year** and make nutritional requirements needed to ensure a healthy

SAC

plant. Deadheading declining flowers will be performed weekly. Additional annuals will be billed separately on a per-plant cost. Contractor will provide annuals at a cost of $2.90 per plant. Price includes soil replenishment but not replacement.

3. **Tall Palm Trimming: INCLUDED IN THIS CONTRACT** contractor will trim all palms identified as being above 15 feet in overall height that will require a lift or bucket truck one (1) time per year.

4. **Special Palm Treatment Program:** Due to the value of Canary Island Date Palms, Sylvestris Palms, Phoenix Dactylifra, Phoenix Reclinata and Medjool Palms, a special palm fertilization and pest program is highly recommended. Identified palms will be fertilized with a 8-2-12 with 4% mg blend designed to address nutrient needs of palms four (4) times per year. A bud drench of systemic insecticide and fungicide will also be applied as a preventative for bud rots and borer insects for palms up to 15'. In addition, palms that have been identified as susceptible to Lethal Yellowing or Texas Phoenix Palm Decline, including Canary Island Date Palms, Sylvestris Palms, Phoenix Dactylifra and Phoenix Reclinata will be injected with the antibiotic oxytetracycline (OTC) four (4) times per year. While it is noted that there is no program that can guarantee the prevention of pest infestations, LMP uses the highest industry recommendations to manage the risk of the loss of these palms.

5. **Hand Pruning / Structural Pruning:** Upon written authorization of the client, deep hand pruning and/or structural pruning will be performed one (1) time per year during the dormant months to prune old wood and prune behind multiple breaks to maintain proper proportion, promote interior growth. Removal of up to 50% of the height and foliage of plants can take place during this pruning which will allow for the plant material to grow fuller during the growing season.

E. Pricing Summary

	Price Per Month	Price Per Year
Base Maintenance Price	$16,310.00	$195,720.00

Additional Services *(Upon Approval by Client)*	**Estimated Qty.**	**Price Per Unit or Service**
Mulch	INCLUDED	$65.00 per CY
Annuals (4" plants)	INCLUDED	$2.90 per 4" Plant
Tall Palm Trimming (Palms over 15')	INCLUDED	$55.00
Special Palm Treatment Program	TBD	$200.00 per Palm (entire year)
Irrigation system inspection	1	$1050.00 per inspection

Contractor agrees to provide all of the above Base Maintenance Services for an annual fee of $195,720.00, to be paid in monthly installments of $16,310.00 Contractor will invoice Customer one week prior to the beginning of each month's service. Customer agrees to pay each invoice within 30 days of the date of the invoice. Additional Services are not included as part of this Agreement or the Base Maintenance Services. Proposals for Additional Services must be executed by an Authorized Representative and are subject to all the terms and conditions of this agreement, which are hereby incorporated into such proposals for Additional Services by reference.

F. Conditions

The goal of this Agreement is that upon completion of each visit to the Customer, the landscape appearance shall be maintained to the highest reasonable standard possible given the nature of the Property and its individual condition.

1. **Term:** This Agreement will be in effect for an initial term of 36 months (3 years), with an effective start date of October 1, 2024 and will remain in effect on an annual basis until canceled by either party. To ensure that Customer's needs are being met, timely written notice of any deficiency or

SAC

concern must be provided in order to give Contractor a reasonable opportunity to remedy the deficiency or concern prior to termination of this Agreement. While Contractor encourages Customer to communicate with on-site crews and its account manager, notice solely to them is insufficient. All notices under this paragraph must be provided in writing by Customer's Authorized Representative to Contractor at the address specified above. Customer agrees to notify Contractor in writing within 10 days of the occurrence of any deficiency, concern, default or damage Customer believes was caused by Contractor. Failure to do so constitutes a waiver both of any such claims by Customer and of the right of Customer to cancel this Agreement due to such claims. Customer may cancel this Agreement following an unremedied deficiency by providing written notice to Contractor by certified mail. The cost to Contractor of the work in certain seasons is higher than in others, but Contractor has agreed to invoice Customer in even monthly installments. Therefore, in consideration of these variable internal costs, and in order to ensure an effective transition following a cancellation by Customer, termination notices received during the months of April through September shall cause an effective final date of billable services of not less than thirty (30) days after date of receipt. Notices received in any other months shall cause an effective final date of billable services of not less than ninety (90) days after the date of receipt. Any notice of termination by Customer shall be sent to Contractor at the addresses indicated on this Agreement. Contractor may terminate this Agreement for Customer's default if, after giving notice in writing to Customer's Authorized Representative at the address for Customer specified above, Customer has not remedied the default within five (5) calendar days (the "Deadline"). Unless a different period is specified in Contractor's written notice of termination for Customer's default, the Contractor's termination shall be effective on the first business day following the Deadline. Customer shall be liable to pay Contractor for all services rendered by Contractor through the effective date of termination for Customer's default. Notwithstanding any other provision to the contrary, Contractor may, in its sole and complete discretion, terminate this Agreement for Contractor's convenience by giving notice in writing to Customer's Authorized Representative at the address for Customer specified above. Contractor may also provide Customer with a courtesy communication containing notice of termination via email or other method, but effective notice shall be only by written notice mailed to Customer as described herein. Unless a different period is specified in Contractor's written notice of termination for convenience, the Contractor's termination shall be effective twenty-one (21) days after the date of Contractor's written notice of termination for convenience. Customer shall be liable to pay Contractor for all services rendered by Contractor through the effective date of termination for convenience. In the event Contractor terminates this Agreement for Customer's default, and it is later determined that the Customer was not in default or that the default was excusable under the terms of this Agreement, then, in such event, the Contractor's termination shall be deemed a termination for convenience as described herein.

2. **Performance:** The Parties agree that Contractor's performance of this Agreement can be, and often is, subject to weather conditions, which are beyond the Contractor's control. Contractor shall not be liable for any performance deficiency caused by weather conditions. The Parties also agree that Contractor is a contractor as that term is defined in Chapter 713, Florida Statutes, and that any and all work performed pursuant to this Agreement is an improvement to real property under Chapter 713, Florida Statutes.

3. **Adjustment:** This Agreement is subject to CPI adjustments annually effective the anniversary date or as otherwise agreed upon in writing by both parties.

4. **Fuel Surcharge:** Contract pricing is based on the Florida Regular Conventional Retail Gasoline Prices published every month. If the published monthly price shall increase by more than 10% than the cost of fuel at the time of bid and for 2 consecutive months upon commencement date, Contractor shall reserve the right to enact a fuel surcharge.

5. **Payments:** No finance charge will be imposed if invoices are paid in full within 30 days of invoice date. If not paid in full within 30 days, then a finance charge will be imposed from the invoice date on the balance due at a periodic rate of 1½% per month (18% per annum) until paid. Contractor shall have the right to elect to stop work under this Agreement until all outstanding amounts, including Finance Charges, are paid in full. Payments will be applied to the previously billed Finance Charges, and thereafter, in order, to the previous invoices and finally to the New Invoices.

SAC

6. **Authorized Representative:** Customer agrees, simultaneous with the signing of this Agreement, to designate in writing an Authorized Representative or Authorized Representatives, with whom Contractor can interface concerning this Agreement. In the event Customer desires to change its Authorized Representative(s), Customer shall provide written notice of the change to Contractor. By designating an Authorized Representative, Customer is representing to Contractor that the Authorized Representative has the authority to bind Customer to actions taken pursuant to this Agreement until that authority is revoked or changed by Customer.

7. **Order of Interpretation:** In the event other documents, terms, or conditions are annexed to or otherwise designed to amend or supplement this agreement, should there be a conflict between one or more provisions of the other documents, terms, or conditions and the terms of this agreement, the terms of this agreement will control.

8. **Collection:** In the event Contractor must collect past due amounts under this Agreement, Contractor shall be entitled to all expenses incurred as part of those efforts, including any attorneys' fees and costs.

9. **Subcontractors:** Contractor may, at its sole discretion, utilize subcontractors to provide specific services under this Agreement. Contractor will remain as the single and primary contact for all activities as related to this Agreement. Proof of insurance and necessary licenses will be provided if requested by Customer. Contractor will also provide workman's compensation and proof thereof on employees if requested by Customer.

10. **Acceptance:** This Agreement is withdrawn unless executed within ninety (90) days of the date of this document.

11. **Arbitration as the Sole Final Method of Dispute Resolution:** Any dispute, controversy or claim arising out of or relating to this Agreement, or the breach of this Agreement, which the Parties have not been able to resolve through their own discussions or negotiations, shall be settled by arbitration administered by the American Arbitration Association. Such arbitration, no matter the size, number of parties, or amount in dispute, shall be conducted in accordance with the 2020 Fast Track Procedures ("Procedures") of the Construction Industry Arbitration Rules of the American Arbitration Association, as modified hereby, unless the Parties agree otherwise. The arbitration shall be conducted before a single arbitrator. The final hearing is limited to one day, and it shall be held in person or, with the Parties' and the arbitrator's consent, via video conference. The final hearing shall be held not more than ninety (90) days after the arbitrator is appointed and the final decision shall be rendered not more than thirty (30) days after the conclusion of the final hearing, unless otherwise agreed by the Parties. The arbitrator's decision shall be a reasoned award. Notwithstanding anything contained in the Procedures to the contrary, the Exchange of Information contemplated by the Procedures shall occur no later than 15 days before the final hearing unless the arbitrator orders an earlier deadline. Unless the Parties agree in writing and the arbitrator consents, no Party shall be entitled to conduct depositions or present experts in the arbitration proceeding. Florida Law shall be applied by the arbitrator in adjudicating any dispute. Except to the extent a different venue is required by law, or the arbitration is by video conference as provided herein, venue for the arbitration proceeding shall be in Hillsborough County, Florida to the exclusion of each and every other proper venue. Contractor shall be entitled to recover against the Customer its all of Contractor's attorney's fees and costs, including fees and costs incurred in connection with proving up the amount and reasonableness of the fees and costs to be awarded, should Contractor prevail in arbitration. Judgment on the award rendered by the arbitrator(s) may be entered into any court having jurisdiction thereof.

Thank you for the opportunity to submit this agreement. We look forward to becoming part of your team. In witness whereof the parties of this agreement have signed and executed it this 15th day of JULY 2024.

Scott A. Carlson
Contractor Signature

Customer Signature

SCOTT A. CARLSON
Contractor Printed

Customer Printed

Title: C.O.O.

Title:

AFFIDAVIT OF ACKNOWLEDGMENTS

STATE OF FLORIDA

COUNTY OF SARASOTA

Before me, this undersigned authority, appeared the affiant, Scott A. Carlson, and having taken an oath, affiant, based on personal knowledge, disposes and states:

1. I assisted with the preparation of, and have reviewed, the Proposer's proposal (**"Proposal"**) provided in response to the Bobcat Trail Community Development District's **("District")** request for proposals for landscape and irrigation maintenance Services. All of the information provided therein is full and complete, and truthful and accurate. I understand that intentional inclusion of false, deceptive or fraudulent statements, or the intentional failure to include full and complete answers, may constitute fraud; and, that the District may consider such action on the part of the Proposer to constitute good cause for rejection of the proposal.
2. Under penalties of perjury under the laws of the State of Florida, I declare that I have read the foregoing Proposal and all of the questions are fully and completely answered, and all of the information provided is true and correct.

Dated this 15th day of July 2024.

Proposer: LANDSCAPE MAINTENANCE PROFESSIONALS, INC. ("LMP, INC.")

By: Scott A. C—

Title: C.O.O.

STATE OF FLORIDA

COUNTY OF SARASOTA

The foregoing instrument was acknowledged and before me this 15th day of July, 2024 by SCOTT A. CARLSON of LMP, INC

who is personally known to me or who has produced _____ as identification and did (✓) or did not ( ) take the oath.

Notary Public, State of Florida

Print Name. Nairobys Toledo

Commission No. HH406378

MyCommission Expires 06·05·2027

NAIROBYS TOLEDO
MY COMMISSION # HH406378
EXPIRES: June 05, 2027

PROPOSAL FORM
PART I - GENERAL INFORMATION

Proposer General Information...

Proposer Name LANDSCAPE MAINTENANCE PROFESSIONALS, INC.

Street Address

P. 0. Box (if any) PO BOX 267

City SEFFNER State FL Zip Code 33583

Telephone 813-757-6500 Fax no. 813-757-6501

1st Contact Name ORLANDO CASTILLO Title PRESIDENT

2nd Contact Name SCOTT A. CARLSON Title COO

Parent Company Name (if any) ALL INFORMATION SAME AS ABOVE

Street Address _____

P. 0. Box (if any) _____

City _____ State _____ Zip Code __ _

Telephone _____ Fax no. _____

1st Contact Name _____ Title _____

2nd Contact Name _____ Title _____

PART II - PERSONNEL AND EQUIPMENT

List the location of the Proposer's office, which would perform work/or the District.

Street Address 1306 ROME AVE.

P. 0. Box (if any)

City SARASOTA State FL Zip Code 34243

Telephone 941-556-9404 Fax no. 813-757-6501

1st Contact Name SCOTT A. CARLSON Title COO

2nd Contact Name CHRIS BERRY Title BRANCH MANAGER

PART III - BUSINESS STANDING AND INSURANCE

Is the Proposer registered with the State of Florida, Division of Corporations and authorized to do business in Florida? YES **X** NO

If no, please explain _____

What are the Proposer's current insurance limits?

1. Workers' Compensation: **FIND ATTACHED**
   a. State Worker's Compensation$ _____ per occurrence /S ___
   aggregate/$ _____ per disease _____
   b. Employer's Liability$ _____

2. Commercial General Liability Insurance: **FIND ATTACHED**

a. Bodily Injury, Sickness, Disease or Death, and Property Damage, per Occurrence $ _____

b. Bodily Injury, Sickness, Disease or Death, and Property Damage, Aggregate $_____

c. Products-Completed Operations $ _____

d. Personal and Advertising Injury $_____

e. Property Damage liability insurance will provide Explosion, Collapse, and Under-ground coverages where applicable:

3. Automobile Liability:

- Bodily Injury:

Each Person $ _____

Each Accident $ _____

- Property Damage:

Each Occurrence $ _____

4. Contractual Liability Insurance:

a. General Aggregate $_____

b. Bodily Injury and Property Damage

Combined Each Occurrence$_____

5. Pollution Insurance (covering third-party injury and property damage claims, including clean-up costs) $ _____

Licensure - Please list all applicable state and federal licenses and state whether such licenses are presently in good standing: **FIND ATTACHED**

_____

_____

_____

_____

PART IV - ADDITIONAL SUPPORTING INFORMATION

Supervisory Personnel to be Assigned to this Project:
Please list primary managers supervisors technical personnel to be assigned to this project.

CHRIS BERRY, BRANCH MANAGER

SERGIO ROJAS, ACCOUNT MANAGER

JONATHAN LOPEZ, IRRIGATION MANAGER

SCOTT RICHARDSON, FLORIDA CPCO MANAGER

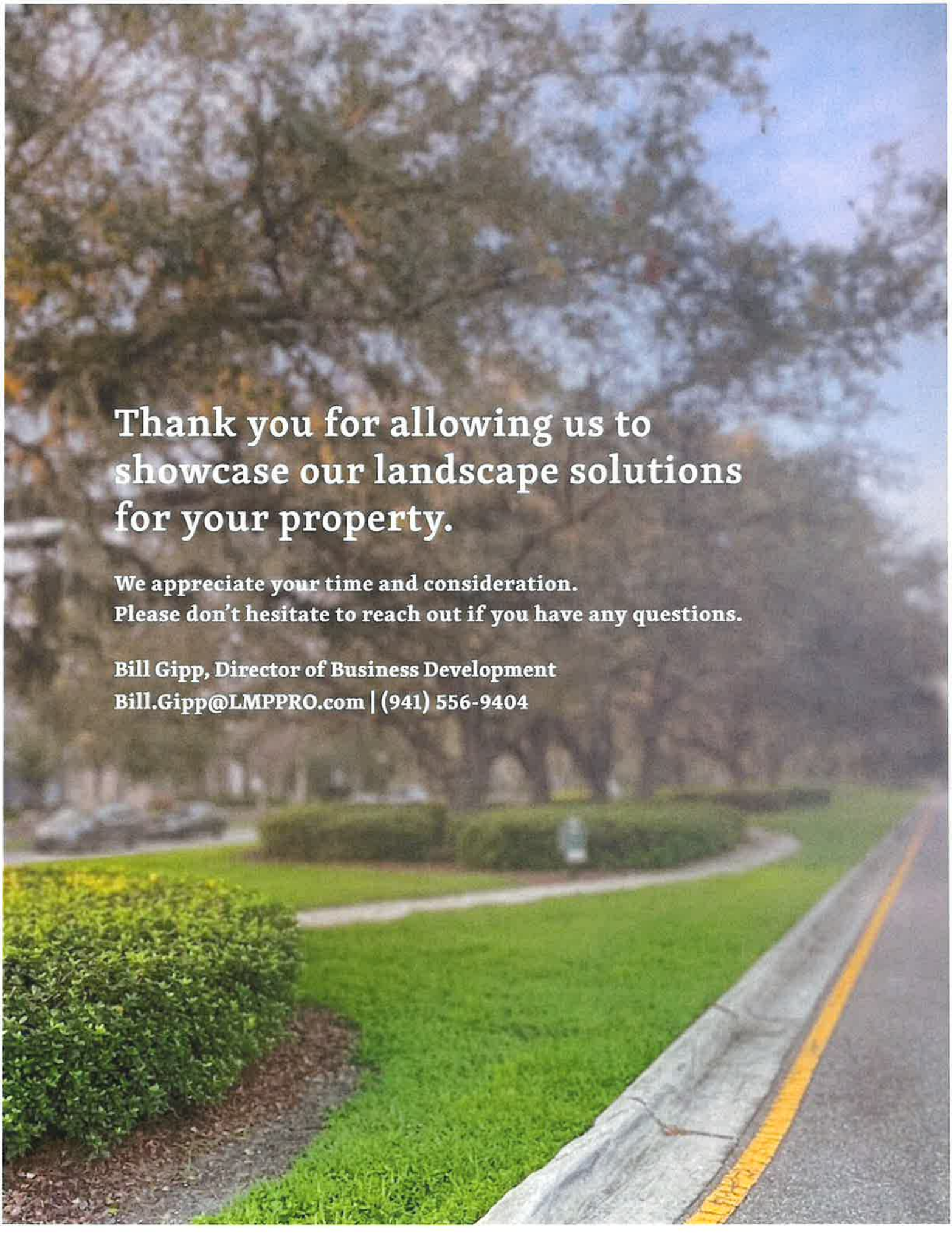
ERIC GORMAN, PRODUCTION MANAGER

DANNY GONZALES, TURF & PEST SPECIALIST

*** Does the Proposer currently employ any other technical personnel who have expertise in the scope of work for this Project and in pesticide application, herbicide application, arborculture, horticulture, or other relevant fields of expertise? Yes X_____ No If yes, please explain. **1.** Leon Jennings, ISA Certified Arborist-FL-5259A. **2.** Paula Means, Certified Horticulture Prosessional. **3.** Sam Martel, Certified Irrigation Contractor. **4.** Garth Rinard, CPCO. **5.** David Mason, Commercial Fertilizer Certification.

Security Measures - Please describe any background checks or other security measures taken with respect to the hiring and retention of personnel.
*** All employees shall be competent and qualified, and shall be U.S. citizens or legal residents, and/or authorized to work in the United States.
ALL EMPLOYEES ARE E VERIFIED

Sub-Contractors - Does the Proposer intend to use any subcontractors in connection with the work?
Yes _____ No **X**
*** For each subcontractor please provide name, address, contact person, phone#, proposed duties/responsibilities, and location of equipment and workforce site to perform this work.


Thank you for allowing us to showcase our landscape solutions for your property.
We appreciate your time and consideration.
Please don't hesitate to reach out if you have any questions.
Bill Gipp, Director of Business Development
Bill.Gipp@LMPPRO.com | (941) 556-9404

Tab 7



CITY WIDE
FACILITY SOLUTIONS

PROPOSAL

PREPARED FOR:



JUNE 6, 2024

This proposal is valid for 30 days.

CITY WIDE
FACILITY SOLUTIONS

June 6, 2024

Mike,

Thank you for this opportunity to propose janitorial services to Bobcat Trail CDD! We at City Wide Facility Solutions of Tampa Bay understand the importance of making a wise decision in partnering with a company that is experienced managing the needs of a communty like yours.

City Wide services over 600 properties in Tampa Bay, including 22 University of South Florida locations, Innisbrook Resort and Country Club, and many more.

HERE ARE A FEW OF THE MANY REASONS TO PARTNER WITH CITY WIDE FACILITY SOLUTIONS

- ➔ Industry leading customer retention rating!
- ➔ Ability to provide and certify completion of background checks and drug screening for uniformed and English speaking janitorial staff (upon request).
- ➔ Assignment of a Facility Solutions Manager (FSM) and Night Manager who will perform scheduled visits for inspections and to provide ongoing training.
- ➔ 50% Veteran Owned business with a Veteran "Preferred" hiring philosophy- partnered with MacDill Air Force Base for finding talented leaders to join our company.
- ➔ Focused on diversity and inclusion.
- ➔ Supportive of local small and minority business; 95% of our contracted partnerships are with medium-sized women and minority-owned businesses in Tampa Bay.
- ➔ Assurance of no down-time and low turnover due to competitive pay and cross-training individuals as back-up for the porter position and night crew positions.
- ➔ Providing non-profit support through donations and volunteer efforts.

Please read on for more details about our great company.

We sincerely appreciate your consideration of City Wide as your janitorial services solution, and we hope to develop a transition plan to facilitate the change-over to a superior service and experience with us!

Sincerely,



Herb Martin
Sales Executive
herb.martin@gocitywide.com
(813) 340-6584
City Wide Facility Solutions of Tampa Bay

WHY CITY WIDE?

CITY WIDE - CORPORATE

Founded in 1961 by Frank Oddo, City Wide Facility Solutions was built on family values and has grown exponentially. With 90 locations in 30 states, we currently **manage over 15,000 facilities nationwide**.



FRANK ODDO
Founder and CEO



JEFF ODDO
President



DaVita®

FedEx

FRESENIUS MEDICAL CARE

CSX TRANSPORTATION

WHY CITY WIDE?

CITY WIDE - TAMPA BAY

John Duffy and Steve Howerton opened City Wide Facility Solutions of Tampa Bay in early 2010. Since then, our branch has grown to over $30M in sales by remaining focused on client retention and a superior standard of management City Wide Tampa Bay is the second largest branch, toting the #1 sales team in the country.



JOHN DUFFY



STEVE HOWERTON

600+ FACILITIES CLEANED IN THE BAY AREA

8.5+ MILLION SQUARE FEET CLEANED

400+ CREWS

100+ Medical…

- ➔ BayCare Medical and Surgery Group
- ➔ Physician Partners of America
- ➔ University of South Florida (USF) Health

70+ Schools…

- ➔ USF Main Campus
- ➔ Academy of the Holy Names
- ➔ St. Pete Catholic High School
- ➔ Sarasota Military Academy

Offices…. Big & Small

- ➔ Lazy Days RV Center (150 Acres)
- ➔ Cintas Corp

USF UNIVERSITY OF SOUTH FLORIDA

BayCare Medical Group

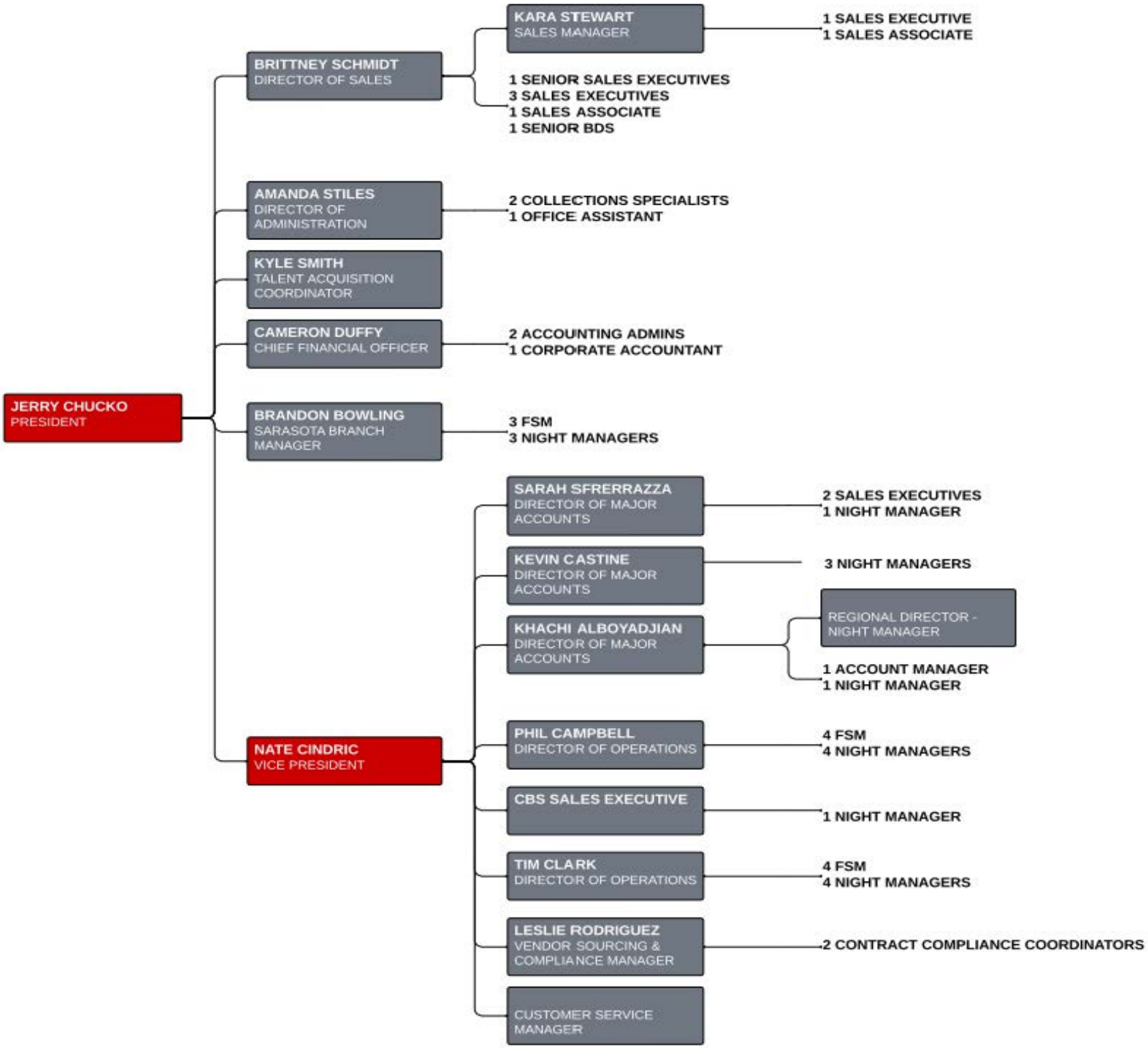
CROWN AUTOMOTIVE GROUP The Better Way To Buy

CINTAS READY FOR THE WORKDAY™

Lazydays THE RV AUTHORITY

HOW WE'RE ORGANIZED

City Wide Facility Solutions of Tampa Bay currently has **64 employees**, in addition to our 400+ crews.



WHY CITY WIDE?

CITY WIDE BUSINESS MODEL

City Wide Facility Solutions is a management company in the building maintenance industry. By uniquely representing the client, our professional management team serves as one point of contact for 20+ facility solutions for commercial properties, leveraging our network of independent contractors.

Regardless of the size and scope of your operation and the range of your immediate needs, City Wide can manage the job. We have developed a proprietary business model and are dedicated to a vision that does not simply try to do better than the competition but ensures 100% client satisfaction.



WHY CHOOSE CITY WIDE FACILITY SOLUTIONS?

For one service or many, City Wide will provide unparalleled assistance in the form of:

- ➔ **One point of contact**
- ➔ **Simplified invoicing**
- ➔ **24-hour client care**
- ➔ **Competitive pricing**
- ➔ **Facility Solution Manager & Night Manager**
- ➔ **Proactive evaluation of your building**

Our clients see a difference in the quality of service delivered by City Wide, no matter the size of your facility.

WE WANT TO BE YOUR FIRST CHOICE

Why continue to hire one janitorial company after another – resulting in the same problems – when you can hire a company that is committed to reducing your stress level and saving you time?

City Wide Facility Solutions wants to be your First Choice. With City Wide on your short list, you're not choosing between two maintenance companies; you're choosing between the same thing you have always done and a management company that can help you with more than 20 solutions for your facility.

WHEN YOU PARTNER WITH CITY WIDE, WE BECOME AN EXTENSION OF YOUR TEAM

WHY CITY WIDE?

YOUR MAIN POINTS OF CONTACT

Your City Wide team is comprised of a Director of Operations, a Facility Solutions Manager (FSM), and a Night Manager. Your City Wide team will learn the ins-and-outs of your building, identifying what needs to be taken care of. They know you have more important things to do, and they take care of the details for you. **Here's your team!**



BRANDON BOWLING

Sarasota Branch Manager
(813) 732-2706
bbowling@gocitywide.com



JOHN BERRY

Day Manager
(813) 846-8927
jberry@gocitywide.com
Meets with you during the day to help ensure quality and to address any other needs for your facility.



MARIANGEL QUINONES

Night Manager
(941) 298-4918
mquinones@gocitywide.com

Oversees the after hours services being done in your facility to ensure superior work on every project.

No matter how many or few services you require, City Wide removes the hassle from the equation. Due to our unique business model, we can provide all of this at a competitive price compared with others in the industry.

WHY CITY WIDE?

THE SOLUTIONS WE MANAGE

By providing just one point of contact for everything from carpet cleaning to janitorial supplies to window washing, your Facility Solutions Manager (FSM) reduces the stress and time spent dealing with vendors who are a constant source of problems. Your FSM will proactively help you keep your building in top shape and work with you to maximize your budget to get the most out of your facility. Here is a short list of some of the other services we manage:

DISINFECTING SERVICES

- ➔ High-touch areas
- ➔ Electrostatic spraying

JANITORIAL CONSUMABLES

- ➔ Toilet paper
- ➔ Soap and dispensers
- ➔ Paper towels
- ➔ Break room supplies

DETAIL CLEANERS

- ➔ Edge vacuum carpets
- ➔ Dust blinds
- ➔ Dust air vents
- ➔ High dusting
- ➔ Wash walls

FLOOR CARE SPECIALISTS

- ➔ Strip / refinish all resilient tile and hard surface floors
- ➔ Scrub restroom floors
- ➔ Carpet cleaning
- ➔ Carpet extraction
- ➔ Acid wash

CARPET CARE SPECIALISTS

- ➔ Clean carpets using appropriate method; extraction, bonnet, or dry foam and more

ELECTROSTATIC SPRAY

WINDOW WASHERS

- ➔ Wash interior and / or exterior windows, ground level to high-rise

CONSTRUCTION CLEANS

- ➔ Prepare a site for use after construction

PRESSURE WASHING

- ➔ Eliminate build-up from the exterior of your facility

ELECTRICAL

- ➔ Electrician services
- ➔ Replace difficult to reach and high voltage lighting

PARKING LOTS

- ➔ Striping
- ➔ Pothole repair
- ➔ Resurfacing
- ➔ Sweeping

LAWN MAINTENANCE

- ➔ Mowing
- ➔ Edging
- ➔ Customized landscape project

TENANT IMPROVEMENT

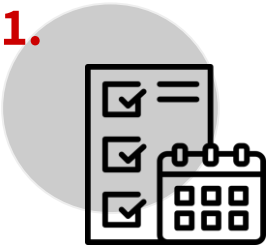
- ➔ Handyman
- ➔ Exterior / Interior painting
- ➔ Plumbing

WHY CITY WIDE?

NEW ACCOUNT IMPLEMENTATION PROCESS

With 14 days' notice we will implement the following to ensure a smooth transition:

01.



Once the agreement is signed, City Wide schedules a facility walkthrough with you.

02.



Together, we conduct the walkthrough.

- ➔ View facility.
- ➔ Review scope of work.
- ➔ Discuss items of importance.
- ➔ City Wide requests:
  - ◆ Building keys
  - ◆ Alarm codes
  - ◆ Emergency procedures

03.



City Wide selects the most qualified Independent Contractor(s) to perform the agreed upon scope of work.

04.



During the first nights of start-up, your FSM and Night Manager will be at your facility to support and oversee the crews as they service your facility.

05.



The next morning, your FSM will visit your facility and complete an inspection to ensure the expectations are being met and services align with the agreed upon scope of work.

06.



Your FSM will perform ongoing inspections thereafter during a regularly agreed upon schedule.

TERMS & CONDITIONS

CONTRACTUAL TERMS AND CONDITIONS

Ally Facility Solutions Inc. DBA City Wide Facility Solutions
8950 9th Street North, Suite 103 | St. Petersburg, FL 33702

This CONTRACT (the "Contract") is made and entered into as of the _____day of _____, 2024, by and between Ally Facility Solutions, Inc. d/b/a City Wide Facility Solutions ("City Wide") and Bobcat Trail CDD, a partnership / limited partnership / limited liability company / corporation /not-for-profit corporation (circle one), organized under the laws of the State of Florida ("Customer"), each sometimes referred to individually as a "Party" and collectively as the "Parties."

1. **Services**. The services and related products (if applicable) to be provided by City Wide are as set forth in the Service Agreement attached hereto as Exhibit A and may be modified by the Parties as agreed from time to time. Unless a separate contract is executed by the Customer, this Contract shall govern all services and products provided by City Wide to Customer during the term of this Contract.
2. **Charges for Services Rendered and Products Delivered**. The charge for services rendered and products delivered pursuant to this Contract shall be as set forth in the Investment Recap provided by City Wide and may be amended as set forth herein.
3. **Performance**. Services shall be provided in a professional and workmanlike manner. "City Wide Personnel" consists of City Wide's employees, agents and/or independent contractors. If any of the City Wide Personnel assigned to perform work for Customer are unacceptable to Customer, or if Customer has any other issue with the Services provided by City Wide, Customer shall promptly notify City Wide management of same. If the Parties are unable to arrive at a solution that is acceptable to Customer, Customer may request that City Wide replace the individual(s) providing the Services. City Wide will either replace the individual(s) within a reasonable time frame or terminate the Services provided hereunder effective immediately and City Wide shall have no further obligations under this Contract.
4. **Invoices**. For services provided on a one-time basis, City Wide will invoice Customer upon commencement of services and payment shall be due within ten (10) days of the date of the invoice. For services provided on a recurring basis, City Wide will invoice Customer on or about the first workday of each month in which services and/or products are provided. Invoices shall be paid by the 10th day of the month of the invoice. WHEN APPLICABLE, SALES TAX WILL BE ADDED TO THE INVOICE. Additional services and products may be purchased by Customer from City Wide. Invoices for the additional services and products will be sent immediately upon commencement of the additional services or delivery of the additional products, and payment will be due within ten (10) days of the date of the invoice. Any dispute concerning an Invoice or the services rendered by City Wide shall be identified in writing within five (5) days of Customer's receipt of the invoice or the rendering of the service, as the case may be. City Wide will charge the Customer a late charge of 1½ % per month on all outstanding balances, with the first such late charge assessed 30 days from the invoice date. Customer agrees to pay all costs incurred by City Wide to collect any outstanding invoices or portions thereof, including but not limited to reasonable attorneys' fees, costs and expenses.
5. **Charge Increases and Other Adjustments**. The charge for any recurring service provided pursuant to this Contract shall increase on the first anniversary of this Contract and each anniversary thereafter during the Term and any renewal period by the greater of: (i) the amount of change in the Consumer Price Index for All Items for the most recent twelve month period preceding such anniversary as published by the United States Department of Labor's Bureau of Labor Statistics; or (ii) five percent (5%). An additional adjustment to the charge for any recurring service provided pursuant to this Contract may be made at any time in the event that additional costs are incurred by City Wide for Services due to (i) union increase and/or (ii) any other governmental action that directly and materially affects City Wide's cost of Services. For recurring services Contracts, Customer shall immediately notify City Wide in writing of any addition or deletion of square footage being used in Customer's building. No reduction in the charges shall be appropriate until written notification of the deletion of square footage has been given by Customer to City Wide and City Wide Personnel have inspected the premises and confirmed same. Charges shall be due for an addition of square footage immediately upon rendition of services in such additional area, regardless of whether Customer notifies City Wide of such addition. Any change in fees for Services requires a 30 day prior written notice to Customer, and Customer may elect to terminate the Services provided hereunder, in writing, prior to the effective increase without penalty.
6. **Materials**. All cleaning materials and equipment necessary for City Wide's rendition of services will be furnished by City Wide Personnel, except for usable/consumable items. Customer will provide the usable/consumable items including, but not limited to, hand towels, toilet tissue, hand soap, plastic liners, air fresheners, and feminine hygiene products. At Customer's option and upon request, City Wide can provide these usable/consumable items for an additional cost.
7. **No Warranty; Limitation of Liability; Indemnification**. While all services shall be provided in a professional and workmanlike manner, City Wide makes no warranty (express or implied) as to any services provided or products sold pursuant to this Agreement. City Wide's liability to Customer arising from any breach of this Agreement, any services provided or products sold hereunder, or any other claim related to City Wide's dealings with Customer pursuant to this Agreement shall not exceed the amount actually paid by Customer to City Wide for services provided pursuant to this Agreement during the thirty (30) days immediately preceding the alleged breach. Customer shall fully indemnify, defend and hold harmless City Wide for any and all claims, costs, expenses (including reasonable attorneys' fees) and damages asserted by anyone other than Customer against City Wide arising as a result of or in any way related to alleged acts or omissions by City Wide and/or City Wide Personnel (including their employees, agents, guests, invitees and/or representatives) arising from any breach of this Agreement, any services provided or products sold hereunder, or any other claim related to City Wide's dealings with Customer pursuant to this Agreement).

TERMS & CONDITIONS

8. **Entire Agreement**. This Contract, including any exhibits and the Investment Recap, constitute the entire understanding and agreement between City Wide and Customer with respect to the subject matter hereof. There are no other agreements, conditions or representations, oral or written, express or implied, with regard thereto. This Contract supersedes any prior agreements that may have been entered into between the parties with respect to the subject matter hereof. This Contract and any provisions set forth in any exhibits or the Investment Recap may be amended only in writing, signed by both parties hereto.
9. **Non-Solicitation**. During the Term of this Contract, including any renewal periods, and for a period of 180 days following the termination of the Contract, Customer shall not employ, contract with, nor have any business dealings whatsoever which are in any way related to the services provided hereunder with any individual or company that is or was an employee, agent or independent contractor of City Wide (or a parent, subsidiary, franchisee, related or associated company) or any employee or agent of a City Wide independent contractor, while services were being provided hereunder. As used in this section, the term "Customer" shall mean the undersigned Customer, together with all employees, agents, partners, officers, directors and/or principals of Customer and any parent, subsidiary, related or associated company. Should the Customer breach the covenants of this section, in addition to all other remedies provided by law, it is understood that City Wide shall be entitled to: (a) an immediate Temporary Restraining Order from any Court of competent jurisdiction, and thereafter to a Preliminary Injunction and a Permanent Injunction; and (b) an accounting of and recovery from Customer of all revenue, compensation or other consideration that Customer or any third-party gains from violating or breaching this section; and (c) an award of all costs and expenses incurred by City Wide in connection with the enforcement of this Contract, including, but not limited to, reasonable attorneys' fees, investigation costs and court costs. Any period of time in which Customer is in breach of the provisions of this paragraph shall be added to the 180 day duration of the restriction. Any breach or alleged breach of this Contract by City Wide shall not constitute a defense to City Wide's enforcement of this section or any other section of the Contract.
10. **Relationship of Parties**. Each Party and its personnel are independent in relation to the other Party with respect to all matters arising under this Contract. Nothing herein shall be deemed to establish a partnership, joint venture, association, or employment relationship between the Parties. Neither Party may assume or create any obligations on the other's behalf without prior written consent.
11. **Compliance**. The Customer agrees to keep, or cause to keep, all of its facilities in conformity with all applicable federal, state or local laws, ordinances and regulations, as well as in conformity with requests made by City Wide to facilitate the performance of its services, and agrees to fully indemnify, defend and hold harmless City Wide from any loss, injury or damages (including attorneys' fees and costs) caused by the Customer's failure to abide by the terms of this paragraph and/or this Contract.
12. **Security**. City Wide and its employees, agents, contractors and related companies shall not be responsible for cash and personal valuable items left in the subject building. It is the Customer's responsibility to have such items locked in a secured area which City Wide Personnel do not have access to.
13. **Insurance**. Customer shall maintain adequate insurance protection covering the subject premises and its employees, including coverage for statutory workers' compensation and comprehensive general liability for bodily injury and property damage. City Wide agrees to maintain in effect at all times during which services are rendered hereunder the following insurance: bodily injury with limits of $1,000,000 for each person and $1,000,000 for each occurrence, property damage with limits of $1,000,000 per occurrence. The Parties agree to furnish proof of required insurance upon request.
14. **Term**. The term of the Services to be provided hereunder shall commence as set forth herein and shall continue in full force and effect until terminated as set forth herein. Either Party may terminate the Services to be provided hereunder upon thirty (30) days' written notice, provided that no such termination shall affect Customer's obligation to pay City Wide for all Services rendered and product provided. Notwithstanding the foregoing, it is understood and agreed that the Services to be provided hereunder cannot be terminated by the Customer until after the Services have been provided for an initial ninety (90) day period.
15. **Force Majeure**. City Wide shall be excused from its performance of all obligations under this Contract for a commercially reasonable period of time to the extent that it is prevented, hindered or delayed by an act of God (including, but not limited to, hurricane, fire, explosion, earthquake, or other extreme weather event), pandemic or other community health crisis, or any other unforeseen event.
16. **Assignments**. This Contract shall bind all parties, their heirs, assigns, successors, agents and representatives. City Wide may assign this Contract and its obligations hereunder, and any assignee or successor is expressly authorized to enforce all provisions of this Contract, including but not limited to any restrictive covenants.
17. **Governing Law and Related Legal Considerations**. This Contract shall be governed by the laws of Florida. The Parties agree that the venue for any action to enforce or interpret this Contract or any of the provisions hereof shall be in the state or federal court serving residents of Pinellas County, Florida, and expressly submit themselves to the jurisdiction of those courts for such purposes. The Parties further agree that, in any action to enforce or interpret this Contract or any of the provisions hereof, the prevailing party shall be entitled to an award of its reasonable attorneys' fees and costs from the non-prevailing party.

IN WITNESS WHEREOF, the Parties have caused this Contract to be executed by their duly authorized representatives as of the date first written above.

Bobcat Trail CDD	**Ally Facility Solutions, Ind. d/b/a City Wide Facility Solutions**
By: _____	By: _____
Print: _____	Print: Herb Martin
Title: _____	Title: Sales Executive

A SIGNED FACSIMILE OR EMAIL COPY OF THIS DOCUMENT IS AS BINDING AS AN ORIGINAL.

INVESTMENT RECAP

BOBCAT TRAIL CDD

1350 Bobcat Trail, North Port, FL 34289

INVESTMENT RECAP

Includes all janitorial services outlined in the service agreement.
Based on 4,702 cleanable square feet.

SERVICES TO BE PERFORMED	FREQUENCY	TOTAL PRICE PER MONTH
Nightly Janitorial Services	3 x per week	$1,000

**Quote does not include tax*

***City Wide quote does NOT include the following seven major holidays: Christmas, New Year's day, Labor Day, Memorial Day, Thanksgiving Day, 4th of July, and Easter*

QUOTE INCLUDES

- ➔ Assignment of a facility service manager (FSM) and night manager to hire, manage, train, and hold accountable all persons responsible for cleaning.
- ➔ All services performed as detailed in the scope of work nightly checklists and day porter schedules.
- ➔ All janitorial cleaning chemicals and equipment needed to perform services outlined in service agreement.
- ➔ Day porters dressed in City Wide uniform with logo, pants, and identification badge.
- ➔ All janitors, day porters, management and supervisor trainings and certification will be provided.

CONSUMABLES

- ➔ ___ **Yes**, City Wide is expected to manage and order consumable products.
- ➔ ___ **No**, City Wide is not expected to manage and order consumable products.

** Consumables are ordered as needed and invoiced separately.*

** All invoices will include any applicable sales tax.*

BILLING METHOD

- ➔ ___ **eBill**
- ➔ ___ **ACH**

AUTHORIZATION

CITY WIDE FACILITY SOLUTIONS

Authorized Representative Signature

Herb Martin

Printed Name

Sales Executive

Title

Date

BOBCAT TRAIL CDD

Authorized Representative Signature

Printed Name

Title

Date

Start Date

CERTIFICATE OF INSURANCE

ALLYF-1

OP ID: TO

CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY) 02/01/2024

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER
954-340-9551
INNOVATIVE INSURANCE CONSULTANTS, INC.
5461 UNIVERSITY DRIVE, #103
CORAL SPRINGS, FL 33067
BRIAN J. MAMO

CONTACT NAME: BRIAN J. MAMO
PHONE (A/C, No, Ext): 954-340-9551 FAX (A/C, No): 954-340-9456
E-MAIL ADDRESS: BRIAN@INNOVATIVE-INSURANCE.COM

INSURER(S) AFFORDING COVERAGE	NAIC #
INSURER A : NATIONAL BUILDERS INS. CO.	16632
INSURER B : TRAVELERS INDEMNITY INS CO	25658
INSURER C : AMERICAN BUILDERS INS. CO.	11240
INSURER D : THE TRAVELERS INDEMNITY CO.	25658
INSURER E :	
INSURER F :	

INSURED
ALLY FACILITY SOLUTIONS, INC.
DBA CITY WIDE FACILITY SOLUTIONS
DBA CITY WIDE MAINTENANCE OF TAMPA BAY
8950 9TH STREET N, STE 103
ST PETERSBURG, FL 33702

COVERAGES CERTIFICATE NUMBER: REVISION NUMBER:

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
A	X COMMERCIAL GENERAL LIABILITY CLAIMS-MADE X OCCUR X BLKT ADDL INSRD X BLKT WAIVER GEN'L AGGREGATE LIMIT APPLIES PER: POLICY X PRO-JECT LOC OTHER:	X		PKG0257245-06 PRIMARY & NONCONTRIBUTORY	02/05/2024	02/05/2025	EACH OCCURRENCE DAMAGE TO RENTED PREMISES (Ea occurrence) MED EXP (Any one person) PERSONAL & ADV INJURY GENERAL AGGREGATE PRODUCTS - COMP/OP AGG	$ 1,000,000 $ 300,000 $ 10,000 $ 1,000,000 $ 2,000,000 $ 2,000,000
B	AUTOMOBILE LIABILITY X ANY AUTO OWNED AUTOS ONLY SCHEDULED AUTOS X HIRED AUTOS ONLY X NON-OWNED AUTOS ONLY			BA-4N29089A-23-42-G	05/11/2023	05/11/2024	COMBINED SINGLE LIMIT (Ea accident) BODILY INJURY (Per person) BODILY INJURY (Per accident) PROPERTY DAMAGE (Per accident)	$ 1,000,000 $ $ $
C	X UMBRELLA LIAB X OCCUR EXCESS LIAB CLAIMS-MADE DED X RETENTION $ 10,000			UMB0257249-06	02/05/2024	02/05/2025	EACH OCCURRENCE AGGREGATE	$ 5,000,000 $ 5,000,000 $ SEE NOTES
C	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) Y / N N / A If yes, describe under DESCRIPTION OF OPERATIONS below			WCV0257073-06 BLANKET WAIVER INCLUDED	02/05/2024	02/05/2025	X PER STATUTE X OTH-ER E.L. EACH ACCIDENT E.L. DISEASE - EA EMPLOYEE E.L. DISEASE - POLICY LIMIT	$ 1,000,000 $ 1,000,000 $ 1,000,000
D	CRIME			106867705	02/05/2024	02/05/2027		

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

(CONTINUED FROM AND INCLUDED AS CERTIFICATE HOLDER: DBA CITY WIDE MAINTENANCE OF TAMPA BAY)
CERTIFICATE HOLDER IS ALSO KNOWN AS ADDITIONAL INSURED WITH RESPECTS TO GENERAL LIABILITY.

CERTIFICATE HOLDER

ALLYF11

ALLY FACILITY SOLUTIONS, INC.
DBA CITY WIDE FACILITY SOLUTIONS
8950 9TH STREET N, #103
ST. PETERSBURG, FL 33702

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

Brian J. Mamo

ACORD 25 (2016/03)

© 1988-2015 ACORD CORPORATION. All rights reserved.
The ACORD name and logo are registered marks of ACORD

CERTIFICATE OF INSURANCE

NOTEPAD

INSURED'S NAME: ALLY FACILITY SOLUTIONS, INC.

ALLYF-1
OP ID: TO

Date 02/01/2024

UMBRELLA POLICY COVERS OVER THE GENERAL LIABILITY & WORKERS COMPENSATION ONLY, AUTO IS EXCLUDED FROM THE UMBRELLA POLICY.

W-9

Form **W-9**
(Rev. October 2018)
Department of the Treasury
Internal Revenue Service

Request for Taxpayer Identification Number and Certification

▶ **Go to *www.irs.gov/FormW9* for instructions and the latest information.**

Give Form to the requester. Do not send to the IRS.

Print or type. See **Specific Instructions** on page 3.

1 Name (as shown on your income tax return). Name is required on this line; do not leave this line blank.
Ally Facility Solutions, Inc.

2 Business name/disregarded entity name, if different from above
City Wide Facility Solutions

3 Check appropriate box for federal tax classification of the person whose name is entered on line 1. Check only **one** of the following seven boxes.

☐ Individual/sole proprietor or single-member LLC ☐ C Corporation ☑ S Corporation ☐ Partnership ☐ Trust/estate

☐ Limited liability company. Enter the tax classification (C=C corporation, S=S corporation, P=Partnership) ▶ _____

Note: Check the appropriate box in the line above for the tax classification of the single-member owner. Do not check LLC if the LLC is classified as a single-member LLC that is disregarded from the owner unless the owner of the LLC is another LLC that is **not** disregarded from the owner for U.S. federal tax purposes. Otherwise, a single-member LLC that is disregarded from the owner should check the appropriate box for the tax classification of its owner.

☐ Other (see instructions) ▶

4 Exemptions (codes apply only to certain entities, not individuals; see instructions on page 3):

Exempt payee code (if any) _____

Exemption from FATCA reporting code (if any) _____

(Applies to accounts maintained outside the U.S.)

5 Address (number, street, and apt. or suite no.) See instructions.
8950 9th Street North, Suite 103

Requester's name and address (optional)

6 City, state, and ZIP code
St. Petersburg, FL 33702

7 List account number(s) here (optional)

Part I Taxpayer Identification Number (TIN)

Enter your TIN in the appropriate box. The TIN provided must match the name given on line 1 to avoid backup withholding. For individuals, this is generally your social security number (SSN). However, for a resident alien, sole proprietor, or disregarded entity, see the instructions for Part I, later. For other entities, it is your employer identification number (EIN). If you do not have a number, see *How to get a TIN,* later.

Note: If the account is in more than one name, see the instructions for line 1. Also see *What Name and Number To Give the Requester* for guidelines on whose number to enter.

Social security number
			-			-				

or

Employer identification number
2	7	-	1	0	9	2	7	0	4

Part II Certification

Under penalties of perjury, I certify that:

1. The number shown on this form is my correct taxpayer identification number (or I am waiting for a number to be issued to me); and
2. I am not subject to backup withholding because: (a) I am exempt from backup withholding, or (b) I have not been notified by the Internal Revenue Service (IRS) that I am subject to backup withholding as a result of a failure to report all interest or dividends, or (c) the IRS has notified me that I am no longer subject to backup withholding; and
3. I am a U.S. citizen or other U.S. person (defined below); and
4. The FATCA code(s) entered on this form (if any) indicating that I am exempt from FATCA reporting is correct.

Certification instructions. You must cross out item 2 above if you have been notified by the IRS that you are currently subject to backup withholding because you have failed to report all interest and dividends on your tax return. For real estate transactions, item 2 does not apply. For mortgage interest paid, acquisition or abandonment of secured property, cancellation of debt, contributions to an individual retirement arrangement (IRA), and generally, payments other than interest and dividends, you are not required to sign the certification, but you must provide your correct TIN. See the instructions for Part II, later.

Sign Here **Signature of U.S. person ▶** J. Cameron Duffy **Date ▶** 01/01/2024

General Instructions

Section references are to the Internal Revenue Code unless otherwise noted.

Future developments. For the latest information about developments related to Form W-9 and its instructions, such as legislation enacted after they were published, go to *www.irs.gov/FormW9.*

Purpose of Form

An individual or entity (Form W-9 requester) who is required to file an information return with the IRS must obtain your correct taxpayer identification number (TIN) which may be your social security number (SSN), individual taxpayer identification number (ITIN), adoption taxpayer identification number (ATIN), or employer identification number (EIN), to report on an information return the amount paid to you, or other amount reportable on an information return. Examples of information returns include, but are not limited to, the following.

- Form 1099-INT (interest earned or paid)
- Form 1099-DIV (dividends, including those from stocks or mutual funds)
- Form 1099-MISC (various types of income, prizes, awards, or gross proceeds)
- Form 1099-B (stock or mutual fund sales and certain other transactions by brokers)
- Form 1099-S (proceeds from real estate transactions)
- Form 1099-K (merchant card and third party network transactions)
- Form 1098 (home mortgage interest), 1098-E (student loan interest), 1098-T (tuition)
- Form 1099-C (canceled debt)
- Form 1099-A (acquisition or abandonment of secured property)

Use Form W-9 only if you are a U.S. person (including a resident alien), to provide your correct TIN.

If you do not return Form W-9 to the requester with a TIN, you might be subject to backup withholding. See What is backup withholding, *later.*

PAY ONLINE

WHY ENROLL IN E-BILL EXPRESS?

CONVENIENCE
Make payments anytime, anywhere, from any device. Enroll in automatic payments and never be late to pay your bills. Choose from multiple options for automatic payment!

FREE & EASY
It only take a minute to enroll. It's simple to make payments online from your computer, tablet, or mobile device.

TIME & MONEY SAVINGS
Eliminate the hassle of writing checks, stamping envelopes, mailing bills, and checks getting lost in the mail.

CURRENT & HISTORICAL BILLS AVAILABLE
Access your current and historical invoices online, with the option to run reports and print or save to your computer. Personal financial management made easy.

CONVENIENCE & CONTROL

- ➔ **Security**.
  Customer privacy is the utmost importance. This solutions meets the strictest banking and corporate security standards. Your business and your customer's personal information are 100% safe.
- ➔ **Accurate Payment Processing**.
  Automated online system eliminates risk of manual error.
- ➔ **Control Payments**.
  Set up recurring payments and automatically deduct payments from your account - the same amount every month, the same day of the month - whatever works best for you. Or, schedule payments to be paid at a future date. Pay using a bank account via the web or over the phone.

BILL REMINDER
Never miss a payment or see a late fee. Receive an email as soon as your bill is available.

FACT
By paying bills online, the average household saves $90 on stampas and six hours annually.

NEED HELP ENROLLING?
Give us a call - we're always here to help. **(727) 940-5873** and dial **0**.

HOW TO ENROLL

1. Go to https://www.e-billexpress.com/ebpp/gocitywide/.
2. Click **Enroll**.
3. Enter your **Customer ID** from your invoice (including the first zero).
4. Enter your **Zip Code** from your invoice in the Bill to Address section.
5. Click **Validate**.
6. Follow **Next Steps** to finish the enrollment process.



SCOPE OF WORK CHECKLIST

BOBCAT TRAIL CDD

FSM: JOHN BERRY

AREAS OF RESPONSIBILITY		Date: June 6, 2024							
ENTRY, HALLWAYS, AND LOBBY		**SUN**	**MON**	**TUE**	**WED**	**THURS**	**FRI**	**SAT**	**MTLY**
Nightly	Empty trash cans and replace liners								
	Damp wipe with EPA approved disinfectant all open flat surfaces								
	Dust mop, vacuum or sweep hard floors to remove dust, dirt and debris								
	Wet mop hard floors to remove spills								
	Vacuum carpeted areas and walk off mats								
	Remove smudges from entryway moving glass								
	Clean and disinfect drinking fountains								
	Secure entrance doors								
	Turn lights off as directed								
Weekly	Low dust all horizontal surfaces to hand height								
	Wet mop hard surface floors wall to wall								
	Dust mop, vacuum or sweep hard floors wall to wall								
	Remove fingerprints from touch points								
Monthly	Dust ceiling vents								
OFFICE AREAS & COMMON GATHERING SPACES		**SUN**	**MON**	**TUE**	**WED**	**THURS**	**FRI**	**SAT**	**MTLY**
Nightly	Empty trash cans and replace liners								
	Dust mop, vacuum or sweep hard floors to remove dust, dirt and debris								
	Wet mop hard floors to remove spills								
	Vacuum carpeted areas and walk off mats								
	Remove fingerprints and smudges from moving glass								
	Damp wipe with EPA approved disinfectant and clean conference tables								
	Neatly arrange tables and chairs								
Weekly	Wet mop hard surface floors wall to wall								
	Dust mop, vacuum or sweep hard floors wall to wall								
	Damp dust all open surfaces of furniture including desk-tops, furniture, window ledges, two-drawer filing cabinets,								
	Remove fingerprints from touch points								
Monthly	Dust ceiling vents								
	Low dust chairs and miscellaneous items								
KITCHEN		**SUN**	**MON**	**TUE**	**WED**	**THURS**	**FRI**	**SAT**	**MTLY**
Nightly	Empty trash cans and replace liners								
	Wipe sinks with EPA approved disinfectant								
	Clean inside and outside of microwaves								
	Wipe with EPA approved disinfectant and disinfect counters and tabletops								
	Sweep or vacuum hard floors wall to wall								
	Wet mop and disinfect hard floors wall to wall								
	Remove fingerprints from moving glass								
Weekly	Remove drips and spills from trash cans								
	Remove drips and spills from cabinets								

	Damp wipe with EPA approved disinfectant fronts of vending machines and refrigerators								
Monthly	Dust ceiling vents								
RESTROOMS		**SUN**	**MON**	**TUE**	**WED**	**THURS**	**FRI**	**SAT**	**MTLY**
Nightly	Empty trash cans and replace liners								
	Clean mirrors								
	Wipe sinks, counters, toilets and urinals with EPA approved disinfectant								
	Polish bright work								
	Sweep or vacuum floors wall to wall								
	Wet mop and disinfect hard floors wall to wall								
	Refill all dispensers (Soap, paper towel, etc.)								
	Report all items needing repaired to FSM								
	Remove fingerprints from touch points								
Weekly	Low dust all horizontal surfaces to hand height								
	High-dust all partitions								
	Wipe with EPA approved disinfectant Dispensers								
	Damp wipe tile walls behind toilets & urinals with EPA approved disinfectant								
	Wipe clean partitions with EPA approved disinfectant								
Monthly	Dust ceiling vents								
FITNESS CENTER		**SUN**	**MON**	**TUE**	**WED**	**THURS**	**FRI**	**SAT**	**MTLY**
Nightly	Empty trash cans and replace liners								
	Dust mop, vacuum or sweep hard floors to remove dust, dirt and debris								
	Wet mop hard floors to remove spills								
	Vacuum carpeted areas and walk off mats								
	Remove smudges from entryway moving glass								
	Wipe down padded benches and equipment								
Weekly	Wet mop hard surface floors wall to wall								
Monthly	Dust ceiling vents								
JANITOR CLOSET		**SUN**	**MON**	**TUE**	**WED**	**THURS**	**FRI**	**SAT**	**MTLY**
Nightly	Keep closet cleaned and organized								
	Keep supplies organized and stored properly								
	Hang mops in proper location								
ALL AREAS		**SUN**	**MON**	**TUE**	**WED**	**THURS**	**FRI**	**SAT**	**MTLY**
Nightly	Secure entrance doors								
	Turn lights off as directed								
Weekly	Low dust chairs and miscellaneous items								
Monthly	Remove fingerprints from doors, frames and light switches								
	Dust ceiling vents								
CUSTOMER REQUESTS									
Includes 2 restrooms at pool									

Tab 8

Quotation

ENVERA®
NEXT GENERATION SECURITY

Quote #: Q-13587-2
Date: 7/31/2024
Expires On: 10/31/2024

Envera Systems

Next Generation Security
4171 W Hillsboro Blvd Ste 2
Coconut Creek, FL 33073
Phone: (855) 936-8372 | Email: info@enverasystems.com

Prepared for

Bobcat Trail CDD - North Port
1352 Bobcat Trail
North Port, Florida 34288

SECURITY CONSULTANT	PHONE	EMAIL
Kim Bittar	+1 9413238944	kbittar@enverasystems.com

INSTALLATION INVESTMENT

Both Exit Gates - Add MAC Barrier Arms

Main Gate - 2
Back Gate - 1

QTY	PRODUCT	INSTALL INVESTMENT
1	12' Magnetic Toll Pro Barrier Gate (Left Side) - LED	
1	Ground Loop - Reno Detector Harness	
2	12' Magnetic Toll Pro Barrier Gate (Right Side) - LED	
2	Ground Loop - Reno Detector Harness	
3	Ground Loop - Reno Detector Harness	
30	Trenching & Backfilling	
30	Conduit	
150	Wire	
	Both Exit Gates - Add MAC Barrier Arms TOTAL:	$17,495.77

10% Installation Discount

QTY	PRODUCT	INSTALL INVESTMENT
1	Installation Discount	
	10% Installation Discount TOTAL:	$-1,749.58

Installation Investment Total: $15,746.19

THIRD PARTY FINANCING OPTIONS

36 Months Financing at 3.99% | Monthly Payment: $464.83

- Finance Options Based on Credit Approval

- $85 Documentation Fee & First Month Required at Signing
- Eligibility subject to credit approval upon receipt of credit application to Canon Financial Services, Inc.
- Finance Application can be found at enverasystems.com/financing

MONTHLY INVESTMENT

Both Exit Gates - Add MAC Barrier Arms

Main Gate - 2
Back Gate - 1

QTY	MONTHLY SERVICE	EACH	MONTHLY INVESTMENT
3	Service & Maintenance Plan	$60.00	$180.00
	Both Exit Gates - Add MAC Barrier Arms TOTAL:		$180.00

Monthly Investment Total: $180.00

Local sales tax will be added to Monthly Investment.

SERVICE & MAINTENANCE PLAN

- During Primary Period, should any equipment need to be serviced or replaced, Envera will not charge for labor or system parts and materials.
- During Renewal Periods, should any equipment need to be serviced or replaced, Envera will not charge for labor and will only charge cost for system parts and materials.
- Ground loops are warrantied for a period of 90 days and are not included in the Service & Maintenance Plan
- Service Level Commitment
  - Envera will perform system checks of all cameras on a daily basis.
  - Envera will proactively troubleshoot any discovered issues, which may include sending a technician onsite.
  - Since most issues can be resolved remotely, emergency service requests will be responded to within 24 hours.
- Service and Maintenance Plan excludes accident, vandalism, flood, water, lightning, fire, intrusion, abuse, misuse, an act of God, any casualty, including electricity, unauthorized repair service, modification or improper installation or any other cause beyond the control of Envera, including interruption of electrical power or internet service.

TERMS & CONDITIONS

- Monthly pricing is based on 547 current homes, with a maximum of 547 homes at full build out.
- Package pricing is applied to installation and monthly pricing. Pricing presented in this Quote is based on the purchase of all items as presented.
- Minimum 36-month agreement is required for monthly services (sales tax will be added to all monthly charges).
- Community will be responsible for all costs related to permits, bonds, surveys, drawings or site plan modifications.
- Community will be responsible for all required internet lines with minimum of 5Mbps upload and download speeds for most systems to operate. This may require multiple primary and backup lines throughout the community. Envera's team will work with internet providers to assist Client as necessary.
- Community will be responsible for providing adequate power at all head-end locations.
- Deposit due at signing equal to 50% of installation costs and two (2) months of the monthly services costs prior to Envera scheduling work. 40% of installation will be due within 5 days of Envera beginning installation. Final 10% of installation is due within 5 days of Envera completing installation.
- If purchasing a Virtual Gate Guard or Access Control System, Community will be responsible for providing a list of all residents with addresses, phone numbers, and email addresses in an Excel or CSV format.
- If purchasing a Virtual Gate Guard System:

- *Virtual Gate Guard Monitoring is a per home charge and any additional homes added above those reported in the Qty field above (or at signing) will be charged to the Community at the per home price per month.
- Installation of the equipment will take approximately six weeks to complete and fully test
- Envera's Implementation Team will provide a resident orientation session
- Once the system is activated and on-line, Envera will conduct a "soft opening" giving residents 21 days to get acclimated (Guests will be asked where they are going but no guest will be denied entry)
- After the soft opening period expires, all guests will be verified before being granted entry into the community
- Recurring monthly pricing is based on all resident and renters having Envera programmed credentials on their vehicles and unencumbered access to use MyEnvera.com or the MyEnvera App for guest management

Tab 9

RESOLUTION 2024-08

A RESOLUTION OF THE BOARD OF SUPERVISORS OF THE BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT DESIGNATING DATES, TIME AND LOCATION FOR REGULAR MEETINGS OF THE BOARD OF SUPERVISORS OF THE DISTRICT, FOR FISCAL YEAR 2024/2025, AND PROVIDING FOR AN EFFECTIVE DATE

WHEREAS**,** the Bobcat Trail Community Development District (the "District") is a local unit of special-purpose government organized and existing in accordance with Chapter 190, Florida Statutes, and situated entirely within Sarasota County, Florida; and

WHEREAS, the District's Board of Supervisors (hereinafter the "Board") is statutorily authorized to exercise the powers granted to the District; and

WHEREAS, all meetings of the Board shall be open to the public and governed by the provisions of Chapter 286, Florida Statutes; and

WHEREAS, the Board is statutorily required to file annually, with the local governing authority or authorities a schedule of its regular meetings; and

WHEREAS, the District is required by Florida law to prepare an annual schedule of its regular public meetings which designates the date, time, and location of the District's meetings.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF SUPERVISORS OF THE BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT:

1. The Fiscal Year 2024/2025 annual public meeting schedule attached hereto and incorporated by reference herein as Exhibit A is hereby approved and will be published and filed in accordance with Section 189.015(1), Florida Statutes.

2. This Resolution shall become effective immediately upon its adoption.

PASSED AND ADOPTED THIS 6TH DAY OF AUGUST, 2024.

ATTEST:

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT

Secretary / Assistant Secretary

Chairman / Vice Chairman

EXHIBIT “A”

BOARD OF SUPERVISORS’ MEETING DATES
BOBCAT TRAILCOMMUNITY DEVELOPMENT DISTRICT
FISCAL YEAR 2024/2025

October 1, 2024
November 5, 2024
December 3, 2024
January 7, 2025
February 4, 2025
March 4, 2025
April 1, 2025
May 6, 2025
June 3, 2025
July 1, 2025
August 5, 2025
September 2, 2025

The meetings will convene at 3:00 p.m. at the Bobcat Trail Community Center located at 1352 Bobcat Trail Blvd., North Port, FL 34288.

Tab 10

Bobcat Trail

AQUATICS AND LANDSCAPE INSPECTION REPORT



July 16th, 2024

Rizzetta & Company

John Fowler – Landscape Specialist

Rizzetta & Company
Professionals in Community Management

Aquatics Inspection Section

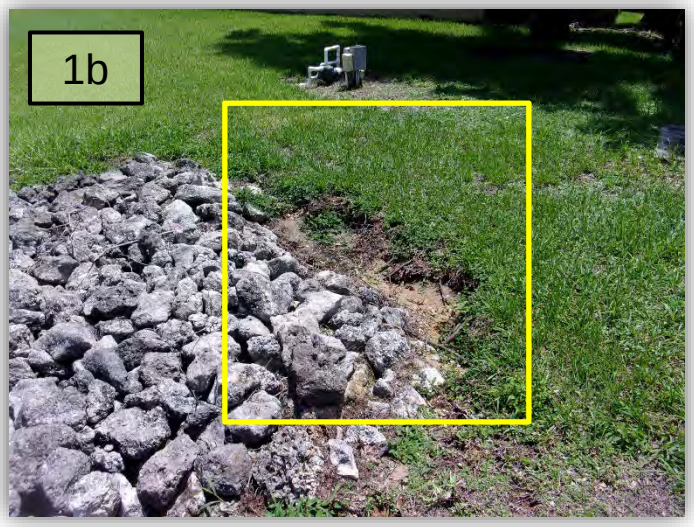
General Updates, Recent & Upcoming Maintenance Events

- ❑ **Restoration is ongoing for the ponds.**
- ❑ **Small algae blooms are starting to form along shallow banks of the ponds.**
- ❑ **Remove debris in any pond.**

Ponds West of Toledo Blade Blvd..

1. Pond behind the office buildings West of Toledo Blade Blvd.
    a) Treat algae in the pond
    b) Washout on the backside of the rip rap rock culvert that needs to be repaired.





2. Pond behind the hospital West of Toledo Blade Blvd.
    a) Treat undesirable weeds in the pond.



Pond D and A1

3. Pond D:
    a) Restoration to be completed the week of 8/19. Current water level.
    b) Remove debris in the pond.
    c) Treat undesirable grassy weeds in the pond.





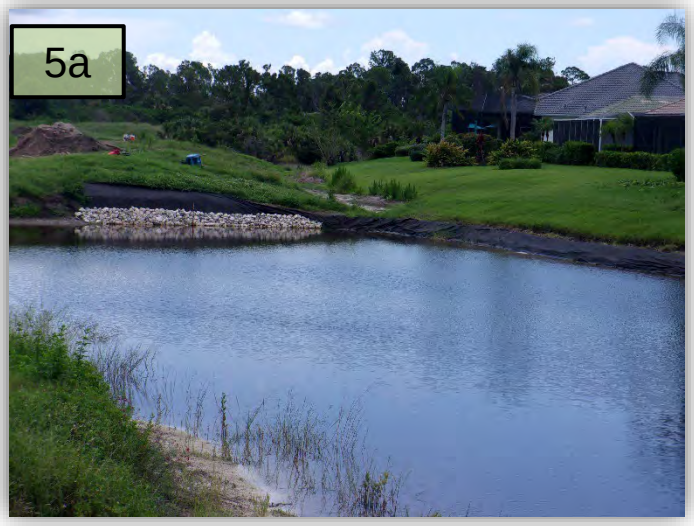
4. Pond A1:
    a) Restoration to be completed 7/1, 7/8, 7/15, 7/22. Currently being worked on during this inspection.
    b) Treat the undesirable weeds in the pond.





Pond A2 and E

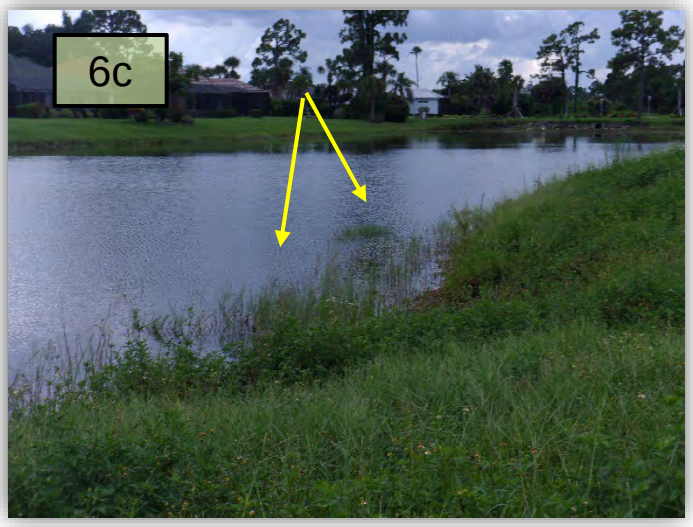
5. Pond A2:
    a) Restoration to be completed 7/1, 7/8, 7/15, 7/22. project was started during this inspection. Current status below.
    b) Treat undesirable grassy weeds and sedge in the pond.





6. Pond E:
    a) Restoration to be completed week of 8/19.
    b) Treat grassy weeds next to the littoral shelf. It now is holding water.
    c) Treat weeds along the pond bank.
    d) Small algae blooms are starting to form.





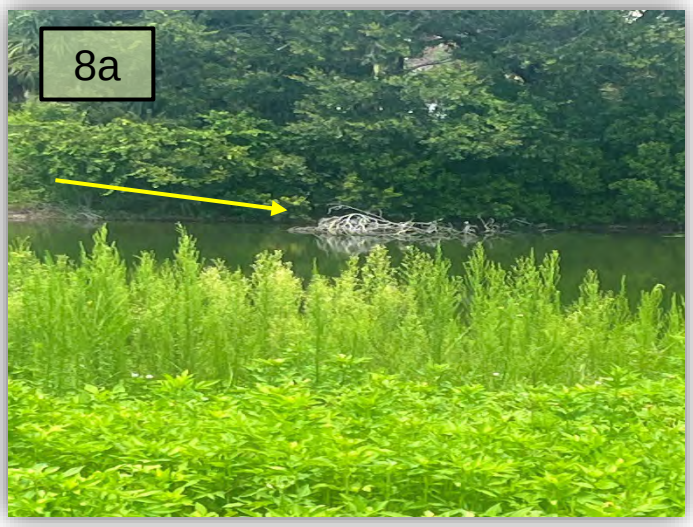


Pond F1 and F2

7. Pond F1:
    a) Treat the grassy weeds and sedge in front of the flumes possibly blocking water movement.
    b) Small algae blooms are starting to form.



8. Pond F2:
    a) Remove debris in the pond.
    b) There are a couple swales along the bank that are eroding and coming further onto the abandoned golf course that may need to be rectified in the future for integrity of the lake bank.
    c) Treat grassy weeds and sedge in the pond.
    d) Small algae blooms starting to form.







Pond F3 and K2

9. Pond F3:
    a) Treat weeds along the pond bank.
    b) Small algae blooms are starting to form.



10. Pond K2:
    a) Treat large weeds along bank and in the pond.
    b) Keep area in rip rap rock on the North end clear of weeds and debris for water movement.
    c) Washout along the bank near the flume that needs to be restored.
    d) Current water level during this inspection.







Pond K1 and 1

11. Pond K1:
    a) Treat weeds around the shallow pond bank.
    b) Area on the Southend may need to be cleared along the bank.





12. Pond 1:
    a) Restoration appears to be completed.
    b) Noting there is a washout hole on the golf course side of the pond.
    c) Treat weeds in rip rap in front of flume to ensure proper water flow.
    d) Small algae blooms are forming.



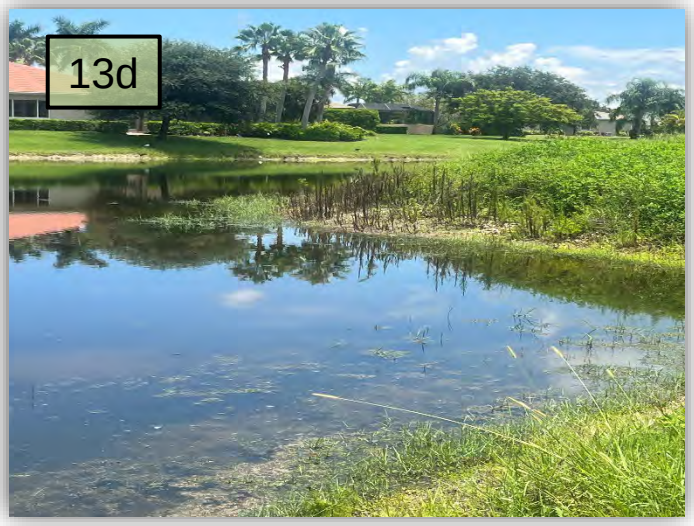




Pond J2 and J1

13. Pond J2
    a) Dogfennel has been treated and banks look much better.
    b) Treat grassy weeds in the pond and rip rap rock.
    c) Remove debris in the pond.
    d) Treat small algae blooms starting to form.





14. Pond J1
    a) Pond bank restoration appears complete.
    b) Treat weeds in the shallow pond bank.
    c) Treat algae blooms forming.





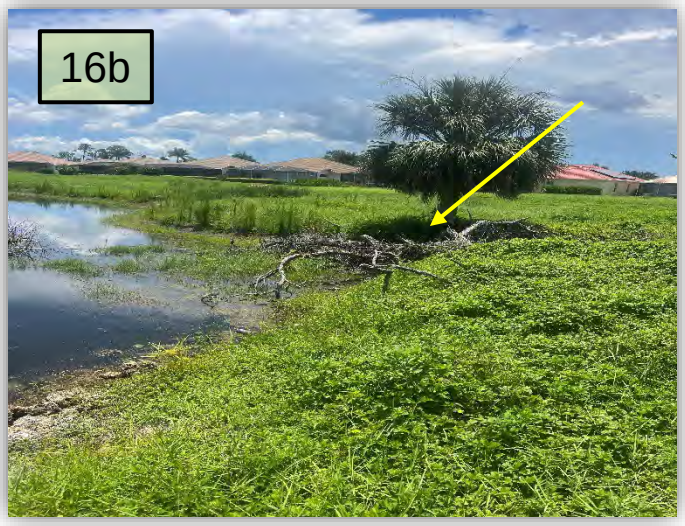
Pond J3 and H2

15. Pond J3
    a) Treat small algae blooms starting to form.
    b) Palm debris along the pond bank.





16. Pond H2:
    a) Restoration appears to be finished.
    b) Noting a dead tree along the bank of the pond. Asking ;pond vendor to provide a proposal to remove out of the lake.
    c) Treat grassy weeds in shallow bed on pond bank.
    d) Small algae blooms starting to form.





Pond H1 and G and M

17. Pond H1:
    a) Possibly install desirables plantings on the littoral shelf.
    b) Treat grassy weeds in pond.



18. Pond G:
    a) Treat grassy weeds in pond.
    b) Treat algae blooms forming along shallow lake banks.



19. Pond M:
    a) Restoration dates are 7/29, 8/5, and 8/12.
    b) Treat Algae growth in the pond.
    c) Treat grassy weeds in the pond.



20. Pond C:
    a) Treat grassy weeds in pond.

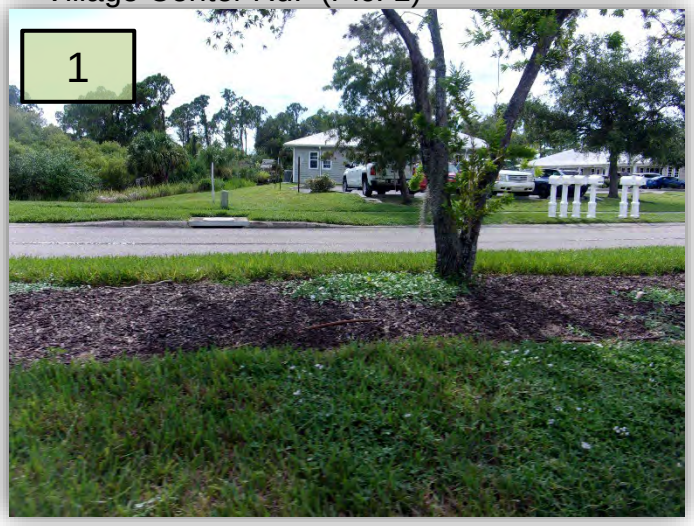
Landscape Summary, Bobcat Village Center Dr.

General Updates, Recent & Upcoming Maintenance Events

- ❑ **Currently in the weekly mowing services.**
- ❑ **Rainy season has started and damaged turf is starting to fill in.**

The following are action items for LMP to complete. Please refer to the item # in your response listing action already taken or anticipated time of completion. Red text indicates deficient from previous report. **Bold Red text** indicates deficient for more than a month. Green text indicates a proposal has been requested. Blue indicates irrigation. **Bold & Underlined** is info or a question for the BOS. Orange is items for Staff to address.

1. Treat weeds in the median beds on Bobcat Village Center Rd. (Pic. 1)



2. Diagnose and treat a few declining Indian Hawthorn in the medians of Bobcat Village Center Dr. and remove any dead material. (Pic. 2>)
3. Treat joint crack weeds between the concrete and asphalt of median dividers of Bobcat Village Center Rd.
4. Treat weeds in the tree ring beds on Bobcat Village Center Rd.
5. Treat small areas of broadleaf turf weeds and sedge in medians and ROWs of Bobcat Village Center Rd.
6. Diagnose and treat a declining Pygmy Date Palm on the South median of Bobcat Village Center Dr. near the apartments.
7. Remove vines growing on top of the Indian Hawthorn in the South median of Bobcat Village Center Dr.
8. Treat weeds in the median tree rings on Bobcat Trails West of Toledo Blade.
9. Diagnose and treat the Hong Kong Orchid on median bullnose of Bobcat Village Center Rd.
10. Lightly trim the Copperleaf to even heights in front of the monuments on Bobcat Trails on the Westside of Toledo Blade.



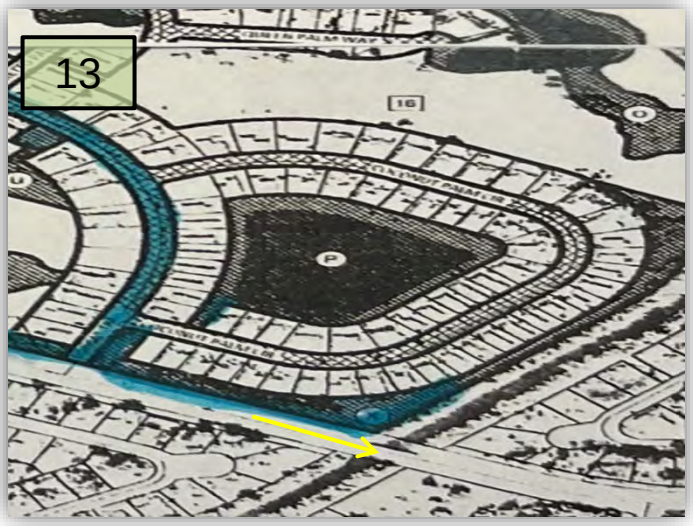
Bobcat Trail

11. Noting the correct areas were mowed behind the homes from the chain linked fence to Woodhaven Dr. this past service. However, need to remove vines and vegetation off the fence and an 8-foot easement should be maintained on inside of the fence. (Pic. 11)



12. Treat weeds in the beds on the entrance and exit side of the Woodhaven Dr. and Bobcat Trail intersection.

13. Maintain Woodhaven Dr. to the bridge on the Eastend of the property. (Map below)



14. Diagnose and treat a declining Red-Hot Hibiscus in front of the exit monument bed of Bobcat Trail and Toledo Blade intersection.

15. Diagnose and treat a couple declining Croton in the medians of Bobcat Trail between Toledo Blade and the amenity center.

16. Diagnose and treat a declining Ligustrum tree in the median of Bobcat Trail Blvd. between Toledo Blade and Royal Palm Dr.

17. Ensure nonselective herbicide is applied on days less than 8 mph wind. Several tree ring beds on Bobcat Trails has overspray. (Pic. 17)



18. Noting planting were cut back on Solitary Palm Ct. and should fill in and recover quickly.

19. Diagnose and treat the turf at Solitary Palm Ct. for possible chinch bugs. (Pic. 19)



20. Treat grassy weeds growing up in the Viburnum along the aluminum fence on Bobcat Trail between Lady Palm Way and the lift station.